



Treasury Board of Canada
Secrétariat

Secrétariat du Conseil du Trésor
du Canada

CLASSIFICATION STANDARD

PROGRAMME ADMINISTRATION

Administrative and Foreign Service Category

INTRODUCTION

This standard describes the plans to be used in classifying and evaluating positions in the Programme Administration Group. It consists of: an introduction; definitions of the Administrative and Foreign Service Category, the Programme Administration Group and the Mediation/Conciliation Officer Sub-group; a point-rating plan; bench-mark position descriptions; and an occupational description for Mediation/Conciliation Officers.

Within the group a minor sub-group has been developed to accommodate a small number of similar positions, located in a single department, where the duties and responsibilities are expressed in general terms and for which a separate and directly comparable labour market outside the Federal Public Service can be identified. The duties and responsibilities of these positions are in the form of specific assignments based primarily on the qualifications of the particular incumbent.

The classification and evaluation plan, applicable to the group generally, provides a quantitative method for determining the relative value of positions allocated to the group. The classification plan for the minor sub-group provides a single classification level and contains only the criteria for allocating positions to the sub-group.

Point rating is an analytical, quantitative method of determining the relative value of jobs. It is particularly suited to heterogeneous occupational groups in which jobs consist of varied combinations of tasks. Essentially, point-rating plans define characteristics or factors common to the jobs being evaluated. They define degrees of each factor and allocate point values to each degree. The total value determined for each job is the sum of the point values assigned under all the factors.

All methods of job evaluation require the exercise of judgement and the orderly collection and analysis of information in order that consistent judgements can be made. A point-rating method facilitates rational discussion and resolution of differences in determining the relative value of jobs.

Factors

The combined factors do not describe all aspects of jobs. They deal only with those characteristics that can be defined and distinguished and that are useful in determining the relative value of jobs.

Four factors are used in this plan, three of which have more than one dimension and have been defined in terms of two related elements.

Factor Weights

The maximum point value assigned to each factor reflects its relative importance. Degrees of the factors and elements have been defined and the following points assigned.

<u>Factors</u>	<u>Factor Weights</u>	<u>Point Values</u>	
		<u>Minimum</u>	<u>Maximum</u>
Knowledge Program/Technical General Administration	400	81	400
Decision Making Scope Impact	300	69	300
Operational Responsibility Nature of Responsibility Complexity and Size of Subordinate Organization	150	10	150
Contacts	150	30	150
		190	1,000

Bench-Mark Position Descriptions

Bench-mark position descriptions are used to exemplify the degrees of each factor or element. Each description consists of a job summary and specifications describing each of the factors and elements as it appears in the position. The Bench-mark positions have been evaluated, and the degree and point values assigned to each factor or element are shown in the specifications.

The rating scales identify the bench-mark position descriptions that exemplify each degree. These descriptions are an integral part of the point-rating scales and are used to ensure consistency in applying the scales.

Use of the Position Classification Plan

1. Allocation of the position to the category and the group is confirmed by reference to the definitions and the descriptions of inclusions and exclusions.
2. The position description is studied to ensure understanding of the position as a whole and of each factor. The relation of the position being rated to positions above and below it in the organization is also studied.
3. Tentative degrees of each factor in the job being rated are determined by comparison with degree definitions in the rating scales. Uniform application of degree definitions requires frequent reference to the description of factors and the notes to raters.
4. The description of the factor in each of the bench-mark positions exemplifying the degree tentatively established is compared with the description of the factor in the position being rated. Comparisons are made also with descriptions of the factor in bench-mark positions exemplifying the degrees above and below the one tentatively established.

5. The point values for all factors are added to determine the tentative total point rating.
6. The position being rated is compared as a whole to position descriptions to which similar total point values have been assigned as a check on the validity of the total rating.

Determination of Levels

The ultimate objective of job evaluation is to determine the relative value of positions in each occupational group so that employees in the positions may be paid at rates consistent with the relationship indicated. Positions that fall within a designated range of point values will be regarded as of equal difficulty and value and will be allocated to the same level.

Point Boundaries		
	Level	Point Boundaries
	1	190-300
	2	301-400
	3	401-500
	4	501-610
	5	611-720
	6	721-1000

CATEGORY DEFINITION

Occupational categories were repealed by the Public Service Reform Act (PSRA), effective April 1, 1993. Therefore, the occupational category definitions have been deleted from the classification standards.

GROUP DEFINITION

For occupational group allocation, it is recommended that you use the [Occupational Group Definition Maps](#), which provide the 1999 group definition and their corresponding inclusion and exclusion statements. The maps explicitly link the relevant parts of the overall 1999 occupational group definition to each classification standard.

MEDIATION/CONCILIATION OFFICER SUB-GROUP DEFINITIONInclusions

Positions included in this sub-group are those in which the incumbents provide conciliation and mediation services with regard to collective bargaining and industrial relations disputes pursuant to Sections 164, 195 and 197 of the Canada Labour Code (Part V) and are excluded from collective bargaining.

Exclusions

Positions excluded from this sub-group are those in which any of the following are of primary importance:

- the provision of industrial relation services other than mediation and conciliation;
- the provision of arbitration services;
- the provision of technical or other support services in support of mediation and conciliation functions.

RATING PLAN

(Factor Definitions and Rating Scales)

KNOWLEDGE FACTOR

This factor measures the program/technical and administrative knowledge required to perform the duties of the position.

DefinitionsProgram and Specialized/Technical

"Program Knowledge" considers the depth and breadth of knowledge in one or more programs in such areas as rules, procedures, operations, objectives, policies and legislation including inter- relationships with other departments, agencies, levels of government or the private sector.

"Specialized/Technical Knowledge" considers the depth and breadth of knowledge in areas such as accounting, statistics, informatics, socio-economics, which is neither program specific nor considered under "General Administration Knowledge".

"General Administration Knowledge" considers the depth and breadth of knowledge in one or more administrative (internal support) areas, such as finance, personnel, property and accommodations management, purchasing, telecommunications, word and data processing, printing and reproduction, records management, mail service, facilities and equipment maintenance, transportation, fire protection, and health and safety.

Notes to Raters

The degrees of the General Administration Knowledge Element assigned to the benchmarks have been established by ranking the total administration knowledge requirements in these positions. The degree of the element tentatively selected is to be confirmed by direct comparison of the position being rated with the duties and specifications of the bench-marks exemplifying that degree.

PROGRAM AND SPECIALIZED/TECHNICAL

GENERAL ADMINISTRATION	PROGRAM AND SPECIALIZED/TECHNICAL				
	A	B	C	D	E
	Knowledge of a limited number of established rules, procedures or operations.	Knowledge of a body of established rules, procedures or operations; or limited knowledge of various rules, procedures, or operations; or limited knowledge of a specialized/technical occupation.	Knowledge of an extensive body of rules, procedures or operations; or knowledge of a number of bodies of dissimilar rules, procedures or operations; or knowledge of the concepts and methodology of a specialized/technical occupation.	Comprehensive knowledge of an extensive body of rules, procedures or operations; or comprehensive knowledge of a number of sets of dissimilar rules, procedures or operations; or good knowledge of the principles, concepts and methodology of a specialized/ technical occupation; or good knowledge of program policies, objectives and governing legislation.	Thorough knowledge of the principles, concepts and methodology of a specialized/technical occupation; or thorough knowledge of program policies, objectives and governing legislation.
Limited	Immigration Examination Officer (20) Collection Contact Officer (25)	District Estates & Membership Officer (1) Traffic Officer, Highway Transport (5) Immigration Counsellor (18) Insurance Agent 11 (19) Source Deductions Auditor (21) District Licensing Administrator (28) Citizenship Officer (29) Customs Inspector (31)	Drawbacks Specialist (10) Training & Development Officer (12) Benefit Programs Officer (17) Field Examiner (30)	Advisory & Monitoring Officer (9) Late and Non-Filer Programs Officer (24) Senior Entitlement Officer (27)	Tariff Classification Policy Specialist (7)
1	81	136	191	246	301
Moderate	Office Manager/ Adjudicator (3)	Supervisor, Self and Assisted Services (15)	Supervisor, Employment Services (16) Collections Enforcement Supervisor (22)	Regional Manager, Investigation & Control (14) Chief, ATIP (26)	Director, Compliance Division (4g) Chief, Corporation Assessing (23)
2	114	169	224	279	334
Significant			Airport Manager, Victoria (2) Chief, Passenger Terminal Operations (8)		
3	147	202	257	312	367
Major				Manager, Winnipeg District (6) Chief, Verification & Collections, Hamilton (11) CEC Manager, Saskatoon (13)	
4	180	235	290	345	400

DECISION MAKING FACTOR

This factor measures the responsibility for decision making in terms of scope and impact.

Definitions

"Decisions" relate to the requirement to take particular courses of action within the authority delegated to the position, to recommendations to superiors and to line officers to follow particular courses of action, and to shared decisions and recommendations in which the incumbent is an effective participant.

"Scope" refers to the freedom to make decisions. The extent is measured in terms of the judgement and initiative required to identify and resolve problems, the availability of direction, and the difficulty of determining the implications of possible courses of action.

"Impact" measures the effect of decisions on program(s) or program delivery. It also measures the effect of decisions on the public, on industry or on other government or private agencies. The impact of decisions cannot extend beyond the area(s) of consideration, i.e., inadvertent impacts are not to be rated.

In that the degree definitions for both the Scope and Impact Elements are broad and designed to encompass a range of positions, identical ratings under one of the elements may be warranted when evaluating junior and senior officer positions or when considering supervisory and subordinate positions.

DECISION MAKING

Scope				
Impact	A	B	C	D
Decisions are made within detailed and readily applicable rules, practices and procedures. Some initiative and judgement are required in their application, in the conduct of limited or routine fact-finding or investigation, or in the provision of information.	Decisions are made within the framework of established precedents or guidelines. Initiative and judgement are required in the conduct of more complex fact-finding or investigation, the evaluation of possible courses of action, or the provision of advice.	Decisions are made within the framework of established programs or functions. Initiative and judgement are required in the resolution of problems which lack precedent or are difficult to define.	Decisions are made within the framework of broadly defined objectives and/or program policies. Initiative and judgement in the development of solutions to interrelated problems are required where the implications are difficult to determine.	
Decisions affect own work, individual clients, single cases or otherwise have restricted application. Proposals or recommendations impact on the work of own section or unit, or have wider application, e.g., groups or classes.	Traffic Officer, Highway Transport (5) Immigration Examination Officer (20) Collection Contact Officer (25) Citizenship Officer (29) Customs Inspector (31)	District Estates & Membership Officer (1) Immigration Counsellor (18) Insurance Agent 11 (19) Source Deductions Auditor (21) Field Examiner (30)	Drawbacks Specialist (10)	
1	69	114	159	204
Decisions impact on the work of the section or unit, or affect groups or classes of people or cases, or otherwise have wider application. Proposals or recommendations impact on established operating guidelines.	Officer Manager/Adjudicator, Passports (3) Supervisor, Self and Assisted Services (15) District Licensing Administrator (28)	Training & Development Officer (12) Supervisor, Employment Services (16) Benefit Programs Officer (17) Collections Enforcement Supervisor (22)		
2	101	146	191	236
Decisions impact on operating guidelines, or have wide spread application, e.g. specified geographical areas or industrial sectors, or impact on significant departmental entities. Proposals or recommendations impact on program policy formulation, program design or operation.		Chief, Passenger Terminal Operations (8)	Airport Manager, Victoria (2) Advisory & Monitoring Officer (9) Regional Manager, Investigation and Control (14) Late and Non-File Programs Officer (24) Chief, ATIP (26)	Senior Entitlement Officer (27)
3	133	178	223	268
Decisions impact on program or operational policy or design, or on major aspects of national programs, or on major departmental entities.			Manager, Winnipeg District (6) CEC Manager, Saskatoon (13) Chief, Verification & Collections, Hamilton (11)	Director, Compliance Division (4) Tariff Classification Policy Specialist (7) Chief, Corporation Assessing (23)
4	165	210	255	300

OPERATIONAL RESPONSIBILITY

This factor measures responsibility for work performed by others in terms of the nature of responsibility. For the higher degrees size and complexity of the subordinate organization are also considerations.

"Nature of Responsibility" has two aspects:

1. line responsibility which includes such functions as the selection and training of personnel; the assignment of work; the maintenance of follow-up to assure adequate performance; and the carrying out of the various personnel functions as appropriate to the organizational structure and level of delegation;
2. functional or staff responsibility which includes such functions as the assessment of present or proposed policies, programs, methods and procedures; the interpretation of policies and practices; the development of appropriate systems and procedures and the appraisal of their effectiveness.

Notes to Raters

The degree definitions for Nature of Responsibility reflect a level of supervisory or functional responsibility; raters are to assign the level that best corresponds with the responsibilities of the position being evaluated; this includes responsibility for work carried out under contract.

Complexity of organizations is assessed by considering such aspects as: variety of activities; multiplicity of programs or functions; shift operations; fluctuating work force; and geographical dispersion.

Raters are to determine the nature of responsibility first and then refer to the appropriate bench-marks to determine the rating to be assigned under Complexity and Size. The terms "large" and "complex" are relative and are to be considered consistent only within the specific degree, i.e., large or complex organizations envisaged as warranting Degree D2 or D3 are significantly less large or less complex than organizations warranting Degrees E1, E2 or E3.

Functional or staff positions evaluated at Degrees D or E under nature of responsibility will be assigned the minimum points for the degree in that complexity and size of subordinate organizations are not major considerations.

When the duties of a position entail operational responsibility for a widely fluctuating work force the rating assigned will reflect the nature required for the expanded work force with the relative size and complexity based on the authorized person/year establishment.

OPERATIONAL RESPONSIBILITY

Nature of Responsibility	Degree/ Points	Nature and Size of Subordinate Organization & Bench-marks
<u>Line or Staff</u> Responsibility is primarily for own work. The provision of incidental guidance to other staff may be required.	A 10	District Estates and Membership Officer (1) Traffic Officer, Highway Transport (5) Drawbacks Specialist (10) Training and Development Officer (12) Immigration Counsellor (18) Insurance Agent II (19) Immigration Examination Officer (20) Source Deductions Auditor (21) Collection Contact Officer (25) Citizenship Officer (29) Field Examiner (30) Customs Inspector (31)
<u>Line</u> Works as a leader of a small group where primary responsibility is for the conduct of personal work; or responsibility is primarily for own work but there is intermittent responsibility for the work of others, such as in phases of projects or in coordination of project teams. or <u>Staff</u> Responsibility is for providing advice on a continuing basis with respect to the interpretation and application of policies and procedures administered by others.	B 20	District Licensing Administrator (28)
<u>Line</u> Responsibility is continuous, i.e., planning and assigning work, reviewing work during performance or upon completion, evaluating performance of subordinates and providing guidance on improvement. May be required to make budgetary recommendations. or <u>Staff</u> Responsibility is for determining the adequacy of operational policies and procedures administered by others and for appraising the effectiveness of operations.	C 40	Office Manager/Adjudicator, Passports (3) Supervisor, Self and Assisted Services (15) Supervisor, Employment Services (16) Benefit Programs Officer (17) Collections Enforcement Supervisor (22)
<u>Line</u> Responsibility is typically exercised through subordinate supervisors, and involves such aspects as: adjusting workloads, modifying operating procedures, allocating resources to meet changes in work priorities and/or volume, ensuring that established personnel policies are carried out. or <u>Staff</u> Responsibility is for developing program or operational policies and procedures administered by others and ensuring their correct interpretation and application.	D1 60	<u>Relatively small organization</u> Advisory and Monitoring Officer (9) Regional Manager, Investigation and Control (14) Late and Non-Filer Programs Officer (24) Chief, ATIP (26) Senior Entitlement Officer (27)
	D2 75	<u>Moderately complex or moderately large organization</u>
	03 90	<u>Complex or large organization</u> Airport Manager, Victoria (2) Chief, Passenger Terminal Operations (8)
<u>Line</u> Responsibility is exercised through subordinate supervisors or Managers and normally involves the planning, directing and controlling of human and financial resources and requires a significant degree of co-ordination. or <u>Staff</u> Responsibility is for the development or modification of program function(s) to be administered by others.	E1 110	<u>Complex or large organization</u> Director, Compliance Division (4) Tariff Classification Policy Specialist (7) Chief, Corporation Assessing (23)
	E2 130	<u>Complex and large organization</u> Manager, Winnipeg District (6) Chief, Verification & Collections, Hamilton (11)
	E3 150	<u>Complex and very large organization</u>

CONTACTS FACTOR

This factor is used to measure the difficulty and importance of external and internal contacts that occur as an integral part of the work and the requirements imposed by these contacts to work and communicate with others in person, by telephone or in writing.

Contacts necessitated by direct supervision are not to be considered.

Internal contacts will not normally be rated above Degree 2.

CONTACTS FACTOR

Nature of Responsibility	Degree/ Points	Bench-marks
Discussion and explanation are normally required in giving, obtaining and exchanging information.	1 30	Supervisor, Self and Assisted Services (15) Immigration Examination Officer (20) Citizenship Officer (29)
Discussion and explanation are required in influencing, persuading or obtaining compliance, carrying out fact finding and other investigations, providing substantive advice or interpretation.	2 70	District Estates and Membership Officer (1) Office Manager/Adjudicator, Passports (3) Traffic Officer, Highway Transport (5) Drawbacks Specialist (10) Training & Development Officer (12) Supervisor, Employment Services (16) Benefit Programs Officer (17) Immigration Counsellor (18) Insurance Agent 11 (19) Source Deductions Auditor (21) Collections Enforcement Supervisor (22) Collection Contact Officer (25) Chief, ATIP (26) District Licensing Administrator (28) Field Examiner (30) Customs Inspector (31)
Consult, confer, reach agreement on, or obtain commitment on matters of considerable complexity or significance.	3 110	Airport Manager, Victoria (2) Manager, Winnipeg District (6) Chief, Passenger Terminal Operations (8) Advisory & Monitoring Officer (9) Chief, Verification & Collections, Hamilton (11) CEC Manager, Saskatoon (13) Regional Manager, Investigation & Control (14) Late and Non-Filer Programs Officer (24) Senior Entitlement Officer (27)
Negotiate, reach agreement on, or obtain commitment in the resolution of complex matters of major significance.	4 150	Director, Compliance Division (4) Tariff Classification Policy Specialist (7) Chief, Corporation Assessing (23)

BENCH-MARK POSITION INDEX
(Descending Point Order)

<u>BM#</u>	<u>Position Title</u>	<u>Knowledge</u>	<u>Decision Making</u>	<u>Operational Responsibility</u>	<u>Contacts</u>	<u>Total</u>
4	Director, Compliance Division	E2/334	D4/300	E1/110	4/150	894
23	Chief, Corporation Assessing	E2/334	D4/300	E1/110	4/150	894
7	Tariff Classification Policy Specialist	E1/301	D4/300	E1/110	4/150	861
6	Manager, Winnipeg District	D4/345	C4/255	E2/130	3/110	840
11	Chief, Verification & Collections, Hamilton	D4/345	C4/255	E2/130	3/110	840
13	CEC Manager, Saskatoon	D4/345	C4/255	E2/130	3/110	840
27	Senior Entitlement Officer	D1/246	D3/268	D1/60	3/110	684
2	Airport Manager, Victoria	C3/257	C3/223	D3/90	3/110	680
14	Regional Manager, Investigation and Control	D2/279	C3/223	D1/60	3/110	672
9	Advisory & Monitoring Officer	D1/246	C3/223	D1/60	3/110	639
24	Late and Non-Filer Programs Officer	D1/246	C3/223	D1/60	3/110	639
8	Chief, Passenger Terminal Operations	C3/257	B3/178	D3/90	3/110	635
26	Chief, ATIP	D2/279	C3/223	D1/60	2/70	632
16	Supervisor, Employment Services	C2/224	B2/146	C/40	2/70	480
22	Collections Enforcement Supervisor	C2/224	132/146	C/40	2/70	480
17	Benefit Programs Officer	C1/191	132/146	C/40	2/70	447
10	Drawbacks Specialist	Cl/191	Cl/159	A/10	2/70	430
12	Training & Development Officer	C1/191	B2/146	A/10	2/70	417
30	Field Examiner	C1/191	131/114	A/10	2/70	385
15	Supervisor, Self & Assisted Services	132/169	A21101	C/40	1/30	340
1	District Estates & Membership Officer	131/136	131/114	A/10	2/70	330
18	Immigration Counsellor	81/136	131/114	A/10	2/70	330
19	Insurance Agent II	131/136	131/114	A/10	2/70	330
21	Source Deductions Auditor	131/136	131/114	A/10	2/70	330
28	District Licensing Administrator	81/136	A2/101	B/20	2/70	327
3	Office Manager/Adjudicator, Passports	A2/114	A2/101	CAD	2/70	325
5	Traffic Officer, Highway Transport	131/136	A1/69	A/10	2/70	285
31	Customs Inspector	131/136	A1/69	A/10	2/70	285
29	Citizenship Officer	131/136	A1/69	A/10	1/30	245
25	Collection Contact Officer	Al/81	A1/69	A/10	2/70	230
20	Immigration Examination Officer	Al/81	A1/69	A/10	1/30	190

OCCUPATIONAL POSITION DESCRIPTION

Descriptive Title: Mediation/Conciliation Officer

As assigned, provides third-party conciliation and mediation services to employee bargaining agents and management of industries in the private sector which are under Federal jurisdiction, such as railways, airlines, shipping, banking and radio-television broadcasting, to assist the parties to reach agreement on the terms of first and renewal collective agreements governing their working relationships, and to assist in the resolution of industrial relations problems surfacing during the life of agreements.

Meets with the parties to initiate the conciliation process by identifying the areas of dispute, particularly the major issues which are potential barriers to settlement, and the existence of any "real" or underlying issues, and to determine the most practical or potentially successful approach, considering not only the issues but the history of the dispute and the personalities involved. Chairs joint meetings or meets with the parties separately to bring them to a settlement or attempt to broaden the areas of agreement and narrow the areas of disagreement in such disparate aspects as wage rates, incentive schemes and other economic and financial considerations; working and environmental conditions; types of employment; career advancement; and technological changes.

Assesses progress, consolidates successes, and actively pursues areas where agreement appears close. Maintains a positive atmosphere conducive to successful negotiating through the establishment of confidence and harmonious working relationships, the skillful timing of the introduction or changes of topics, and the application of accepted and innovative mediation/conciliation techniques and practices, particularly in complex or unusual cases. Decides when mediation or conciliation has served its usefulness and should be ended, and makes appropriate recommendations regarding what further dispute settlement mechanisms should be applied.

Mediates disputes where the efforts of other third-party interventions have not been successful in a further effort to resolve impasses. Advises the parties on dispute settlements options available to them under the Canada Labour Code and informs them of the various services provided by the Federal Mediation and Conciliation Service and designed to develop and promote harmonious labour-management relations.

Performs a variety of closely related duties, such as providing assessments on industrial relations situations, trends and developments in the region to provide labour relations intelligence for the guidance of senior departmental officials; investigates and seeks to mediate bargaining-related unfair labour practice allegations where requests are filed for the Minister's consent to the making of such complaints to the Canada Labour Relations Board; maintains contacts with the industrial relations community in the area to provide information and keep abreast of recent developments, and participates in academic, management and trade union seminars and similar meetings concerning the collective bargaining process and the resolution of industrial disputes; and provides technical advice, assistance and on-the-job training to newly-appointed officers. May be required to supervise the activities of junior officers and support staff, and/or provide advice and guidance to fellow conciliators.

Position Requirements

As much of the work is performed in the field, i.e., away from the normal office environment, it is characterized by a high degree of professional independence in the making of on-the-spot judgments and irreversible decisions which are not subject to effective higher-level review with respect to particular assignments. Judgments and decisions are made with regard to the commencement of the mediation or conciliation process, the identification of major or key issues, the determination and conduct of the best or most appropriate approaches to maximize the chances of settling disputes, the adaptation of established procedures or the introduction of innovative procedures to meet changing conditions, the termination of mediation and conciliation services and the making of appropriate recommendations to the Minister.

These judgments and decisions require a thorough knowledge of the laws and regulations concerning industrial relations and the settling of disputes, thorough knowledge of conciliation and mediation techniques and practices together with the ability to develop and employ extraordinary and innovative techniques to fit particularly complex situations, a good knowledge of recent developments and trends in the field of industrial relations, and a good understanding of the industry involved and the matters in dispute.

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 1

Level: 2

Descriptive Title: District Estates and Membership Officer

Point Rating: 330

Reporting to the District Superintendent of Reserves and Trusts:

Monitors the administration of estates of deceased Indians for which an Executor or Administrator is approved or an Administrator appointed; conducts the affairs of the Administrator of Estate (a) in estates where no representative is assigned, and (b) in estates of Indians who are either minors or mentally impaired. Provides advice and guidance to executors and administrators; seeks solutions or provides leadership and advice in seeking solutions to claims and disputes, involving heirs, beneficiaries, creditors and other claimants, which could lead to litigation. Investigates and takes appropriate actions on decisions taken by executors or administrators in concluding estates which may cause claims against the Crown.

Determines changes in vital statistics which impact on Band membership through contacts with Indian Bands, Health and Welfare officials and officials of the provincial government and ensures that these events are reported to the Regional Sub-registry for recording and documentation and that documented events are reported to the Membership Registrar at H.Q. Provides advice and interpretations to individuals, special interest groups, Indian Bands and associations with respect to the Indian Act and Regulations covering membership, particularly legislation directed at eliminating discriminatory aspects.

Participates in the decentralization of Band Membership functions to approved bands by developing expertise within Indian Bands through training courses and providing advice in such areas as estate administration and the preparation of wills.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

B1 / 136

Program and Specialized/Technical

The work requires a knowledge of the Minister's responsibilities and those sections of the Indian Act relating to estate administration involving such aspects as: transfer of jurisdiction; inventorying and evaluating monetary, real property and personal effects, including those not forming part of the estate; income tax and succession duties; rights of heirs, beneficiaries and secured and other creditors; predecession; distribution; investing funds; and conditions for voiding all or parts of wills. Required also is a knowledge of the rules and regulations governing Band Membership and of the legislation directed toward the removal of discrimination.

General Administration

Knowledge in this area is limited to that associated with own work or employment.

DECISION MAKING

B1 / 114

Scope

Most decisions are made within the framework of established regulations, policies and procedures. Initiative and judgement are required in the administration of estates; in monitoring the activities of executors and administrators and in investigating and taking appropriate actions on decisions by them that may lead to claims against the crown; in providing advice and guidance to executors, administrators, heirs and beneficiaries; and in developing expertise within Band organizations. Problems not clearly addressed by legislation are referred for interpretation.

Impact

Decisions impact on the effectiveness of own work and on that of estate executors and administrators which directly affect those legally entitled to assets of the estate under the provisions of a will or under intestate succession.

OPERATIONAL RESPONSIBILITY

A / 10

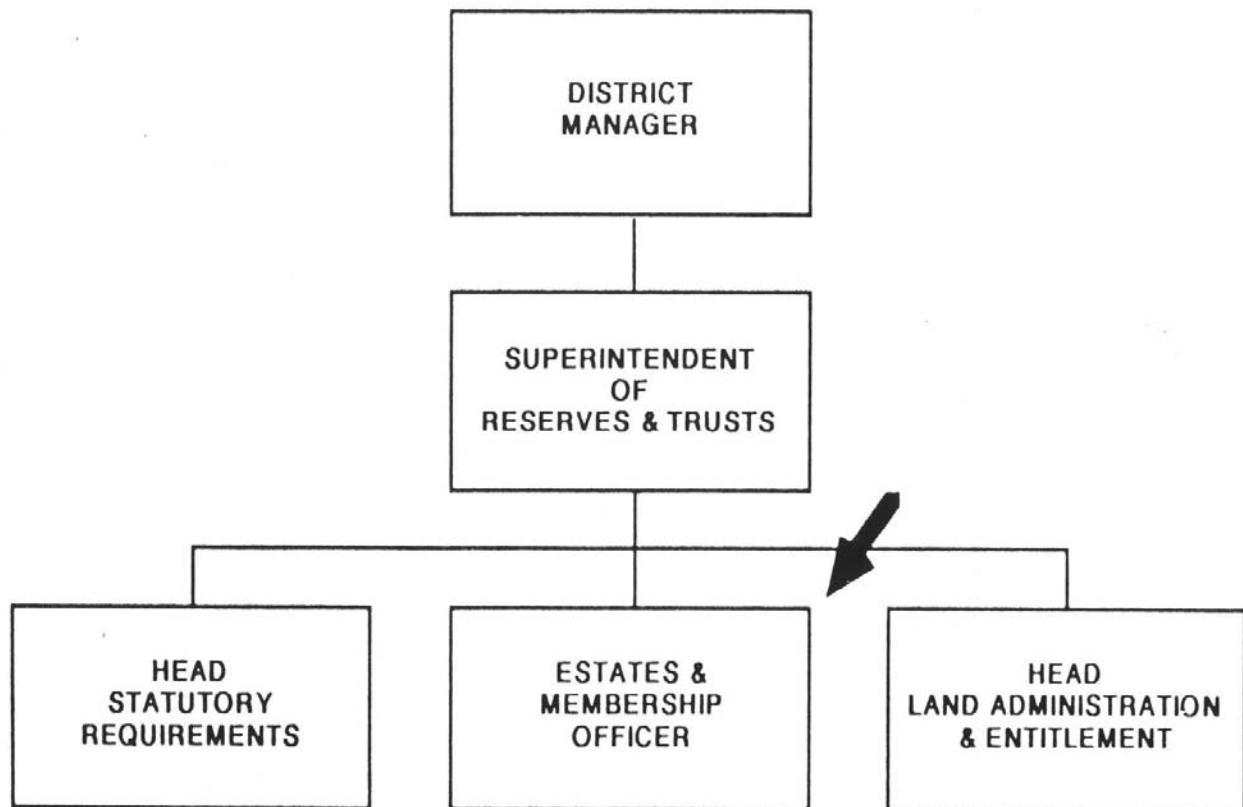
Nature of Responsibility

Responsibility is limited to own work.

CONTACTS

2 / 70

Provides advice, interpretations and instructions regarding the intent and application of the pertinent sections of the Indian Act and associated regulations governing the administrations of estates and Band Membership. Resolves disputes involving heirs, beneficiaries, creditors and other claimants. Determines changes in vital statistics impacting on Band membership through contacts with Bands and officials of other departments and the provincial government.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 2

Level: 5

Descriptive Title: Airport Manager,
Victoria

Point Rating: 680

Reporting to the Regional Manager, Airport Operations:

Directs, through three subordinate supervisors, the safe, effective and efficient operation of airport facilities and services and provides maintenance support to 11 separate and remote facility sites consistent with Canadian Air Transportation Administration (CATA) policies, standards and guidelines and with other government objectives and regulations; establishes and implements plans for the provision of facilities and services based on analyses of long-range forecasts, technological advances, changes within the industry and plans of airlines and other terminal tenants; directs the preparation and implementation of plans and measures to ensure the security of the airport's physical plant, facilities, aircraft and passengers and deter the occurrence of unlawful acts such as hijacking, sabotage and bomb threats; oversees the enforcement of a number of acts including the Criminal Code of Canada, Airport Vehicle Control Regulations and Air Regulations; directs the preparation of the airport emergency plan and coordinates the activities of all responding agencies in emergency situations.

Oversees the development of the Site Master Plan and submits the final plan for senior management approval; suggests land uses, reviews leasing proposals, maintains an awareness of new initiatives and developments in airport operations and in other marketing sectors, arranges for market research, and negotiates lease terms and conditions to optimize real estate and concession revenues.

Directs the development of the annual estimates and long range forecasts for financial requirements; approves the annual budget estimates and allocates funds to the various cost centres based on work plans and priorities; analyses periodic operating and financial reports, adjusts priorities and re-allocates funds and human resources to meet changing commitments; establishes effective systems to monitor and control site expenditures and the timely receipt of revenues; within predetermined limits establishes the priority of the airport capital program and the delivery of capital projects.

Interprets Transport Canada standards to determine the facilities to be maintained and the level of maintenance; directs the implementation of the Airport Maintenance Management System and approves work plans and allocates resources to meet maintenance objectives in the electrical, mechanical, structural, mobile and airfield maintenance areas; negotiates with others, e.g., Atmospheric Environment Service or Customs, on the maintenance to be provided at the airport or at remote sites and develops and implements an appropriate maintenance schedule.

Acts as the designated senior official of Transport Canada with Federal, Provincial and local government agencies, airport users, community groups, the public and the media for such purposes as to provide information and advice, resolve operational problems or tenant complaints and facilitate the movement or handling of passengers.

SPECIFICATIONSKNOWLEDGE

C3 / 257

Program and Specialized/Technical

The work requires: knowledge of CATA policies, standards and guidelines governing the operation, maintenance and security of the airport; knowledge of airport and aviation technology as it impacts on airport operations; knowledge of property management and a knowledge of the trade practices applicable to maintenance of large buildings, elevators, escalators, conveyors, runways, roads, parking lots, airport lighting and utility services, etc.; knowledge of Crash, Fire and Rescue equipment and procedures; a knowledge of marketing to negotiate and develop new concessions and revenue sources; and a knowledge of the operational needs of other departments such as Environment Canada and Customs and Excise.

General Administration

A knowledge of financial administration is required to manage a self-supporting airport together with knowledge of personnel functions as applicable to a staff of 34 in six occupational groups. Knowledge in other administration areas such as purchasing, inventory control, telecommunications, mail and records keeping is also required.

DECISION MAKING

C3 / 223

Scope

Decisions and recommendations are made with respect to the operation, maintenance and security of the airport, the maintenance of 11 remote sites, and the safety of the various users. Initiative and judgement are required in: interpreting policies, standards and guidelines; directing the allocation of financial and personnel resources; developing long range forecasts of user requirements and the Site Master Plan; negotiating leases with users and concessionaires; negotiating levels of maintenance at remote sites with officials of other government departments; directing the preparation of security procedures and coordinating the activities of the agencies responsible for responding to emergencies; and in providing information and advice to concerned parties such as government officials, users and community groups.

Impact

Decisions affect the operation of the airport, the maintenance level of facilities at the site and at 11 remote installations, the safety of users including the travelling public, the effective utilization of financial and human resources, and the profitability of airport operations.

OPERATIONAL RESPONSIBILITY

D3 / 90

Nature of Responsibility

The work is accomplished through three subordinate supervisors and entails planning long and short-term human resource requirements, selecting and training employees, setting individual objectives, assigning and establishing hours of work to cover 24-hour operations, appraising or reviewing the appraisals of subordinate staff, acting as Step I in the grievance process and taking disciplinary action as required, implementing the Central Agency's Occupational Health and Safety Program and ensuring the Department's Special Employment Program is implemented on site.

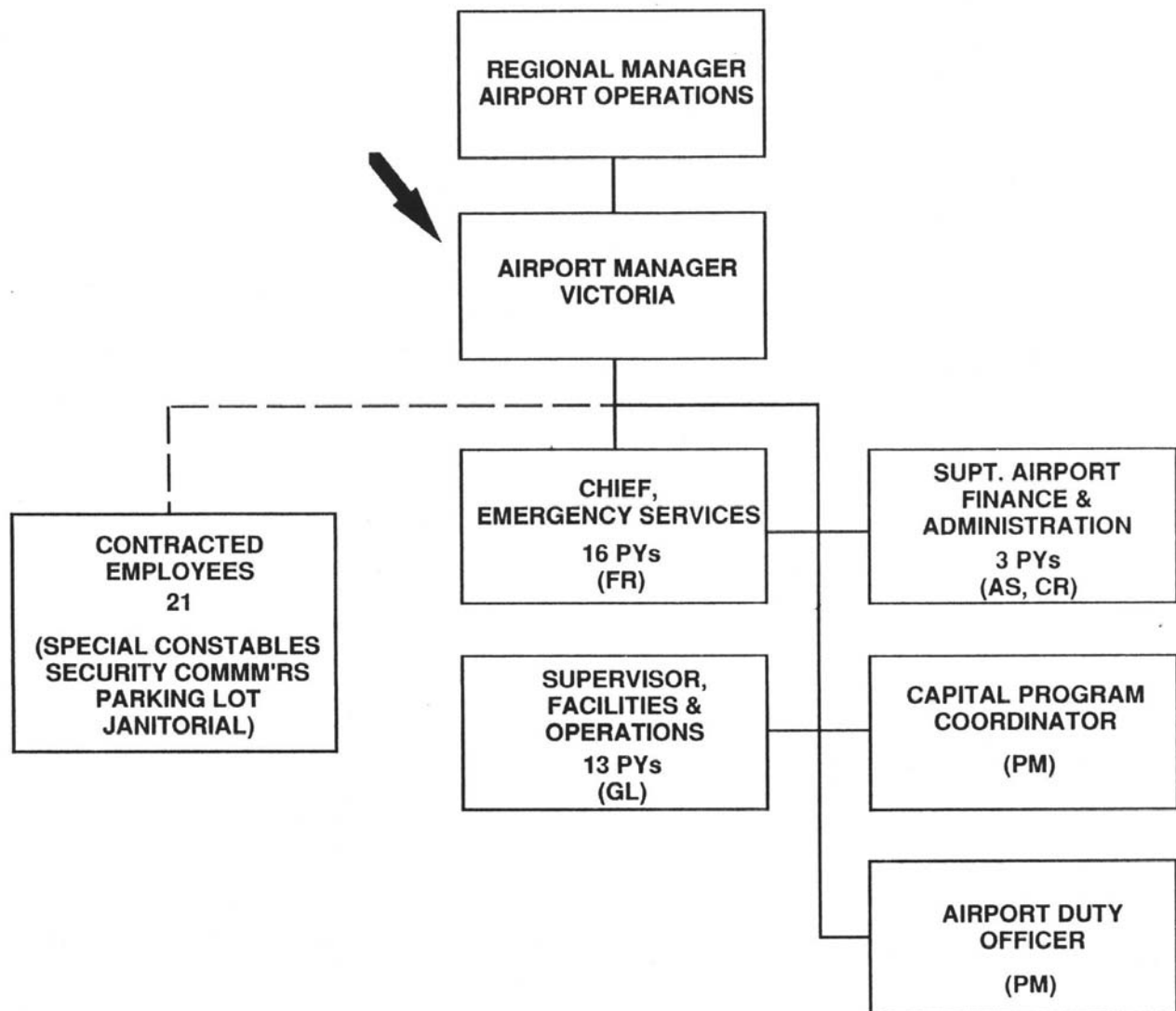
Complexity and Size of Subordinate Organization

Duties entail responsibility for the employment of 34 subordinates engaged in providing grounds, building and facility maintenance, firefighting services and central administration at the airport, as well as responsibility for maintenance and/or cleaning at 11 remote sites including Nanaimo, Comox, Campbell River and Tofino. The work also involves the deployment of Commissionaires and RCMP security personnel assigned to the airport and the effective management of private sector maintenance and parking contracts.

CONTACTS

3 / 110

Consultation is required with local government officials regarding the provision of common utilities to the airport and to coordinate the provision of emergency services. There is a frequent requirement to liaise with officials of other government departments, e.g., Fisheries and Oceans, Environment Canada, and the Canadian Coast Guard regarding shared facilities and the level of maintenance. The work entails negotiations with users, concessionaires and private sector maintenance contractors. There is also a requirement to provide advice or information to the various users of airport services and to the general public.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 3

Level:2

Descriptive Title: Office Manager/Adjudicator,
Passports

Point Rating: 325

Reporting to the Regional Director:

Directs the work of a staff engaged in the examination of passport applications, the issuing of passports and the collection and control of fees. Provides advice and guidance to examiners and resolves difficult or special cases referred by examiners involving such aspects as alternative documentation, probationary adoptions, custody of children, guarantor eligibility, length of validity, suspected fraud or evasion, and extenuating circumstances supporting urgent requests. Explains reasons for decisions and provides procedural advice to applicants regarding further possible courses of action. Acts as internal security officer to ensure the security of passport blanks, confidential documents and office premises and assists the Regional Director in performing a supportive role in consular, protocol, information and other activities. Assumes responsibility for the operation of the Regional Office during absences of the Director.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

A2 / 114

Program and Specialized/Technical

The work requires a knowledge of the Passport Regulations and related policies, procedures and practices as well as a knowledge of a variety of other Federal and Provincial statutes, in areas such as citizenship, immigration, adoption, legitimacies, and change of name. Required also is a knowledge of the entry requirements and nationality laws of other countries as well as other related protocols governing international and consular practices.

General Administration

The work requires knowledge of the applicable personnel policies dealing with attendance, pay, appraisal and staffing. Required also is a knowledge of petty cash administration and security procedures. The work entails also requisitioning of supplies, recommending changes to improve personnel space and equipment usage, and preparing periodic reports.

DECISION MAKING

A2 / 101

Scope

Advice and guidance is provided to examiners and to other subordinate staff engaged in the processing of passports. Initiative and judgement are required in assigning staff and coordinating the flow of work through the various related activities, in assessing

the effectiveness and efficiency of operations and in ensuring compliance with Passport Office policies, procedures and practices. Judgement is required also in resolving the more difficult and special applications and in investigating and replying to various kinds of complaints, including those from MPs, MLAs and the business community concerning alleged differences in passport services.

Impact

Decisions are made with respect to the organization and allocation of work and advice and guidance is provided to subordinate staff in the application or interpretation of passport regulations, policies and departmental procedures and practices. Resolution of the more complex applications determines whether passport issuances are delayed, are issued for a full five year period, issued for a limited duration or not at all.

OPERATIONAL RESPONSIBILITY

C / 40

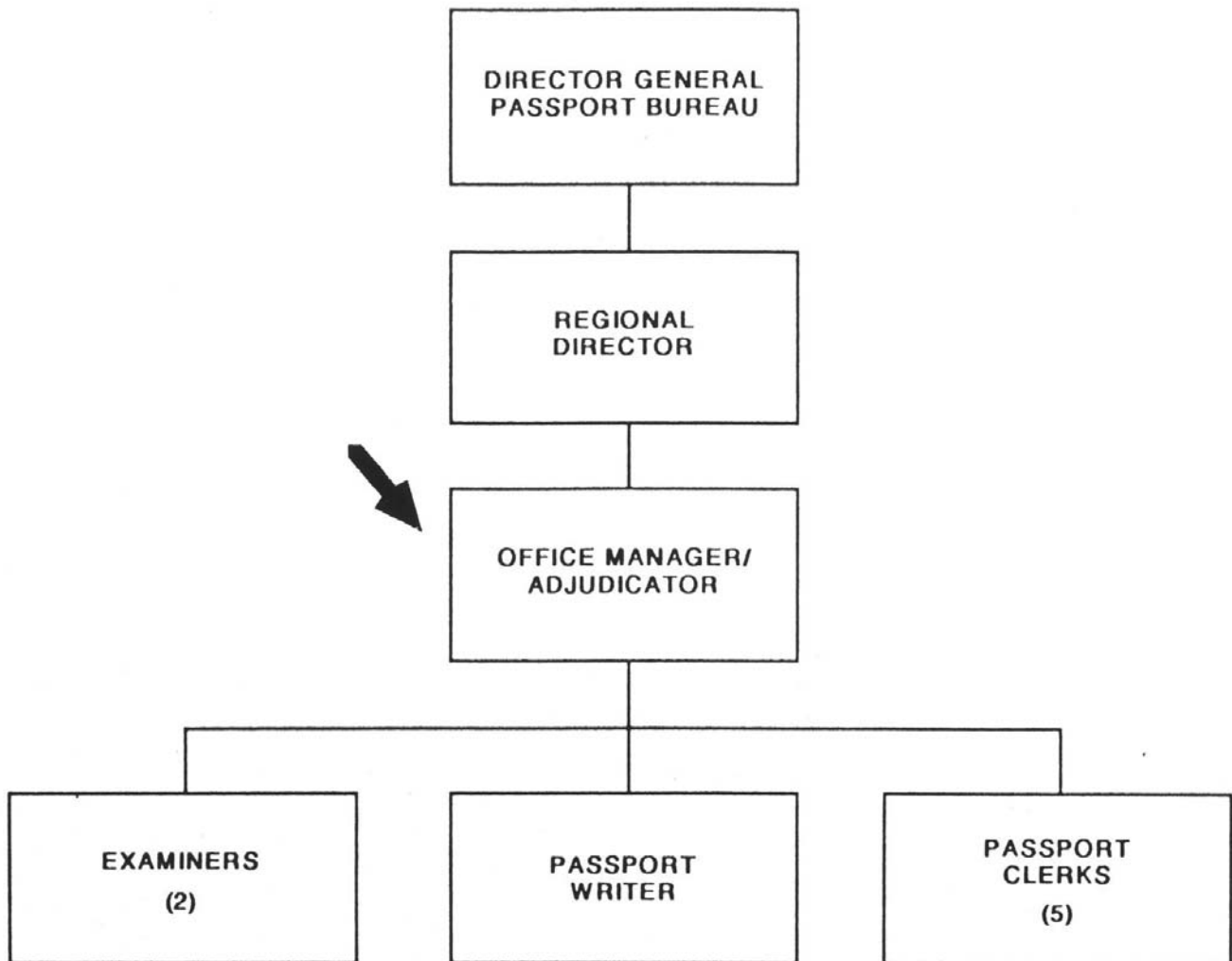
Nature of Responsibility

Responsibilities include the allocation and coordination of work, the review of operations at all stages for quality and to ensure completion within established time frames, the analysis and implementation of amendments to policies and procedures, the provision of instruction and advice to examining and production staff, the on-going evaluation of subordinate staff and participation in the formal appraisal and staffing processes.

CONTACTS

2 / 70

Obtains additional information directly from RCMP, city police forces, Vital Statistics and Attorney General departments of provincial governments to resolve complex and expedite urgent cases. Explains reasons for decisions and provides advice regarding further possible courses of action to applicants, their representatives and interest groups to ensure that applicants receive full entitlement under the various statutes.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 4

Level: 6

Descriptive Title: Director, Compliance Division

Point Rating: 894

Reporting to the Assistant Deputy Minister:

Directs investigations of infractions of Acts administered by the Branch and all criminal allegations of an internal nature involving Branch employees. Develops and establishes compliance policies, procedures, investigational standards, techniques, methodology and the utilization of resources. Directs research, analysis and investigations to determine the threat or potential threat posed by criminal activities and recommends effective remedial action, legislative amendments, prosecution that will have a direct market or competitive effect on companies or individuals or withdrawal of prosecution action where the circumstances do not further the means of Justice.

Directs the development and presentation of educational exercises aimed at infractions against the Acts and Regulations administered by the Branch to key field personnel, Provincial Agriculture representative and law enforcement agencies.

Determines through investigative means whether a criminal violation or breach of discipline exists regarding complaints against Branch employees, recommends investigated criminal violations be referred for criminal charges and breach of discipline appropriately handled by supervisors who have access to expertise from Compliance Division. Monitors internal investigations, makes recommendations to agencies involved in the enquiries and facilitates such enquiries within the adjudication, responds to requests for special investigations and determines the parameters of such inquiries. Directs the preparation and presentation of briefing material and personnel briefings for use of Senior Management involving criminal violations against Branch employees.

Develops and promotes effective working relationships with Branch Heads, Regional Managers, Directors General to ensure cooperation and compliance on all matters involving criminal, civil actions involving Branch employees. Recommends specific investigative functions, develops and promulgates policy and procedures that best reflect professional judgement and circumstances that aid in defence of civil suits brought against the Department or its employees.

Develops and promotes effective liaison with other government and law enforcement agencies, to ensure close and active cooperation on the exchange of criminal information. Obtains assistance from other enforcement agencies to effect program compliance, backup, access to premises, searches. Negotiates written agreements with other enforcement agencies to suppress illegal activities emanating in Canada. Coordinates joint investigations and obtains commitments from major enforcement agencies regarding decisions respecting enforcement methods, human resource deployment and tasks, analysis of evidence, joint charges, and follow up recommendations involving preventative policy changes and legislative requirements. Promotes liaison with Federal Crown Counsel to ensure priority for Agriculture prosecutions, consistency of presentations and availability of justice representation.

Supervises employees of the Division and project personnel on a case by case basis. Assigns workloads, counsels, sets standards of conduct and administers a specified budget.

SPECIFICATIONS

KNOWLEDGE

E2 / 334

Program and Specialized/Technical

The work requires knowledge of the Acts and Regulations administered by the Department of Agriculture, investigative standards, techniques and methodology in respect to criminal investigations as well as case law, Department of Justice publications, periodicals of a professional nature such as the Canadian Chiefs of Police Association. The Acts and Regulations subject to enforcement include: the Animal Disease and Protection Act, Canadian Agricultural Products Standard Act, Canada Dairy Products Act, Criminal Code (Section 188, Racetrack Supervision), Feeds Act, Fertilizers Act, Fruit Vegetable and Honey Act, Hay and Straw Inspection Act, Humane Slaughter of Food Animals Act, Inspection and Sale Act, Livestock Pedigree Act, Maple Products Industry Act, Meat Inspection Act, Milk Test Act, Pest Control Products Act, Pesticide Residue Compensation Act, Plant Quarantine Act and the Seeds Act. The work also requires a knowledge of federal, provincial and municipal law enforcement agencies and international law enforcement agencies such as the US Border patrol and US Department of Agriculture investigative agencies.

General Administration

The work requires knowledge of departmental financial and administrative directives to manage the Division budget and review the expenditures of regional investigative staff. Also required is knowledge of personnel management practices in order to effectively organize and utilize the human resources of the Division which is dispersed to regional offices across Canada.

DECISION MAKING

D4 / 300

Scope

Decisions are made in accordance with objectives established by the Assistant Deputy Minister and involve developing and implementing a compliance program to investigate incidents involving infractions of the Acts and Regulations administered by the Department. Initiative and judgement are exercised in initiating remedial action to criminal activities which involves program or policy changes, legislative amendments, prosecution or withdrawal of prosecution action which substantially affect existing policy, programs, budgetary programs and established legislation.

Impact

Decisions directly impact on the quality and timeliness of research, analysis and investigations necessary to determine the threat or potential posed by criminal activities involved in the agriculture industry. Prosecution actions have a direct market or competitive effect on companies or individuals involved in the agriculture industry.

OPERATIONAL RESPONSIBILITY

Nature of Responsibility

The work requires establishing standards of enforcement and performance, assessing the effectiveness of the program and utilization of resources; providing functional guidance and investigative direction to headquarters and regional managers regarding infractions of a criminal nature; ensuring that the delivery of compliance services is in accordance with established standards and directing the development and presentation of educational exercises.

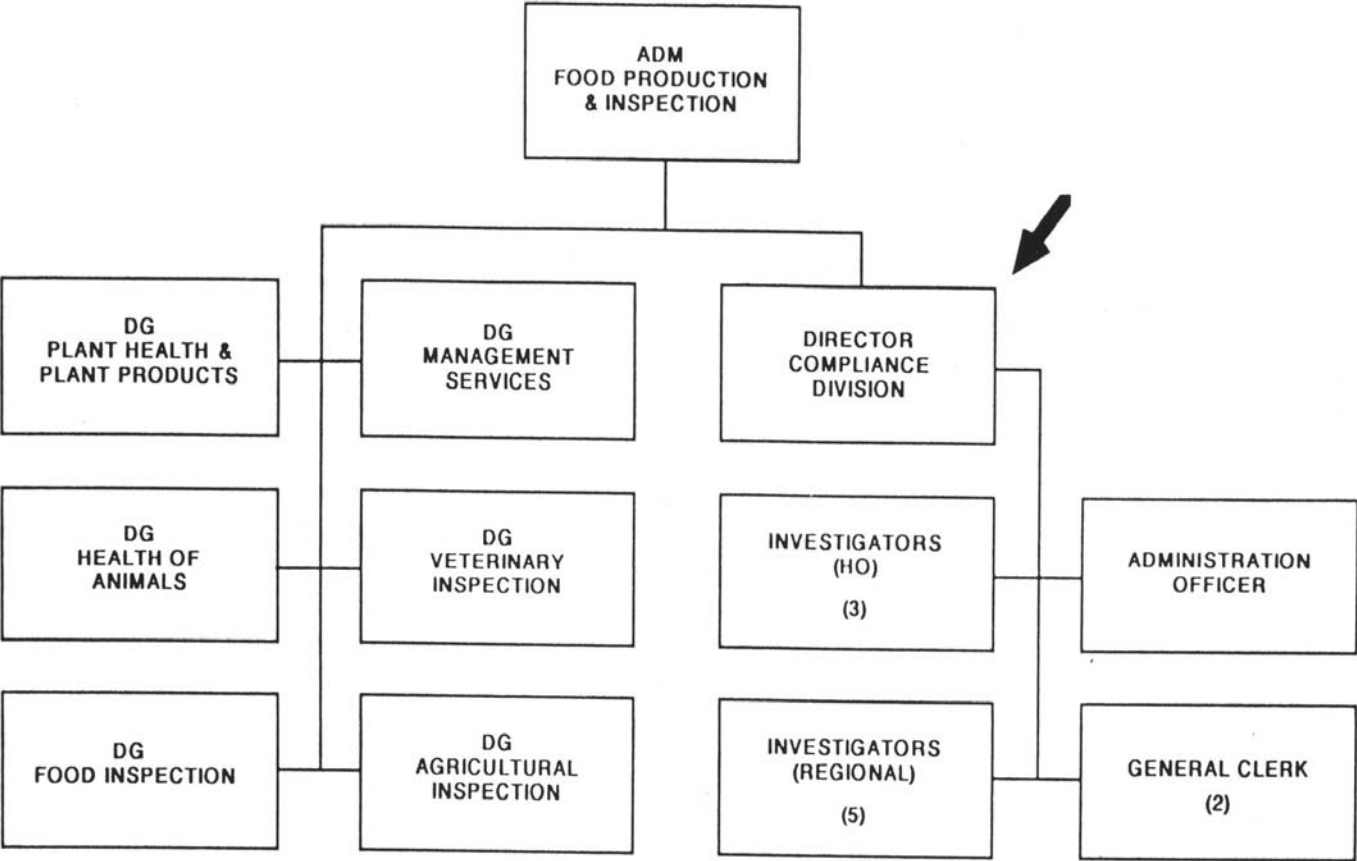
Complexity and Size of Subordinate Organization

N/A

CONTACTS

There is a requirement to negotiate agreements with other law enforcement agencies such as the RCMP, Ontario Provincial Police, US Border Patrol and US Department of Agriculture to participate in investigations pertaining to violations of agricultural acts and regulations and suppress illegal activities. Coordinates joint investigations and obtains commitment from major enforcement agencies respecting enforcement methods, manpower deployment and tasks, joint charges, and follow-up recommendations involving preventative policy changes and legislative requirements.

Agreements are also negotiated with the RCMP and Revenue Canada involving the sharing of information by automated means for enforcement of laws administered by Agriculture Canada governing the exportation and interprovincial movement of agriculture products and animals.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 5

Level: 1

Descriptive Title: Traffic Officer
Highway Transport

Point Rating: 285

Reporting to the Supervisor, Highway Transport, at Headquarters:

Audits subsidy claims submitted under the Atlantic Freight Assistance Act, Regulations and Directives.

Checks carrier file for eligibility, licenses to ensure freight rates and charges are correct and appropriate subsidy factors applied. Processes valid claims for payment and completes control forms, completes certificates of payment, recommends the conduct of field audits and prepares background material for the audit group when deemed appropriate. Provides advice and interpretations regarding the intent and application of the ARFA Act, regulations and directives. Obtains additional information from carriers, tariff publishing agencies and provincial licensing authorities, shippers and consignees, as appropriate, to verify details on complex claims for full particulars of movement, to investigate irregularities in carrier operations which might invalidate those claims, to resolve contentious issues or to verify and investigate the circumstances to determine the eligibility of suspect claims which appear to be in violation of Federal or Provincial Statutes, regulations or directives. Submits accepted claims for certification by authorized officer and returns unacceptable applications to claimants detailing the reasons for rejection.

Performs other duties such as: examining tariff changes affecting rates, and/or other conditions of carriage which impacts on the subsidy claimed, commodities, shippers or consignees, filed by carriers, agents and/or tariff bureaus, updating tariff files and reporting major or unusual changes to superiors for whatever action may be deemed necessary; and assisting in the preparation of rate or commodity studies.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

B1 / 136

Program and Specialized/Technical

The work requires knowledge of the Atlantic Region Freight Assistance Act and Regulations which govern the payment of subsidies to rail, water, highway carriers in the Atlantic Region, as well as the various provincial statutes pertaining to both licensing and tariff filing. Required also is a knowledge of internal administrative procedures, Modal Committee decisions, rulings and Federal Court interpretive decisions. The work requires a knowledge of federal and provincial jurisdictions and the role played by each.

General Administration

The work requires knowledge of routine internal office administrative procedures.

DECISION MAKING

A1 / 69

Scope

Decisions are made in accordance with established guidelines, directives and practices and involve the payment and/or rejection of subsidy claims. Initiative and judgement are required in the interpretation of Federal and/or Provincial Statutes, in obtaining additional information from primary or secondary sources, in obtaining additional information to deal with complex claims, recommending field audits, resolving questions of eligibility and identifying suspect claims.

Impact

Audits result in the acceptance, or further investigation, or the rejection of claims for freight subsidies and affect the amounts paid to carriers which can have a major impact on the cash flow of the carrier involved.

OPERATIONAL RESPONSIBILITY

A / 10

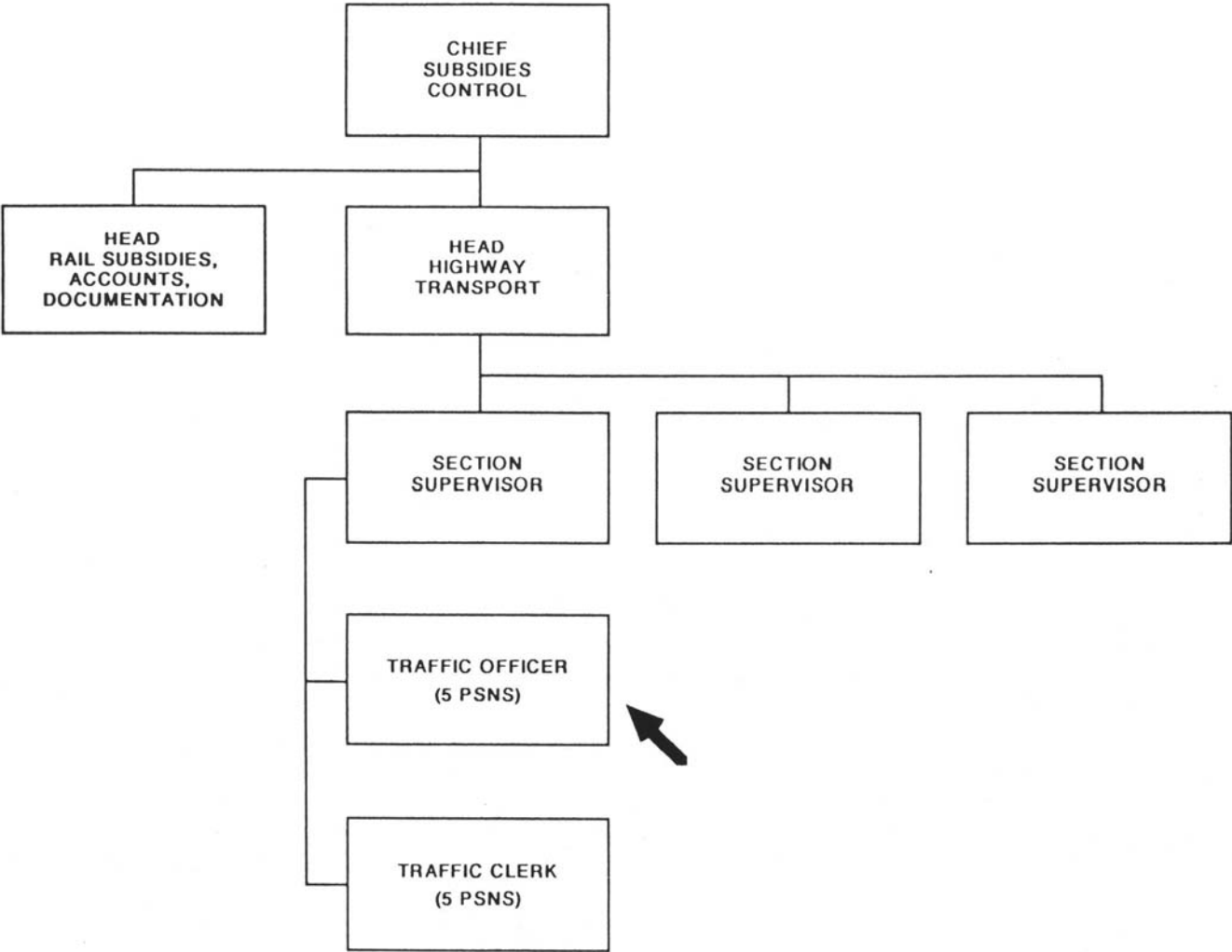
Nature of Responsibility

The work entails auditing individual subsidy claims. The provision of incidental guidance to support staff is required from time to time.

CONTACTS

2 / 70

Additional information is obtained from carriers, Provincial regulatory boards, agents, shippers and consignees to clarify the more complex claims, investigate irregularities, verify circumstances to resolve questions of eligibility and other contentious issues, and dispose of suspect submissions. Provides advice and interpretations regarding the intent and application of the ARFA Act and regulations, and solicits assistance and cooperation from officials to carry out fact finding and investigative functions. In the more complex cases of rejection, the particulars of actions are explained to claimants followed by written confirmation.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 6	Level: 6
Descriptive Title: Manager Winnipeg District	Point Rating: 840

Reporting to the Regional Collector, manages one of six districts in the Central Region:

Exercises delegated authority to manage 104 person years located at Customs offices at Winnipeg (Main, Air Commercial, Air Traffic and a Postal Sortation plant), at three full time offices in the Northwest Territories (Iqaluit, Inuvik and Yellowknife), and two seasonal air/marine offices (Churchill and Tuktoyaktuk). The district operations are multi-shift operations to cover 24-hour periods, 7 days a week, and consist of the collection of revenue and the control of international entry and exit of travellers and goods via air, marine, highway, rail and postal modes through the application of anti-dumping, value, tariff classification, import and export regulations.

Participates as a member of the Regional Senior Management Committee and recommends the development or adaptation of regional policies, systems and procedures and the utilization of resources to improve the level of service provided to the public in this district. Monitors work performance of operational units; plans and carries out special studies to improve operational effectiveness. Develops emergency and temporary procedures to cope with systems failures or other unforeseen circumstances. Identifies control requirements of, or administrative impediments to proposed changes. Advises branch and regional management on the local implications of changes in national policy and procedures, on business trends, technological, accounting or other changes in the private sector, and on the requirement for the design, expansion or renovation of facilities, owned or leased, within the district.

Defines and implements an acceptable balance between the enforcement of Customs and Excise statutes and regulations as well as the statutes and regulations of a number of other government departments (such as the Immigration Act, the Animal Disease and Protection Act and the Export and Import Permits Act) and agencies for which the department provides administrative control and the facilitation of the international movement of persons and goods. Advises subordinate managers and the public on the intent and application of legislation, regulations, policies and directives in order to facilitate compliance.

As a responsibility centre manager, forecasts fiscal requirements for resources and operations, establishes operational priorities and approves costs related to maintenance, the replacement or renovation of buildings and equipment, property management, e.g. provision of water and sewage, heat, air conditioning, power, communications equipment and janitorial services, as well as overtime and allowances. Defines goals for two subordinate cost centre managers and evaluates their performance; adapts operational practices in response to changing workloads, new policy initiatives, short-term priorities, and increasing service demands; controls the efficiency and effectiveness of the operations through directing audits, compliance checks and operational reviews; coordinates the activities of the work locations in conjunction with operational and human resource plans; exercises delegated authority in respect to the grievance procedure and in disciplinary matters; initiates and approves staffing actions.

Develops and maintains effective relations with members of the public, officials of industry and enforcement agencies, brokers, warehouse operators, and other government departments. Responds to complaints or criticisms, expedites the clearance of urgently required goods, and explains control measures and new requirements to promote their acceptance and encourage voluntary compliance. Advises members of the importing community on how to adjust their operations to meet new regulatory

requirements. Resolves problems of traffic flow of travellers at Customs offices located at highway and airport facilities, and problems of enforcement matters, with officials of transportation companies, provincial authorities, emergency organizations and local U.S. Customs officials.

Degree/
Points

SPECIFICATIONS

KNOWLEDGE

D4 / 345

Program and Specialized/Technical

The work requires a knowledge of departmental legislation, regulations and directives which pertain to the work i.e. Customs Act, Customs Tariff Act, and relevant sections of the Excise Act, Excise Tax Act, and the Special Import Measures Act. It also requires knowledge of legislation and regulations from other government departments and agencies to which Customs and Excise contributes significant administrative control (such as the Immigration Act, Animal Disease and Protection Act and the Export and Import Permits Act). It requires a knowledge of computerized systems and procedures for the entry and clearance of commercial goods, procedures for the entry and examination of international travellers and the receipt and control of revenue. An understanding of financial, technological, tourism and manufacturing trends and developments in the private sector is required to advise importers, exporters, brokers, transportation company officials and ethnic groups on the intent of and on compliance with the Customs Act, Customs Tariff Act and other applicable administrative requirements. Knowledge of enforcement concerns is required to coordinate activity with Canadian and U.S. law enforcement agencies.

General Administration

Knowledge of departmental financial management policies and directives is required to forecast annual and long term requirements for resources, to manage a responsibility centre budget and review the budget allocation and expenditures of two subordinate cost centre managers. Knowledge of departmental personnel management programs and directives, and management practices and techniques is needed to effectively utilize 104 person-years in a multi-shift, 24-hour, dispersed operation. Knowledge is required of the collective agreements and methods and procedures of resolving union concerns. Knowledge is required of property and space management in order to specify changes to Customs facilities and maintain departmental capital assets of considerable value.

DECISION MAKING

C4 / 255

Scope

Decisions are made and advice is provided to facilitate compliance with legislation, regulations, directives and established practices of the department and to administer the legislation of other government departments. Initiative and judgement are required to effectively utilize human and financial resources and to resolve problems and complaints regarding the quality and level of service provided to the travelling and importing public. Development of local or adaptation of regional and national policies is required

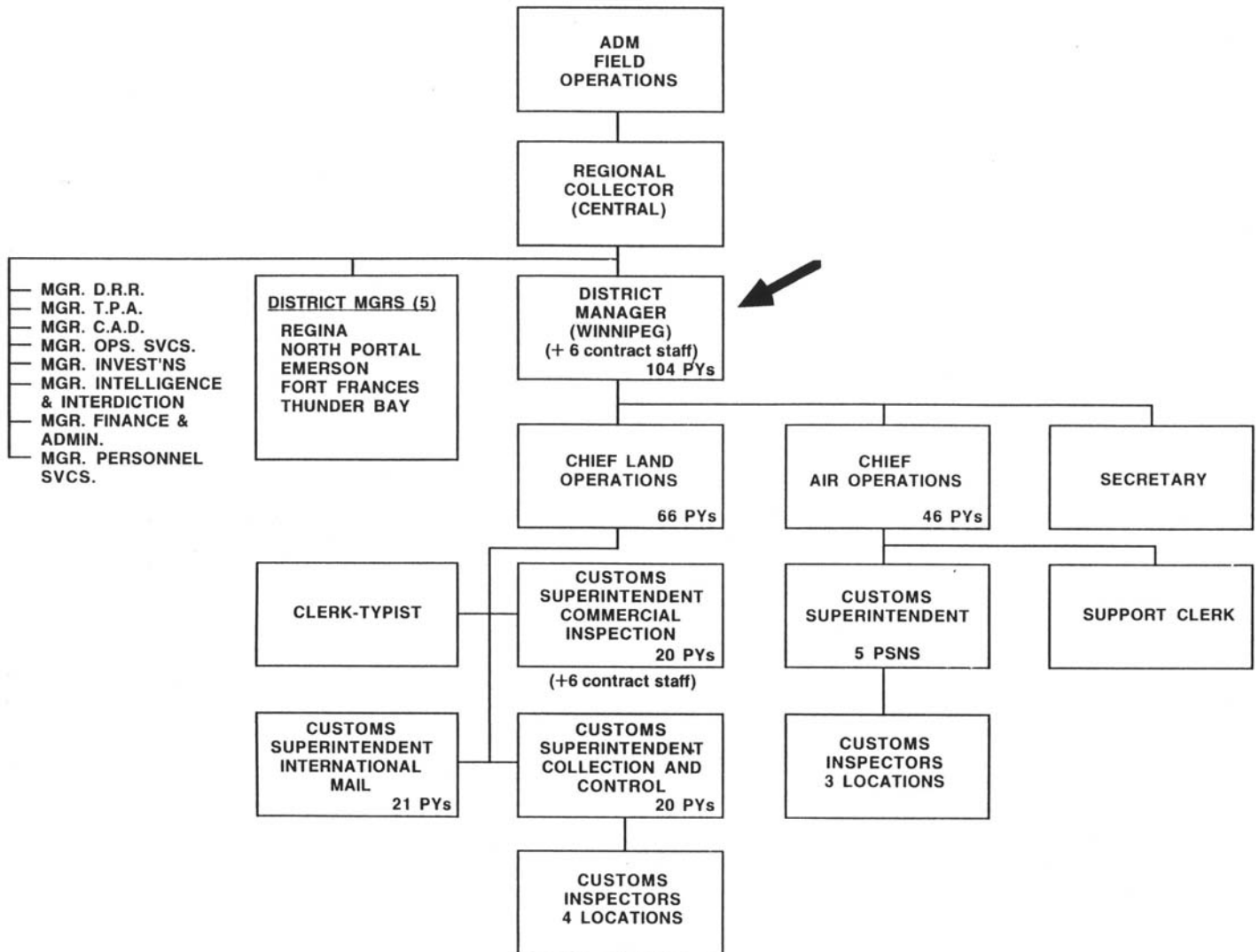
to meet unforeseen circumstances and changing departmental or regional priorities. Studies are initiated to improve operational efficiency and effectiveness. Pilot projects, initiated by headquarters, are analyzed and critiqued; business trends are identified and expansion or renovation of border facilities is planned and initiated.	
<u>Impact</u>	
Recommendations affect regional operational policy, systems and procedures, national policy and pilot projects and district priorities for 104 person-years at arctic marine/air entry points, inland Customs offices and at the Winnipeg International Airport and Postal Clearance Centre. Decisions affect the quality and speed of delivery of district Customs services, provided to travellers and the business community, the amount of revenue collected for duty and taxes and fees, the effective use of financial controls e.g. bonds, accounting procedures, etc., the effectiveness of enforcement activity, the administrative costs to importers and the care and use of facilities, owned or leased. Decisions affect the development and utilization of seasonal, part-time and full-time human resources through the establishment of rotational training plans. The District Manager must respond to emergency situations, such as terrorism or bomb threats, contribute to national intelligence and respond to special interest groups, marketing or international concerns that may result in detention of persons or goods, the imposition of penalties, legal action, possible incarceration, the seizure of toxic or illicit goods and/or their disposal.	
<u>OPERATIONAL RESPONSIBILITY</u>	E2/ 130
<u>Nature of Responsibility</u>	
Input is provided to the regional management committee in the form of fiscal and long range planning. Plans and objectives are developed for subordinates. Operational policy and practices are developed or revised to resolve problems related to fluctuations of workload for a multi-shift 24-hour service at various locations to respond to emergencies and seasonal or economic conditions. Subordinate cost centre managers are evaluated for adherence to approved work plans, budgets and proper use of the delegated financial and personnel management authorities. The work is evaluated through directing audits, compliance checks and operational reviews. Human Resource plans are designed for rotational development of employees, emergency situations, safety, and seasonal workload adjustments. Coordination is required with U.S. officials, the industrial sector, other government departments, and various levels of enforcement agencies for joint enforcement operations. Coordination with the union is required for new or modified program initiatives.	
<u>Complexity and Size of Subordinate Organization</u>	
The Winnipeg District Operations (104 p.y.) provides Customs services to international travellers and Commercial traffic entering or exiting Canada at a medium-sized International airport, at extensive highway, rail and air commercial centres (27 bonded warehouses, 44 sufferance warehouses and a postal sortation plan) and at a limited number of marine locations. Customs services are also provided at three full-time and two seasonal High Arctic remote sites. Customs control is also exercised over a duty-free shop and an automated postal accounts receivable centre encompassing the Province of Manitoba.	

CONTACTS

3 / 110

Consultation is required with U.S. and Canadian law enforcement and immigration agencies to coordinate joint enforcement actions to facilitate the interception and seizure of contraband and to control the international movement of persons and goods. This type of activity requires commitment on the prompt exchange of intelligence information to resolve matters of mutual concern and urgency.

Agreement is reached with brokers, warehouse operators, importers and transportation company officials and provincial authorities ex. Provincial Liquor Commission, Emergency Measures Organization or the relevant provincial ministry on administrative requirements and scheduling of services to resolve problems created by legislation, policy and technological change i.e. a new tariff system, containerization, duty-free shops, the computerized cargo entry processing and collection system, or special surveillance initiatives.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 7

Level: 6

Descriptive Title: Tariff Classification Policy Specialist

Point Rating: 861

Reporting to the Director, Tariff Policy and Systems Development, one of five policy specialists, each with a unique area of program responsibility:

Identifies the need for, develops, organizes and plans for the implementation of national tariff classification policies which cross industry sector Units or Directorate boundaries to ensure uniform legal application of major tariff classification issues such as, the classification of systems, entireties or multi-purpose parts, or procedures for submitting samples of imported goods and their control and disposal following a classification review. Researches past decisions by the department, Tariff Board, Federal or Supreme Court in order to determine a strategy for defence of policies before the Tariff Board or Courts. Initiates requests for legal opinions of proposed policies. Carries out studies and surveys of inter-related subjects such as trade or tariff policy adjustments made by other government departments to assess their impact both departmentally and on industries, importers and manufacturers. Recommends changes to legislation to the Department of Finance to reflect government policy shifts, changes in manufacturing techniques or technology, or Tariff Board or Court decisions.

As Project Leader, resolves complex or major tariff classification issues utilizing seconded regional or headquarters employees. Obtains commitment from importers and trade associations to develop policies with industry assistance. Develops project objectives, reporting requirements and performance evaluation criteria and oversees the project. Writes submissions to Treasury Board for project funding. Appraises and counsels project staff members.

Develops, writes, modifies and interprets Departmental (both public and restricted) memoranda, procedural manuals, directives and guidelines related to broad or general tariff classification issues. Visits Canadian or foreign manufacturers to solicit their cooperation and to obtain details regarding the manufacture or end-use of goods etc in order to develop or review a particular portion of a policy. Formulates criteria and directs trade surveys to establish Made/Not Made-in-Canada status or availability status of imported goods. Interprets and explains to the Department of Finance and commercial clientele, the department's application of the classification principles of "eo nomine" (classification by name of an article as provided for in the Customs Tariff) or "relative specificity" (having due regard for the use for which the article is imported).

Researches, develops and writes Regulations and guidelines for the implementation of primary Customs legislation established to resolve tariff classification issues e.g. Used and Less Than Prime Quality Goods Regulations, which prescribe the information that Canadian manufacturers must provide to the Department when submitting claims. Analyses changes to legislation that may affect the tariff classification program from the point of view of interpretation, resources, systems and organizational structure of the Division. Identifies potential impact of proposed legislation on other related areas of Customs responsibility.

Monitors, evaluates and reports on the efficacy and quality of rulings and decisions issued by regional appraisal staff to ensure national consistency and accuracy of application by reviewing regional bulletin and importer weekly journals.

SPECIFICATIONS

KNOWLEDGE

E1 / 301

Program and Specialized/Technical

The work requires knowledge of the Customs Tariff Act and the Customs Act, principles of tariff classification, regulations and procedures combined with a knowledge of government policy concerning tariff classification and the related responsibilities and roles of other departments, such as the Department of Finance, in the development of legislation. A knowledge of international tariff commitments and obligations entered into by Canada (e.g. Most-Favoured-Nation, British Preferential, General and General Preferential and United Kingdom rates) and their impact upon existing and proposed departmental policy is required; knowledge of the Canadian industrial and business communities and the impact of departmental policies on these groups; knowledge of government economic policy and objectives, particularly those concerned with providing assistance to Canadian industry; knowledge of the mandates, functions and responsibilities of such remission-granting bodies as the Machinery and Equipment Advisory Board and the Interdepartmental Remission Committee and how their actions may impact on tariff classification and vice versa.

General Administration

The work requires some knowledge of financial practices for ad hoc project planning; knowledge of procedures for utilizing word processing facilities and for the publication and distribution of Customs internal directives, public information notices and departmental procedures manuals; and knowledge of departmental travel policies and directives.

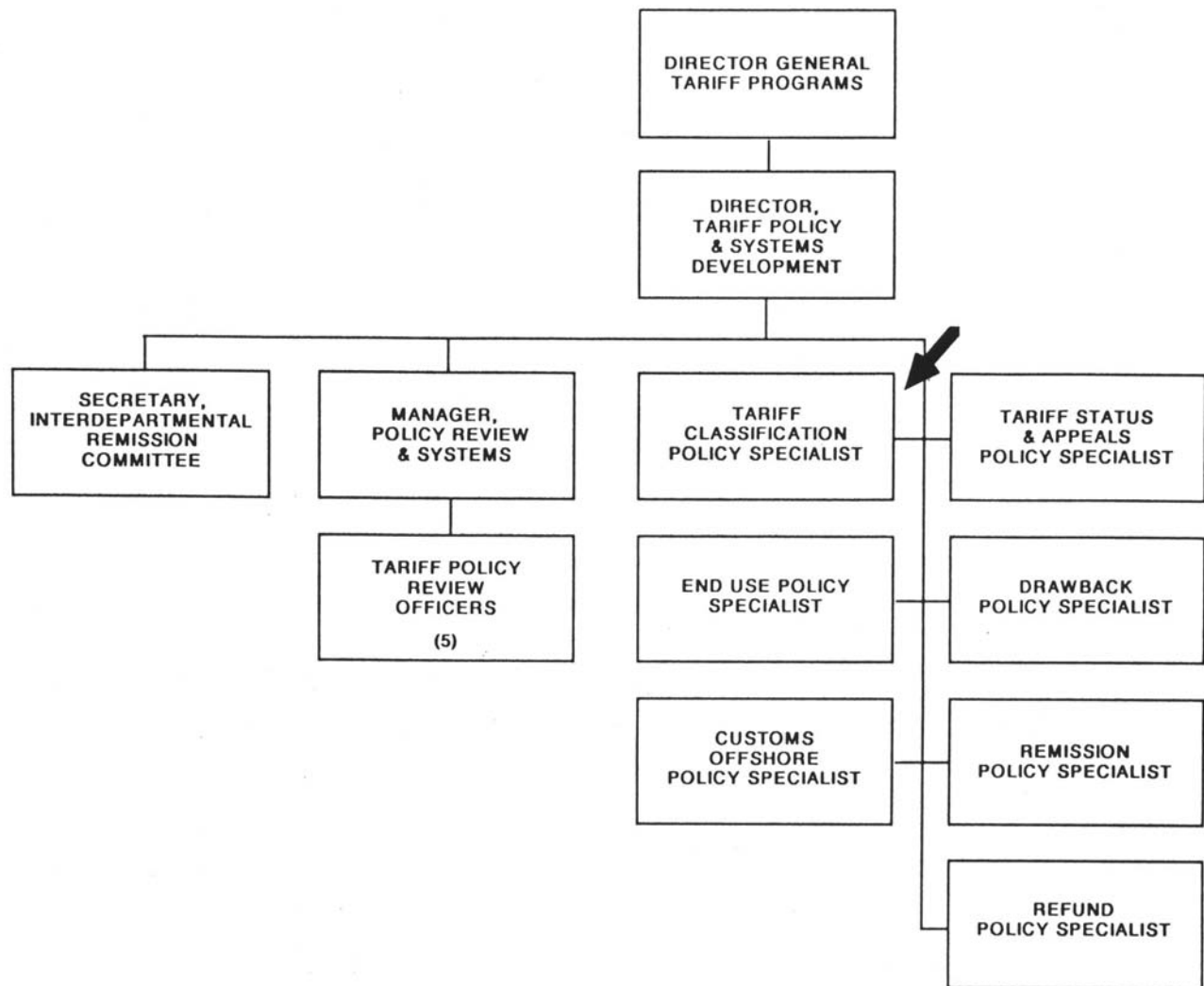
DECISION MAKING

D4 / 300

Scope

Decisions are made within the legislative framework of tariff programs. Judgement is required to identify the need for new policies and assess the implications of precedent-setting Court decisions in terms of legislation, resources, and administrative requirements of clientele. Initiative is required in proposing and conducting projects, research and investigations of sensitive and complex issues of significant importance. The Customs Tariff is a key economic policy instrument which provides protection to Canadian producers, stimulates economic benefits to Canada and generates government revenue. Relatively few commodities imported into Canada are specifically named in the Customs Tariff, hence the system of applying it is highly judgemental and often politically sensitive. Judgement is required to modify format, wording or punctuation, of proposed legislation where correct and consistent application is critical to the administration of other provisions of Customs Tariff. Judgement and initiative are required to resolve problems of definition, interpretation and the intent of clauses and assess their operational impact on the department and industry. Initiative is required in developing and implementing a quality assurance program of regional decisions. Recommendations are made to a senior manager.

	Degree/ Points
<u>Impact</u>	
Tariff Classification policies which are developed, are applicable nationally and affect all importers of the goods as well as the amount of revenue collected by the Department. Poorly developed policies or policies lacking industry support may be challenged at the Tariff Board or in the Courts involving additional expenditures for both the Department and the industry concerned. Decisions affect future Departmental application of the Customs Tariff Act and can impact on the use of Field Operations resources. They may also affect the legislative programs of other government departments e.g. the Department of Finance. Decisions affect Canadian industries' ability to remain competitive.	
<u>OPERATIONAL RESPONSIBILITY</u>	E1 / 110
<u>Nature of Responsibility</u>	
Plans, develops, writes and implements new classification policies and procedures to be administered by Headquarters or Regional appraisal staff. Monitors and evaluates results following implementation. Monitors, assesses and reports on classification rulings and decisions of Headquarters and Regional appraisal staff where the decision affects a variety of industry sectors e.g.: classification of entireties, sets, kits, systems, etc. Monitors regional classification bulletins and importers' weekly journals. Provides functional guidance to the regional appraisal staff to ensure that departmental Tariff Classification policies and procedures are conveyed accurately and consistently to the customs offices and the public.	
<u>Complexity and Size of Subordinate Organization</u>	
N/A	
<u>CONTACTS</u>	4 / 150
Obtains commitment from businesses and trade associations for support in respect of jointly developed policies with industry but which are subsequently challenged before the Tariff Board and Courts. Negotiates with the officers of the Department of Finance new and amending tariff legislation and interpretations of considerable significance to Canadian industry. Presents the department's position to the Department of Finance and Canadian and foreign manufacturers, importer and trade associations and other government departments in order to ensure administrative feasibility e.g. Tariff Reduction Orders or new tariff items.	



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 8

Level:5

Descriptive Title: Chief, Passenger Terminal Operations
Vancouver International Airport

Point Rating: 635

Reporting to the Manager, Vancouver International Airport District:

Manages Customs Traffic Operations conducted within the Passenger Terminal at Vancouver International Airport, a 24-hour port of entry, to ensure the proper and uniform application of statutes and regulations for the inspection and control of persons, goods and conveyances entering and exiting Canada, for the collection and remittance of revenue, security deposits and sundry charges, and for the enforcement of legislative provisions concerning smuggling and other infractions. Reviews, evaluates and implements pilot projects (the introduction of in transit facilities), procedures and systems to meet new operational requirements, changing workload priorities, fluctuating traffic volume, and employee training assignments, and ensures that an adequate level and quality of service is rendered to the travelling public, importers and airline carriers. Reviews and approves requests for special services submitted by importers and Customs Brokers. Authorizes release of goods urgently required, such as computer parts, so that businesses are not adversely affected by unnecessary delays.

Represents all inspection services on airport management committees (Scheduling, Security). Coordinates the requirements of Customs operations with those of other government departments (Agriculture Canada, Transport Canada, Employment and Immigration, RCMP, CSIS, etc.) to jointly enforce their legislative requirements to clear persons, baggage or goods, and to consult on renovations to airport facilities which impact on the delivery of Customs services and to meet security requirements for large-scale events (EXPO 86, the Commonwealth Conference of Heads of State, etc.). Coordinates enforcement activity with the RCMP, municipal police forces, U.S. Customs and U.S. enforcement agencies to intercept reported criminals or lost or abducted persons identified by the RCMP automated information system. Advises airline carriers and importers of local procedures and departmental requirements to facilitate the clearance of a large volume of passengers and goods and to obtain their commitment to modify their methods of operation and meet security requirements. Intercedes in instances of conflict or misunderstanding between subordinates and members of the public, representatives of other departments, importers and commercial carriers to resolve differences of opinion. Advises subordinates on problems related to value for duty, tariff classification of new or used material, the determination of Made In Canada status and the application of Anti-Dumping legislation.

As a cost centre manager, prepares annual work plans and allocates human resources within budgetary constraints. Identifies trends and forecasts operational requirements for 70 person years at two work locations: the main terminal and a private aircraft handling facility. Exercises delegated personnel management authority and participates in formal or adhoc Union/Management and Health and Safety Committee meetings in order to apply the provisions of collective agreements in a fair and uniform manner.

SPECIFICATIONS

KNOWLEDGE

C3 / 257

Program and Specialized/Technical

The work requires knowledge of Customs and Excise statutes, regulations and objectives, statutes and regulations of other government departments and agencies to which Customs Operations Branch contributes significant administrative control (e.g. the Immigration Act, Food and Drug Act, Health of Animals Act, Explosives Act, etc.); and understanding of new program initiatives undertaken by the department to provide an effective service largely to the travelling public but also to exporters, importers, brokers, and airline carriers.

General Administration

The work requires a knowledge of management practices and techniques, to support various personnel programs. A knowledge of departmental grievance procedures is required to resolve union/management issues usually pertaining to accommodation, health and safety or the application of the relevant collective agreements for a rotating work force in an international airport environment. A knowledge of financial management policies and procedures is required to control a Cost Centre budget, collections of revenues, security deposits, and administrative charges. A knowledge of security methods and procedures is required to handle emergency situations.

DECISION MAKING

B3 / 178

Scope

The work is performed in accordance with legislation and regulations and within the constraints of departmental policy and directives. Judgement is required when modifying procedures and systems in response to changing workload priorities and fluctuating traffic volumes and in determining the need for increases, reduction or re-allocation of staff between work locations. Judgement is also necessary when evaluating the effectiveness of the enforcement program; analysing contentious or complex operational problems and reviewing the level and quality of service rendered to the public, importers and airline carriers. Discretion is necessary when investigating and resolving complaints from the travelling public and when interceding in instances of conflict or misunderstanding involving subordinates. Discretion is also required when determining the action warranted as a result of violations of legislation and regulations. Recommendations are made to the Manager, Vancouver International Airport District, on matters such as the resolution of major operational problems, the development of area policy and procedures, human and financial resource requirements and staff discipline and training requirements.

Impact

Decisions and recommendations affect the effective utilization of subordinate staff, (70 PY) employed at 2 locations, and the direction provided to and control exercised over Customs activities. Decisions affect the efficiency and effectiveness with which revenue is collected, the quality and level of service to travellers, individual importers,

customs brokers, their business clientele, and airline carrier companies. Recommendations regarding enforcement matters may result in the imposition of penalties or legal action and possible incarceration.

OPERATIONAL RESPONSIBILITY

D3 / 90

Nature of Responsibility

Responsibility is exercised through subordinate supervisors to achieve optimum service to local client groups. Work plans are approved or rejected for rescheduling staff on shift operations, changing work assignments, changing procedures or responding to changes in traffic patterns. As a cost centre manager, operational expenditures are approved for travel, equipment, supplies and accommodation. The training needs of subordinates are evaluated and personnel actions initiated for approval by the Manager, Vancouver International Airport District.

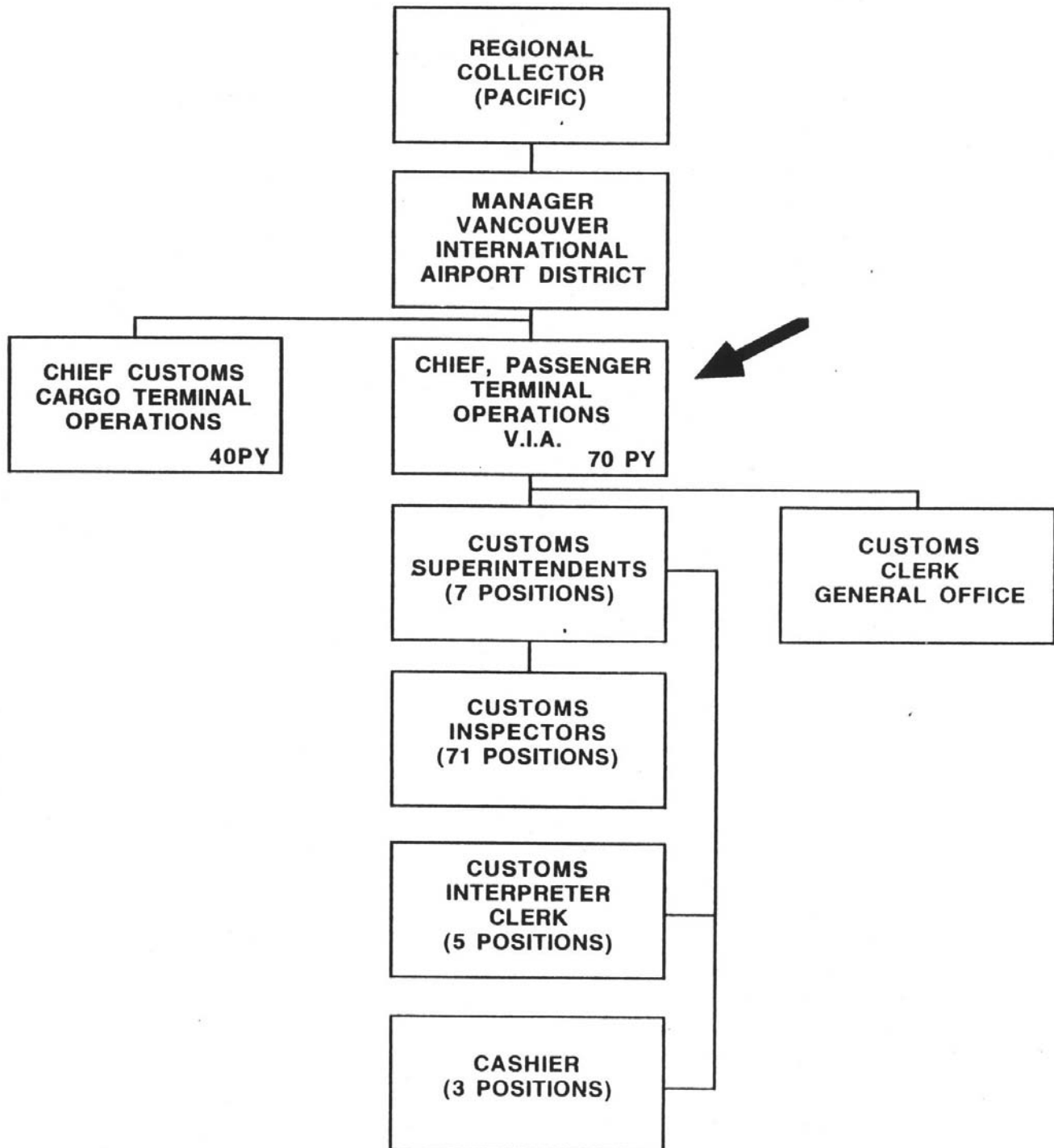
Complexity and Size of Subordinate Organization

Passenger terminal operations are located in the main terminal and across the runways at a private aircraft handling facility. A cargo terminal is used for commercial shipments. The Chief is "on call" for 24-hour operations and provides for the clearing of commercial shipments after regular office hours. As a result of smuggling patterns, susceptibility for entry of inadmissible persons, and large traffic volumes generated by tourism and international conferences, inspections and security requirements must be highly controlled. The resolution of operational problems for 70 PY's relating to shift scheduling, large volumes of passengers for peak periods, and fluctuating airline schedules requires effective communication with union representatives to ensure adequate service and effective enforcement activity.

CONTACTS

3 / 110

Agreement is obtained with importers concerning changes to commercial/financial procedures or systems in order to meet the legislative and procedural needs of the department. Advice is provided to officials of Brokerage firms, transportation companies and various levels of government (including foreign governments) on the interpretation of regulations. Coordination is required with other levels of police organizations on joint enforcement actions. Persuasion is required to obtain compliance in a cost-effective manner while maintaining the department's service-oriented image. Information is provided to the media and the local Chamber of Commerce. Consultation with local union representatives is required to gain agreement or obtain acceptance of solutions to resolve workers' complaints.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 9

Level: 5

Descriptive Title: Advisory and Monitoring Officer

Point Rating: 639

Reporting to the Chief Excise Collections at headquarters:

Analyses new legislation and recommends to the Excise Programs Division program changes which are compatible with Treasury Board and departmental Financial guidelines in order to implement new or changes to existing legislation within the capabilities of regional operations and the automated Excise accounting system. Consults with other government departments such as National Revenue Taxation on similar policy areas, e.g. areas which may be challenged by the courts. Reviews and updates relevant portions of the Financial Management Manual. Develops approaches for resolving uncollectable accounts. Advises headquarters and regional audit and revenue accounting personnel on matters relating to the accounting system for revenue from duties, taxes and fees. Drafts bulletins for dissemination to regions.

Identifies operational policy areas requiring change from reviewing regional statistical data and on-site monitoring reports as well as Court judgements. Reviews and updates operational policies or reviews the policies of other areas impacting on the field revenue collecting program. Evaluates findings and prepares recommendations for changes to policies and procedures.

Provides advice and technical expertise to Headquarters and any of nine Regions on matters relating to the collection and recording of duties, taxes, fees and other charges, e.g. for opposing claims in bankruptcies, for tax content of accounts receivable and for payment by third parties. Studies jurisprudence, the Excise Act, related regulations and administrative interpretations, the Federal and Provincial statutes covering bankruptcies, corporations, liquidations, partnerships, etc., and the Collections Policy and Procedure Manual to recommend solutions to complex collections problems referred to Headquarters. Discusses with taxpayers disputed collection actions which are referred by Excise regions, the Deputy Minister's or Minister's office and negotiates suitable arrangements. Assists regional Excise personnel in the preparation of court actions and communicates with the Department of Justice concerning same.

Develops policies and procedures relating to the monitoring of Excise Branch revenue accounting and collection sub-activities. Develops and revises a step-by-step monitoring manual. Develops performance standards for monitoring and supervises one regional employee seconded to monitor regional performance relating to revenue accounting and collections. Evaluates performance reports and information from the uncollectable review committee and other regional reports. Supplies regions with statistical data relating to national performance levels. Recommends alternative approaches to regional management and headquarters Excise Programs Division to improve performance and ensure uniform application of policies and procedures. Develops course content. Recommends the need for and participates in training programs for regional accounting personnel. Reviews operational work plans, forecasts resource requirements and prepares national work plans.

SPECIFICATIONS

KNOWLEDGE

D1 / 246

Program and Specialized/Technical

The work requires knowledge of the Excise Tax Act and regulations, relevant sections of the Bankruptcy Act and legislation dealing with tax collections, e.g. Landlord and Tenant Act and federal and provincial statutes related to corporations, liquidations, partnerships, etc., to develop operational policies, directives and provide guidance to regions to increase revenue collections. Knowledge of the existing departmental Collections Policy and Procedures Manual is also required. A knowledge of revenue accounting and auditing techniques, systems, procedures and practices is necessary in order to develop/adapt systems and procedures in response to legislative changes. Knowledge of jurisprudence is required to analyse the impact on departmental operations of new initiatives. Knowledge of the departmental organization and regional operations is required for monitoring and advisory functions and providing advice on resolving uncollectable accounts through regional and headquarters committees.

General Administration

A knowledge of departmental procedures for disseminating guidelines to the field, developing work plans, replying to ministerial correspondence and completing travel claims is required.

DECISION MAKING

C3 / 223

Scope

Recommendations are made to headquarters Excise Programs Division concerning program/policy changes in response to legislative changes. Initiative and judgement are required to develop accounting systems, obtain legal opinions where necessary, and consult with other departments such as Taxation and/or other Branches such as Corporate Management and other divisions within Excise Branch for automated projects.

Decisions are made on complex collection cases through the application of precedents, jurisprudence and federal and provincial statutes. Established procedures are normally followed in advising regional personnel in the preparation of court cases and communicating with the Department of Justice and secured creditors, usually Banks.

Recommendations regarding performance standards are made to the Excise Programs Division and a monitoring program is initiated to ensure adequate instructions exist between the regional collection and accounting sections and to ensure the uniform application of program policies and objectives. Guidelines are developed to standardize the monitoring approach. Regional training needs are identified and a training program developed for accounting and collections personnel.

Within Excise Program guidelines, regional work plans are analysed, monitored and developed into National work plans with appropriate estimates of manpower resources for review/approval of Senior Management.

Degree/
Points

Impact

Recommendations regarding the resolution of complex collection cases affects trustees in bankruptcies, secured creditors (usually Banks) and regional operations. If pursued through the courts the work contributes to case law. Recommendations concerning accounting procedures affect the licensee population and regional operations in both Revenue Accounting and Audit. Monitoring policies and procedures affect Senior Management's evaluation of program efficiency and effectiveness of headquarters and regional operations. Regional technical training is developed and participation provided for course delivery.

OPERATIONAL RESPONSIBILITY

D1 / 60

Nature of Responsibility

Input is provided to Excise Programs Division concerning program policy, and the development and adoption of performance standards. New legislation is assessed in order to develop new and modify existing operational policies and procedures, along with a monitoring program, to ensure national consistency and to evaluate the efficiency/effectiveness of regional operations.

Functional guidelines and advice are provided to 9 regional Collections Units and 9 regional Revenue Accounting Units comprising approximately 170 person years.

Technical advice and interpretation of complex cases is provided to senior management (the Departmental Uncollectable Committee) and regional personnel.

Supervision of one seconded employee when monitoring regions several times a year for a 2 to 4 week period is required.

Complexity and Size of subordinate Organization

N/A

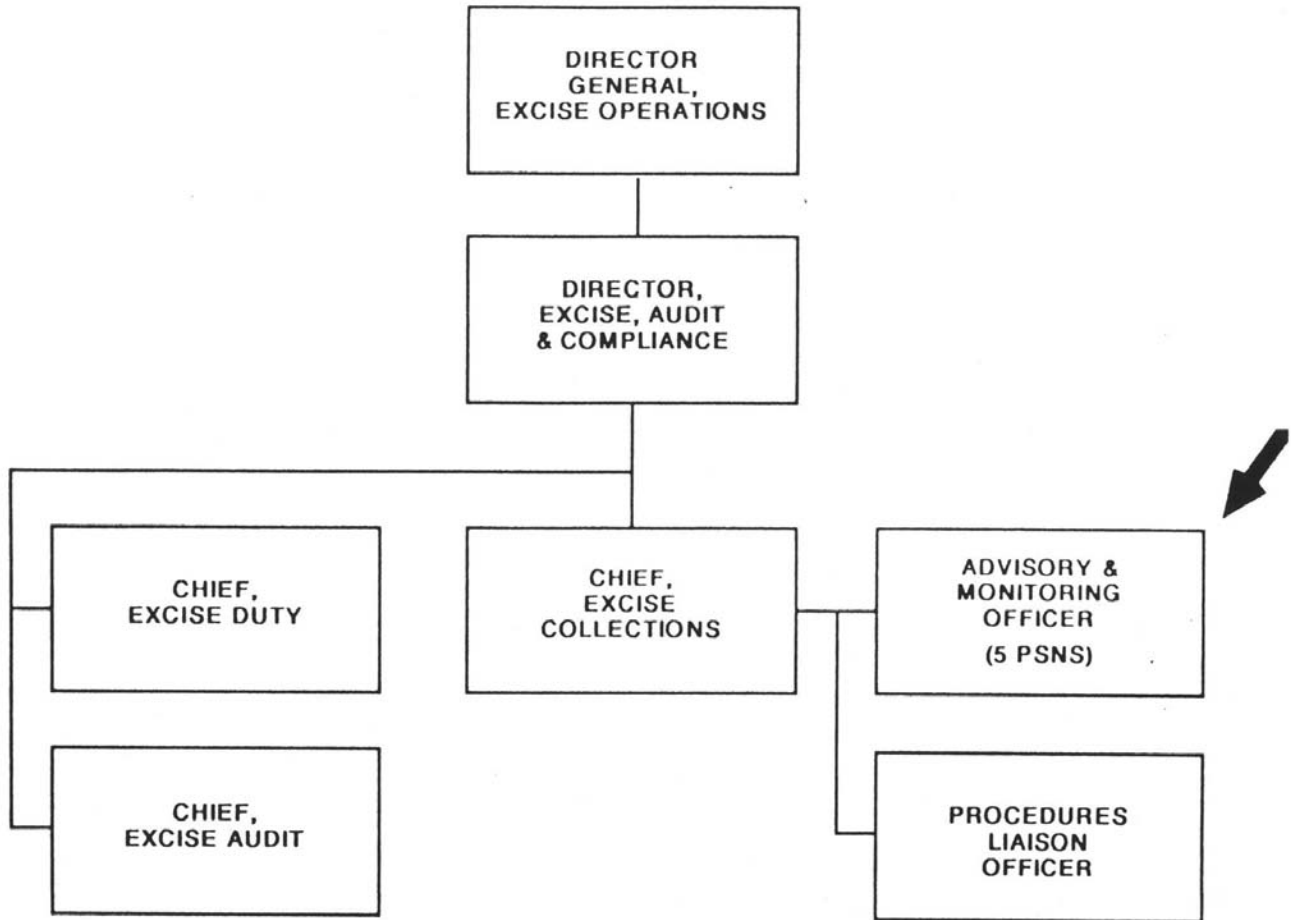
CONTACTS

3 / 110

In developing policies and procedures, commitment is obtained from Revenue Canada, Taxation and the Bank of Canada on matters which have considerable operational significance e.g. the exchange of information regarding corporate or individual debtors subject to Corporate Tax Refund in light of Privacy of Information concerns or agreement to access microfiche of registered information to centralize verification action instead of utilizing regional Bank of Canada offices.

Consultation occurs with senior management of National Revenue Taxation concerning common policy areas e.g. assessment, jeopardy and the impact of the Bank Act on third party garnishment. Consultation with other headquarters units is required regarding policies, systems and resourcing.

Complex or sensitive issues are resolved with taxpayers or their representatives by telephone or through participation in senior management meetings. Written explanations are exchanged with Legal Services Division when there is no jurisprudence and the interpretation of the case is precedent setting. Fact-finding investigations occur with other government departments e.g. Canada Post, Health and Welfare. Technical advice and guidance is provided to regional collections and audit personnel and program evaluation advice is provided to Regional Directors and headquarters management.



Bench-mark Position Number: 10	<u>BENCH-MARK POSITION DESCRIPTION</u>	Level: 3
Descriptive Title: Drawbacks Specialist		Point Rating: 430

Reporting to the Chief, Tariff Values and Tariff Relief

Conducts complex audits, drawbacks investigations and end-use investigations at the premises of producers and manufacturers (e.g. tire manufacturers, meat packers, chemical companies, electronics companies, etc.) to determine entitlement to drawback (a form of tariff refund to Canadian industry) in accordance with the Customs Tariff Act, Customs Act, Excise Tax Act, Anti-Dumping Act, Financial Administration Act and departmental regulations and directives.

Determines nature of investigation in light of methods used to calculate the claim (changes in formulae during production may affect drawback recovery). Examines the product and relevant manufacturing processes, including the dismantling of a finished product, if records (e.g. production formulae, computer listings, bills of material, detailed drawings, blueprints, inventory, record of sales etc.) are inadequate or non-existent in order to determine quantities of imported parts or materials required for production.

Assesses consumables, by-products, and merchantable scrap and applies the "equivalent clause" if domestic materials were used to produce the goods for export. Determines whether the material consumed during the manufacturing process is eligible for drawback and verifies that it is directly consumed during processing. Adjusts claims based on findings and approves interim payments to reputable claimants giving consideration to the financial implications to the company. Identifies goods for which drawback of duty was paid and which have been re-imported to Canada, thus nullifying drawback entitlement and taking the necessary action to recover the duty. Approves payment of the completed claim and writes summary investigation reports.

Conducts compliance audits (both pre-audit and post-audit) for special Orders-in-Council and those that require certain levels of domestic content in the production of goods. Clarifies reporting requirements, bonding requirements and restrictions with company officials. Examines domestic sales records, special release documents, and checks inventories to determine factory cost of production and to identify goods diverted from the terms of the Order (e.g. goods sold in Canada, lost, stolen or damaged goods). Accepts or rejects applications or cancels remission privileges depending on the company's ability to control and account for goods subject to remission.

Obtains agreement of company officials on the allocation of costs (administrative, salaries, rent, taxes) attributable to production and on duty and taxes owing.

Advises company officials of the necessary revisions to their accounting systems or the establishment of systems to comply with departmental or legislative requirements. For new applicants, designs cost-effective audit and control systems e.g., duty cost, sales ratio, etc., for the duty program desired. Obtains agreement on the implementation of the new system and subsequently evaluates its effectiveness.

Discusses options in the tariff relief programs with other specialized areas of the department e.g. Investigations and Excise Operations, as well as with other departments, e.g. Finance and Regional Industrial Expansion to ensure that companies are placed in a competitive position and to avoid

duplication of payment. Advises the Manager Investigations of possible fraud, smuggling, diversions, undervaluation, falsification of invoices and other illegalities discovered during the investigation. Trains Drawbacks Investigators in investigative and audit methods.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

C1 / 191

Program and Specialized/Technical

The work requires knowledge of the Customs Act, Customs Tariff Act, Excise Tax Act, Anti-Dumping Act, Financial Administration Act and departmental regulations and directives relating to the drawback and remission program. The work also requires knowledge of business and accounting systems, general knowledge of business law, marketing and merchandizing practices and manufacturing processes. Familiarity with precedent setting rulings, complex manufacturing processes and unusual business practices is required to arrive at acceptable proposals and decisions. Sufficient EDP knowledge is required to permit analysis of computerized accounting, inventory and other business systems in order to advise companies on the types of systems which would provide optimum amount of data for Drawback investigation purposes in the least cumbersome and expensive manner. Knowledge of industrial costing methodologies is required to determine factory costs of production. Knowledge of investigative methods and report writing is required to train Drawbacks Investigators and document findings and proposals.

General Administration

A knowledge of travel regulations is required to plan audit itineraries.

DECISION MAKING

C1 / 159

Scope

The work entails determining the nature and extent of investigation required for different systems (e.g. computerized systems, duty cost systems, systems based on sales allocation, etc.) in individual cases (ranging from the small importer to Canadian-owned companies and multi-national companies) in order to recommend changes in claimants methods. Advice is provided to company officials on the revision of the company's accounting, i.e. the design, establishment or evaluation of systems, to achieve compliance with departmental or legislative requirements. Work is for the most part performed at remote sites without direct supervision and generally in accordance with guidelines and procedures governed by legislation and regulations. Judgement is required in making precedent setting rulings for inclusion in a headquarters data bank concerning new consumable or expendable materials, new applications of the "equivalent clause" and value of by-products where there is no established market. Judgement is also required in determining deviation from standard investigation practices for complex cases or where there is an insufficient audit trail.

Impact

and investigation findings and company profiles of historical compliance, affect the financial stability and cash flow of a company, employment within it and market conditions of the community. Adverse decisions affect like companies financially as all similar goods must be treated equally. If inward processing controls are too onerous companies may lobby the department through the Canadian Manufacturer's Association to modify its procedures. Large weekly sums of money are affected by drawback decisions concerning merchandise such as computer equipment. Revenue and refunds are also affected by decisions concerning the application of the "equivalent clause", the valuation of marketable scrap and the collection of duty on goods diverted from the terms of an Order-in-Council. Failure to determine that only qualified goods have been used and in approved manner could result in unfair competition to other Canadian Manufacturers of like goods for a widely dispersed geographic area.

Degree/
PointsOPERATIONAL RESPONSIBILITY

A / 10

Nature of Responsibility

Plans and schedules own workload and travel itineraries. Trains Drawbacks Investigators in. investigative and audit methods and techniques. Acts as a resource to promote Tariff Relief programs at seminars and business meetings.

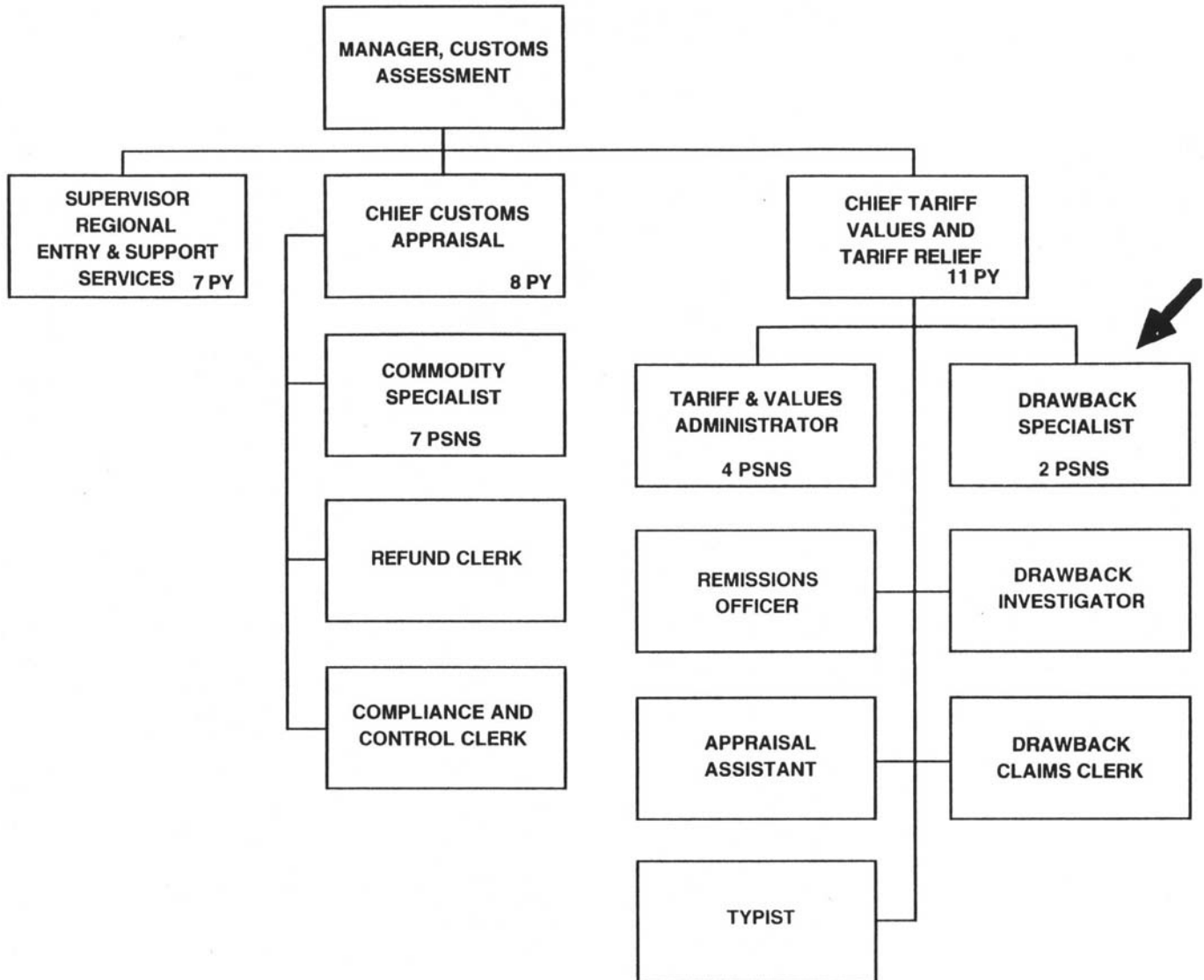
CONTACTS

2 / 70

Concurrence of company officials is obtained on the sales value of scrap, on the means to be used in verifying Canadian content of goods where content certificates are not available, and on the implementation of new record keeping systems and procedures. Permission is obtained from company officials to access company records in cases of bankruptcies.

Detailed consultations are required with representatives of industry to determine the methods and procedures to be used to conduct the audit and to verify the manufacturing process. Conciliatory and investigative skills are often required. Explanations are provided on drawbacks procedures and requirements.

Information is exchanged with other specialists in the department and with other government departments, e.g. Finance and Regional Industrial Expansion, to discuss options of the Tariff Relief program and end-use concerns which may affect the claimant.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 11

Level: 6

Descriptive Title: Chief, Verification and Collections
Hamilton District Office

Point Rating: 840

Reporting to a District Taxation Office Director:

Administers the collection and payroll audit programs of the district office for overdue taxes of all types (individual, corporate, non-resident, employer contributions and employee deductions, trust and estate). Determines priorities between work sections and directs the allocation of resources to meet changing workload conditions and program priorities. Prescribes reporting requirements, analyzes results and takes appropriate actions such as modifying programs or procedures in order to ensure that Departmental and District Office goals and objectives will be achieved. Recommends changes to national programs and to District Office goals and objectives based on actual results and reports analysis. Consults with taxpayers and their representatives to reach agreement on the resolution of contentious cases raised to this level.

Administers the assessment and reassessment program of income tax returns of all types and the subsequent enforcement programs (Post Assessing, Office Examination, Taxpayer Requested Adjustments, Identification of Non-Filers and Filing Enforcement). Ensures that the intent of the legislation is being applied in accordance with Departmental policies and provides advice and guidance to subordinate staff.

Administers the Public Enquiries program to provide the taxpaying public with specific information and advice related to their tax problems. Ensures that facilities (telephones, counter, tax publications) are available to provide adequate service to the public. Directs, through subordinates, an annual training program for Enquiries staff relative to legislative, procedural and policy changes affecting tax and information returns.

Develops and implements guidelines designed to classify Verification and Collections work into several levels of complexities and establishes standards of performance for each in order to evaluate the effectiveness and efficiency of all Verification and Collections programs in the District Office. Prepares annual and long-range forecasts in order to identify human and financial resources required. Determines when appropriate staffing and classification action is required and ensures that the necessary action is taken. Recommends the allocation of additional space or the acquisition or repair of equipment. Ensures the proper application of respective collective agreements and participates with District Office management in the resolution of union concerns or disputes.

SPECIFICATIONSDegree/
PointsKNOWLEDGEProgram and Specialized/Technical

D4 / 345

A thorough knowledge is required of income tax legislation, legislation and regulations pertaining to Canada Pension Plan contributions and U.I.C. deductions as well as departmental policies, directives and procedures. The work requires a knowledge of computerized systems and procedures for assessment, reassessment, collections and

employer contributions accounts as well as for the provision of tax data to authorized representatives. A thorough understanding of management practices and procedures is essential as programs are based on cost-effectiveness. A knowledge of local trends, developments and economic conditions is required to administer enforcement activities.

General Administration

Knowledge of Departmental financial practices and procedures is required to effectively manage a Division within an allocated budget (includes travel and supplies). Knowledge of personnel management and Departmental procedures and practices relative to staffing and organization and classification concepts is also required in order to effectively utilize human resources. Knowledge of the applicable negotiated contracts, e.g. PM, CR, ST, is essential as is a knowledge of the methods and procedures for resolving union concerns or disputes. A knowledge of fire and health and safety procedures is required in the management of the Division. Sufficient knowledge of property and space management is required to recommend changes in these areas and maintain departmental assets.

DECISION MAKING

C4 / 255

Scope

Recommendations are made to change departmental policies and procedures as well as legislation affecting the taxpaying public. Initiatives and judgement are required in the planning and implementing of program activities and in the allocation and reallocation of resources to resolve unforeseen problems and to satisfactorily resolve contentious and complex enforcement cases that have been raised to this senior level by taxpayers and their representatives.

Impact

Decisions affect the degree of compliance with legislation, regulations, Departmental directives, policies and programs administered. Decisions also impact on operating procedures and program achievement within the district e.g., decisions would have a direct impact on the amount of tax assessed and revenue collected for the Hamilton district, the quality of review over the reporting of deductions at source, the identification of non-filers and subsequent effectiveness of compliance programs and the quality of service provided to all types of taxpayers with regard to enquiries programs. Decisions affect the Department's image and relationships with taxpayers (Individuals, Corporations, Trust Companies). Decisions and recommendations in dealing with taxpayers, senior corporate officers, other government agencies and professionals affect not only local situations, but may often be construed by taxpayers as having regional or national scope and implications.

OPERATIONAL RESPONSIBILITY

E2 / 130

Nature of Responsibility

Responsibility is exercised through subordinate Section Chiefs who are assigned a specific program and activities that collectively make up the Department's Verification and Collections program for the district. Work-plans, objectives and resources are developed for subordinates. Changes to established plans to meet unexpected problems are made between sections after analyzing priorities, goals and objectives of the Division. Responsibility is also exercised over the control of the Division's allocated budget.

Degree/
PointsComplexity and Size of Subordinate Organization

The Verification and Collections program in the district office is composed of various sub-programs (Identification and Compliance, Enquiries and Office Examination, Source Deductions and Collections). These sub-programs involve fluctuating workloads with varying peak periods e.g. tax-filing season is peak period for taxpayer enquiries.

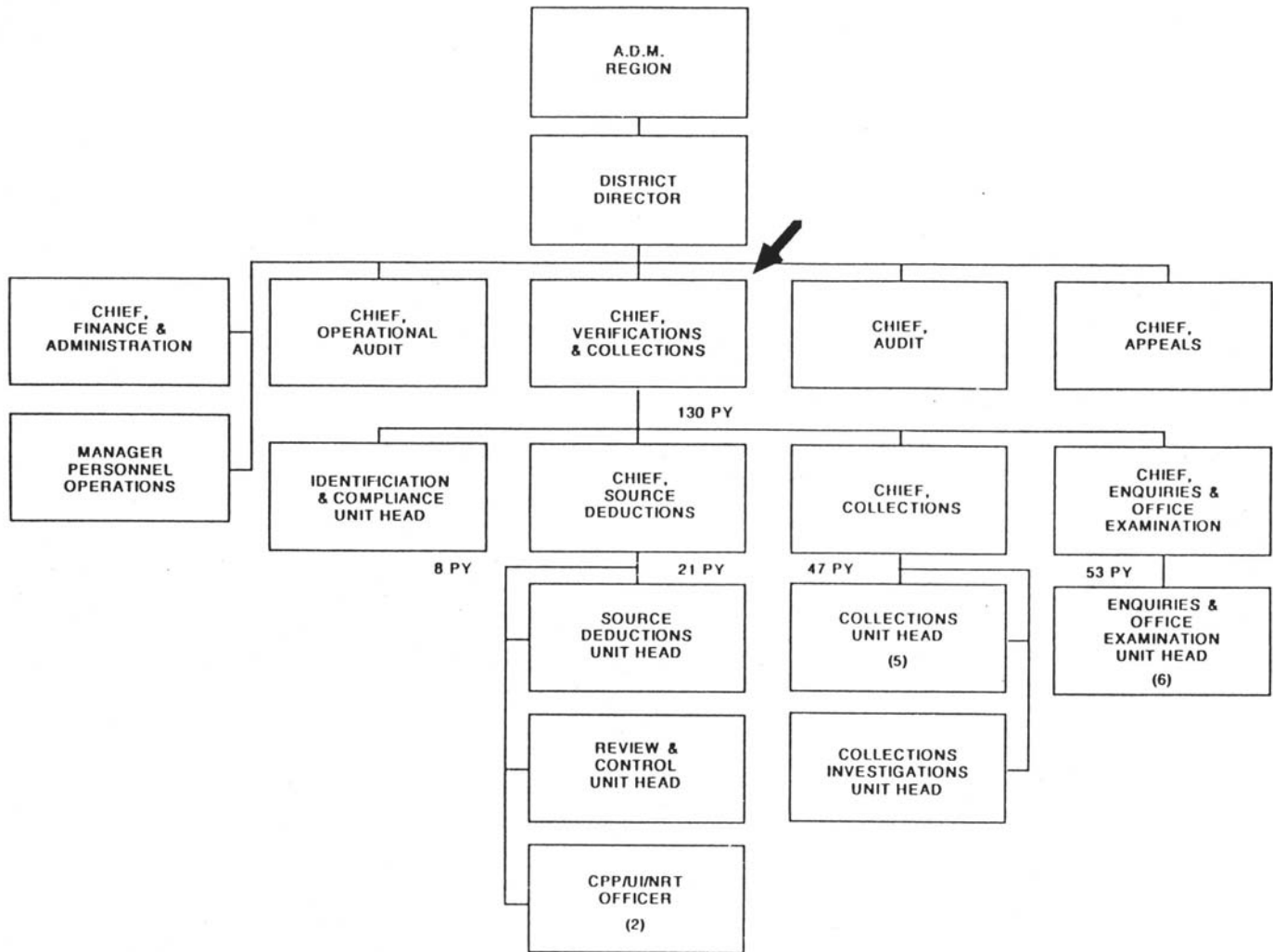
Most of the work generated in the District Office is processed by the respective Taxation Centre. The various sub-programs and activities utilize approximately 130 person-years.

CONTACTS

3 / 110

Consults with taxpayers and their representatives to reach agreement on matters which have been raised to this senior level, e.g. collection of large sums of assessed taxes, enforcement of contentious sections of the Income Tax Act, CPP and UI Acts and resolution of sensitive cases.

Agreement is reached with Municipal and Provincial authorities, either on a project or case-by-case basis, on the criteria and procedures to be followed for the provision or receipt of information required to support reassessment actions or for various other purposes.



Bench-mark Position Number: 12	<u>BENCH-MARK POSITION DESCRIPTION</u>	Level: 3
Descriptive Title: Training and Development Officer, Collections (Centre for Career Development)		Point Rating: 417

Reporting to the Group Head, Collections Training Programs:

Designs lesson material for departmental Collections courses in accordance with the "Systems Approach to Training"; conducts technical research in order to identify suitable material for course inclusion and ensures that the material will meet training objectives; participates with educational specialists in the preparation of initial course design plans which include objectives, teaching points, methodology, evaluation aspects and estimated completion dates; works with, guides and assists on-loan personnel; reviews design/redesign material prepared by co-workers for technical accuracy and potential inclusion in course curricula; prepares related reports and proofreads typed lesson material.

Instructs up to 20 trainees on a variety of technical topics covering the Collections field, e.g., jeopardy assessments, non-arm's length transfer of assets, Director's liability for source deductions and garnishment laws, policies and procedures. Directs and controls the activities of these trainees in a classroom environment. The training is conducted either on-site or at the Centre for Career Development with a CCD or local co-instructor. Assigns and marks classroom exercises and case studies in order to evaluate the participants' performance and assesses results in order to provide the relevant feedback to participants either on a group or individual basis. Compiles participant course evaluations and prepares instructor lesson evaluations and course summary reports for subsequent review.

Reviews lesson plan content and instructor evaluations and analyzes changes in income tax law, and Departmental directives and policy that affect lesson plan content or particular procedures or manuals in order to identify areas of courses which require improvement and redesigns the lesson material accordingly; recommends changes to course design when deemed appropriate.

Participates in task and needs analysis and design projects, provides assistance to new co-instructors, organizes courses facilities and materials and ensures that the necessary administrative documentation is completed, e.g., travel authorities and advances, expense reports, etc.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

Cl / 191

Program and Specialized/Technical

Knowledge is required of the applicable sections of relevant Federal and Provincial Statutes relating to the collections function, e.g., Income Tax Act and Regulations, Canada and Quebec Pension Plan Acts and Regulations, Unemployment Insurance Act and Regulations, the Bankruptcy Act, Estate Tax Act, Bulk Sales Act, Sheriffs' Act, Federal Court Act and various others. Knowledge is also required of all Interpretation Bulletins, Information Circulars, Operation Branch Letters, TOM (Taxation Operation Manual) procedures, Dominion Tax Cases and other departmental directives applicable to the collection of amounts owing to the Department. A knowledge of instructional techniques and theories of adult education is required in order to identify and resolve

problems arising from group instruction and individual tutorial sessions involving the learning needs of Collections staff. An understanding is also required of course design techniques including the choice of methodology, media, course execution and evaluation. A knowledge of the organizational structures and programs in the Verification and Collections field (located in both the District Offices and Taxation Centres) and a knowledge of common business practices is essential in order to meet training objectives and requirements and to ensure that lesson plans, case studies and examples are relevant and effective for training purposes.

General Administration

A knowledge of travel regulations is required in order to complete travel and expense documentation. A knowledge of training tools and of the Department's training facilities is required in order to organize course accommodations and materials.

DECISION MAKING

B2 / 146

Scope

Judgement is required in designing or redesigning lesson material which meets the needs of Collections staff in the field. Judgement is also required in developing design/redesign recommendations to course structures and in participating in the development of training objectives, teaching points, methodology, evaluation aspects and estimated completion dates. Initiative and judgement are required in researching technical content from a variety of sources in order to select appropriate material and examples to enforce teaching points and to organize course materials. Judgement is also required in organizing course facilities conducive to the training environment and to answer technical questions raised by course participants.

Impact

Decisions impact on the quality of training provided, including the relevance and effectiveness of course material selected, the nature and extent of feedback provided to course participants, and the establishment of appropriate training environments. Recommendations may result in changes to the structures of various courses. The quality of training provided also impacts on the subsequent job performance of participants.

OPERATIONAL RESPONSIBILITY

A / 10

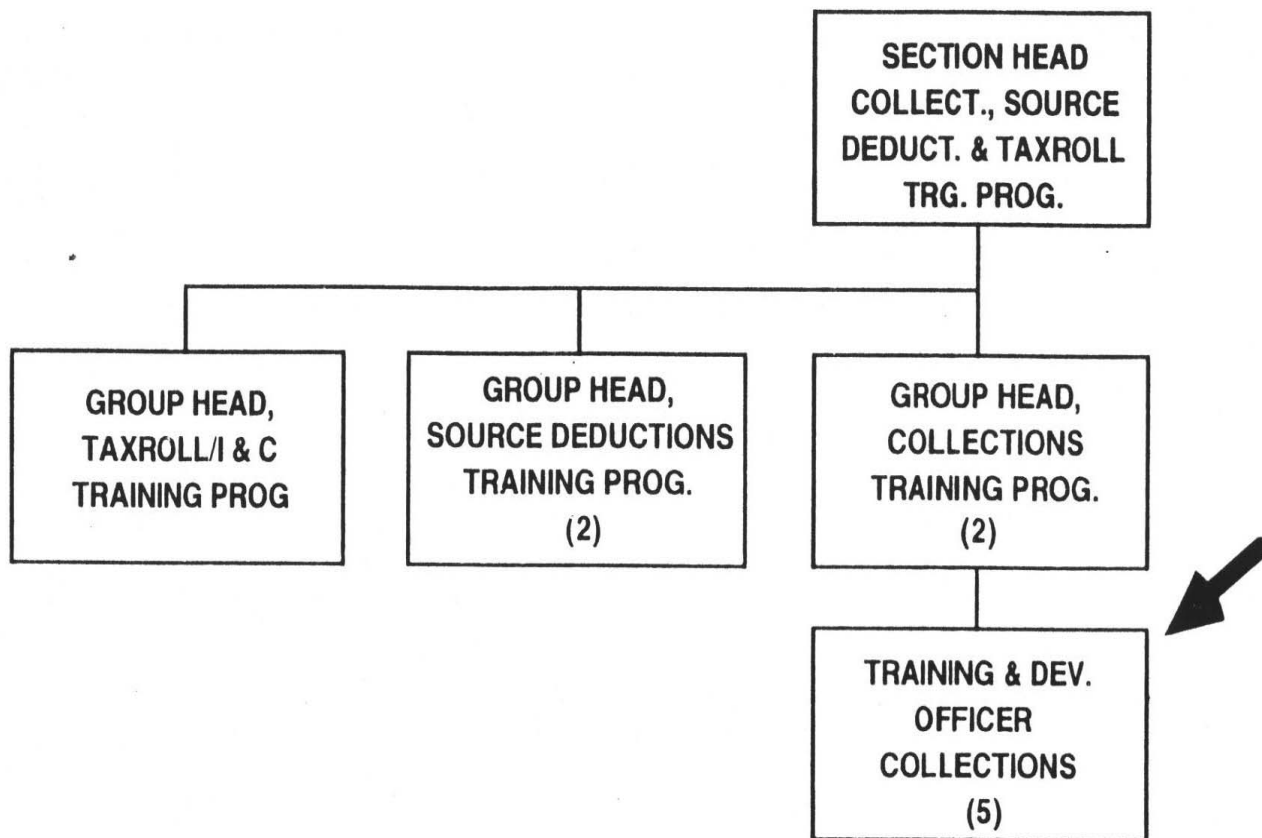
Nature of Responsibility

Responsibility is limited to formally instructing course participants on relevant legislation, policies, techniques and procedures in the Collections field, assigning the relevant exercises and examples to reinforce this knowledge and discussing problems or progress with course participants or with the respective supervisors when necessary. Guides and assists on-loan personnel.

Degree/
PointsCONTACTS

2 / 70

Persuasion is required in obtaining approval of recommended changes to course structures.
Obtains the co-operation of local managers and training co-ordinators in the implementation of training courses in such areas as the provision of classroom space, material and equipment.
Guidance is provided to course participants on the interpretation and application of various laws, departmental policies and procedures and collection techniques.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 13

Level: 6

Descriptive Title: CEC Manager, Saskatoon

Point Rating: 840

Reporting to the Director, Operations:

Plans, coordinates and directs through two Assistant Managers, three subordinate supervisors and one Branch Manager, the activities of 121 officers and support staff engaged in the delivery of all Canada Employment and Immigration Commission programs and services, to meet a variety of social, economic and labour market needs in the Saskatoon area; provides leadership in the delivery of the Canadian Jobs Strategy, Employment Services and the Unemployment Insurance Programs in a decentralized and dynamic environment; directs the review and analysis of local labour market conditions, trends and developments to determine the most appropriate program/service mix to meet local needs while complementing both regional and national priorities and planning initiatives; evaluates the effectiveness of national programs in meeting the needs of the communities served and makes recommendations to regional management for changes to programs; develops a comprehensive local operational plan that will identify the human and financial resource implications of established goals and objectives; provides for the development of operational strategies and procedures to accomplish the labour market plans.

Reviews contract proposals from employers made under such programs as the Skills Investment program, Skills Shortages program and Wage Subsidy program and approves contracts under delegated authority; makes final decisions on Mobility and other adjustment program grants to clients referred by subordinates; interprets program and policy guidelines and renders final decisions on such matters as referral of clients to job creation projects, allocation of training seats throughout the communities served and the amount of the administrative penalty to be imposed on individual claimants for offenses under the UI Act; makes recommendations with respect to training seats to be purchased, on the institution of special Outreach projects for such clients as women, youth and natives, and on the appointment of candidates for Board of Referees' chairperson. Manages all financial resources within the Saskatoon CECs labour market area, including Canadian Jobs Strategy and other program funds.

Maintains effective working relationships with a diverse cross-section of the community, such as Local Advisory Councils, elected representatives, officials from other levels of government, target group organizations, business and labour organizations, and the media to promote the objectives, programs and services of the Commission and to identify changes and developments in the local labour market such as plant expansions or closures; represents the Commission in formal meetings with public and private officials with authority to resolve problems requiring the re-allocation of CEC resources and the determination of new priorities with respect to program and services delivery; establishes local advisory and consultative committees to discuss and resolve labour market problems; promotes the use of employment equity practices with outside organizations and plans the delivery of employer seminars to advance this and other approved policies.

SPECIFICATIONS

KNOWLEDGE

D4 / 345

Program and Specialized/Technical

The work requires knowledge of the UI Act, the National Training Act and of the objectives and policies of the many employment and labour market programs and services delivered by the Commission at the local and regional levels, such as mobility, skill growth fund, worksharing, native internship program, outreach, adjustment assistance, employment equity, counselling and placement in order to coordinate the efforts of a large staff in delivering these varied programs to a community presenting diverse needs. The whole spectrum of programs, their purpose and their flexibility, must be thoroughly known and understood. The work requires a knowledge of the Commission's objectives and organization; a knowledge of the programs and services administered by other government departments and by departments and agencies of provincial and municipal governments impacting on the local labour market. The work requires knowledge of the local labour market, of trends and developments in industry, occupational shortages and surpluses, technological changes and of the structure of the local economy.

General Administration

The work requires knowledge of the Financial Administration Act, the Public Service Staff Relations Act, pertinent collective agreements and personnel and financial policies and practices. The work requires knowledge of management principles and practices in order to organize and manage the work of a large staff (121 p/ys) which provides a variety of Employment and Insurance programs and services in separate locations (Saskatoon, Humboldt, CEC for Students and two on-campus offices). Knowledge is required of the policies and practices respecting property and space management, telecommunications and health and safety because of the responsibility for buildings and rooms where large numbers of the public circulate.

DECISION MAKING

C4 / 255

Scope

Innovative and decisive management is required in order to cope with shifting program priorities, fluctuating workloads brought on by seasonal employment in the primary industries, and a scarcity of professional and highly skilled technicians and tradespeople in the labour market. The incumbent of the position must be capable of selecting the appropriate programs and services to be emphasized in the labour market area after analyzing the local and regional labour market conditions and identifying trends. There is a requirement to develop a comprehensive operational plan (Planning & Accountability Process) with specific quality and speed of service objectives that ensure the attainment of local, regional and national goals. Discretion and judgement are required in representing the Commission at various formal and informal meetings with business, community, labour and media representatives, in authorizing the commitment of program funds, in interpreting program policy guidelines and in recommending program expenditures and the approval of projects to higher authority. Judgement is required in evaluating national programs and policy initiatives in meeting local needs and in recommending changes to the Director, Operations.

Impact

Recommendations affect regional and national employment and insurance programs and policies and the workload of 121 employees serving a mixed industrial/agricultural community. Decisions affect the quality and speed of delivery of approximately 40 programs and services. The incumbent must respond to emergency situations to provide quick and efficient delivery of income maintenance payments to eligible workers affected by plant closures, strikes, or any other situation threatening the employment and financial security of large numbers of workers. Decisions and recommendations respecting the expenditure of program funds and the adoption of program policy affect the ability of employers to train and recruit staff, to adapt to changing market conditions and technological advancements and to maintain a qualified work force during economic downturns. Decisions and recommendations on mobility grants, outreach projects, proposals and allocation of training seats affect the ability of individual clients to obtain employment. Decisions to impose substantial financial penalties for offenses under the UI Act may cause financial hardship to individuals.

OPERATIONAL RESPONSIBILITY

E2 / 130

Nature of Responsibility

Responsibility is exercised through two Assistant Managers, three subordinate supervisors, and one Branch Manager who are accountable to the incumbent for the supervision of staff, the preparation of budget estimates and the effective and efficient delivery of services to the public. The work requires the development of operational plans for the fiscal year, the determination of the human, financial and material resources required and the control of resource utilization. Program and operational policies and procedures are adapted or modified and resources augmented and re-allocated to meet evolving or emergency situations or changes in priorities.

Administrative expenditures are authorized under sections 26 and 27 of the Financial Administration Act for overtime, hiring of casuals, travel, equipment, supplies, facilities and office accommodations. First level grievances are heard and recommendations are made on such matters as suspension and dismissal to the Regional Director General at the second level. Subordinates are evaluated against stated goals and objectives.

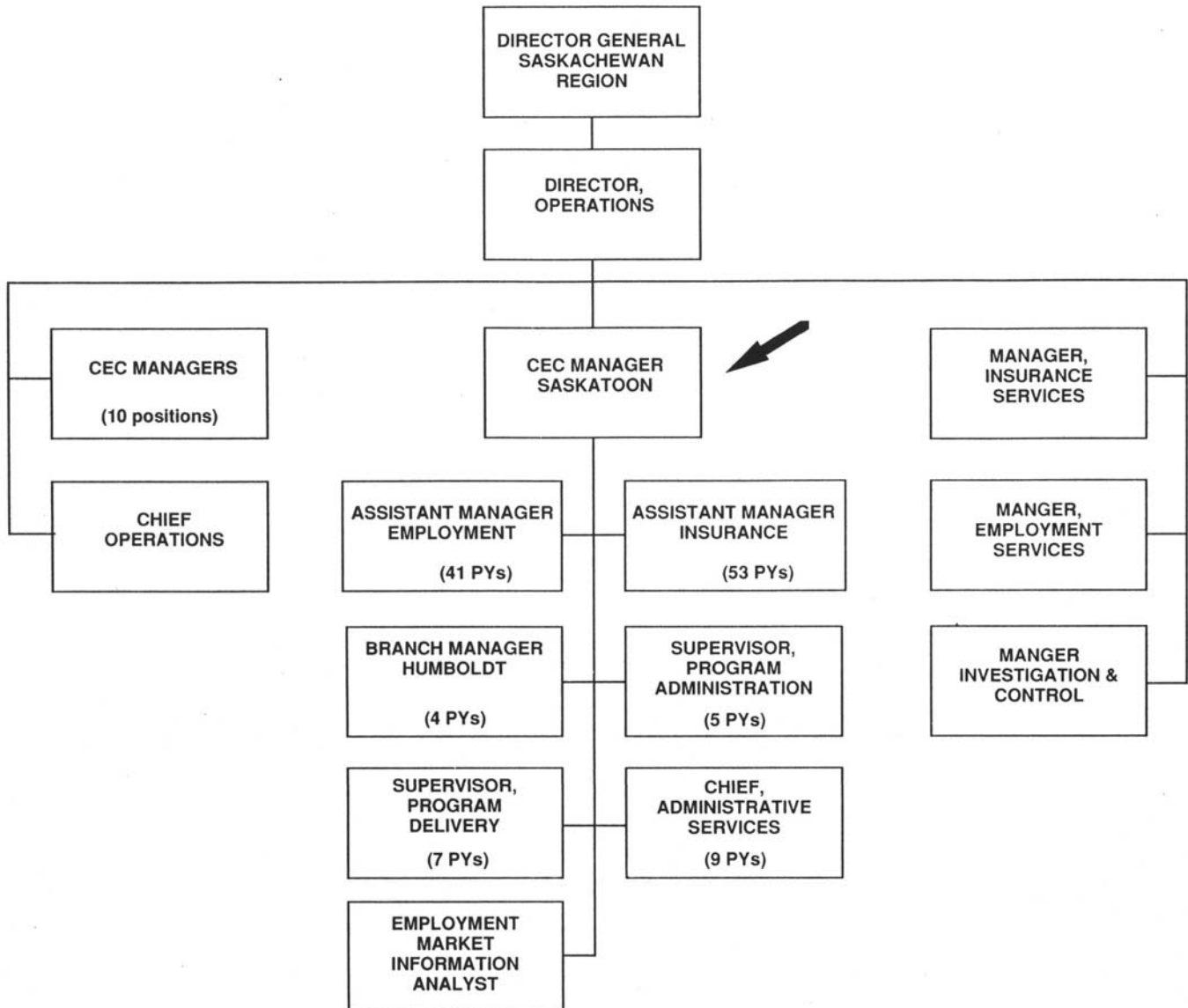
Complexity and Size of Subordinate Organization

The work entails line responsibility for two Assistant Managers, three subordinate supervisors, and one Branch Manager in Humboldt. In addition, it entails responsibility for two on-campus offices and a Canada Employment Centre for Students. Collectively, the staff of 121 person-years is responsible for the efficient and effective delivery of more than 40 programs and services to a large community with a mixed industrial/agricultural economy.

CONTACTS

3 / 110

Consultation is requires with officials of business, industry and labour, with government officials and with leaders of business, labour and community associations with respect to local employment and labour market problems, to decide on an appropriate course of action to resolve problems with CEC services and programs. Contracts with individual employers are negotiated and funding approved under delegated authority, and discussions are held with regional and head office program representatives to gain acceptance for proposals beyond the incumbent's authority. Discussions are held with MP's, MLA's, media representatives and other interested parties on specific cases and issues to explain the Commission's position on these matters and to promote an understanding and acceptance of the objectives, programs and services of the Commission.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 14

Level: 5

Descriptive Title: Regional Manager, Investigation
and Control

Point Rating: 672

Reporting to the Director, Operations:

Manages the Investigation and Control program for the Alberta/NWT Region and acts as the senior regional authority for the program. Develops operational plans and strategies and directs analysis into changing patterns and trends in socio-economic conditions and in the noted incidence of abuse to ensure the most effective deployment and organization of staff. Develops and implements regional policies, systems and procedures in consultation with regional program and CEC Managers and consults with National Headquarters staff on the development of national policy related to benefit programs control. Provides technical and professional expertise to field staff to ensure uniformity and consistency in the interpretation and application of legislation and policy, and in the application of investigative techniques and procedures. Visits CECs and reviews and analyzes reports prepared by regional and field staff in order to monitor and evaluate program control activities. Assesses the effectiveness of program control activities to determine the need to revise policies, guidelines, and procedures. Makes decisions to prosecute claimants and employers for fraud without reference to higher authority.

Develops and maintains effective working relationships with senior officials of other departments, other levels of government, employers and employer organizations, trade unions and private organizations and with Immigration officers and officials of security forces. Discusses problems relating to unlawful practices and the technical aspects of program control, and negotiates agreements with employers to participate in special control programs, such as the computerized report on hiring program. Provides technical interpretations and explanations in response to enquiries about program control activities and procedures.

Advises the Director and Director General on all aspects of the Investigation and Control program, of National Headquarters plans, policies and activities impacting on regional operations. Discusses special cases and operational problems having national or political implications or that impact on the operations of other regions and proposes or discusses solutions. Advises on trends and patterns in the incidence of program abuse that impact on other regional programs. Recommends changes in human and other resources, reorganizations and changes in systems, methods and procedures required as a result of changes to program control activities.

Supervises regional office Investigation and Control Officers engaged in developing regional policies and procedures and monitoring regional operations, and supervises through a subordinate supervisor, clerical staff engaged in processing investigations arising from observations received from three computer programs - computer post audit, computerized report on hirings and the automated earnings report system. Establishes goals and objectives and sets priorities for regional and CEC staff; allocates work and evaluates performance against stated objectives.

SPECIFICATIONSKNOWLEDGE

D2 / 279

Program and Specialized/Technical

The work requires a knowledge of the UI Act and Regulations, the Canada Evidence Act and the Charter of Rights and Freedoms as well as knowledge of Commission programs, policies and organization, entitlement principles, jurisprudence and court precedents and a knowledge of investigative principles and techniques. A knowledge of the Criminal Code is required, as is a knowledge of computerized systems and their application for control purposes. This knowledge is required to develop overall strategies and policies for the planning and administration of the investigation and control program in the region, to assess the effectiveness of the program and the requirement for new control initiatives and to represent the Commission in prosecution cases and in advising interested parties on control policies, techniques and procedures.

General Administration

Knowledge of departmental personnel management policies and procedures is required, as they relate to the classification and staffing of positions and the resolution of union concerns, as is a knowledge of the budget and corporate operational planning processes to manage a small regional office staff and a larger staff of program officers decentralized to two metro offices and ten local offices across the region.

DECISION MAKING

C3 / 223

Scope

Decisions concerning the development of regional policies, programs and procedures are made without the benefit of formal guidelines but require the adaptation of national policies to meet regional needs. Decisions to prosecute claimants and employers for fraud are made within the provisions of the Unemployment Insurance Act and Regulations and the Canada Evidence Act and in accordance with the policies and procedures of the Investigation and Control Program. Initiative and judgement are required in the development of appropriate policies and procedures of investigation and control and for determining the need for changes in the system to keep up with evolving methods of defrauding the unemployment insurance account. Judgement is required in the means employed of developing, in the community, an awareness of investigation and control activities and a concern for the safeguarding of public funds. Judgement is also required in order to obtain the cooperation of interested parties in providing information and assistance necessary to the development of new fraud detection programs.

Recommendations for corrective action required as a result of the monitoring of investigation and control operations in the CECs are made within the context of Investigation and Control policies. Recommendations are also made to National Headquarters on policy changes related to benefit programs control.

Degree/
PointsImpact

Decisions and recommendations affect the efficiency and effectiveness with which the investigation and control program operates in the region and impact on national and regional policy development and on the nature and scope of the control program. Decisions also result in the prosecution of claimants or employers for fraud and affect the degree of public awareness of unlawful practices which can act as a deterrent to abuse under the legislation.

OPERATIONAL RESPONSIBILITY

D1 / 60

Nature of Responsibility

The work entails responsibility for the management of the Investigation and Control program in the Alberta/NWT region. Responsibility is exercised through 12 supervisors reporting to 10 CEC Managers and 2 Metro Managers and through a small staff of 16 officers and clerks at the regional office. The work requires the development of operational plans for the fiscal year, the determination of the human, financial and material resources required and the issuance of budget guidelines for use of CEC Managers in forecasting workload volumes, program priorities, anticipated results and production standards. The work also entails responsibility for the interpretation and application of national policies, the development of regional policies and operational priorities, and the development and implementation of appropriate monitoring and evaluative systems to assess local office operations. In addition, it also entails responsibility for assessing regional performance and recommending adjustments to staff deployment or training, the establishment of task forces or other corrective action as required.

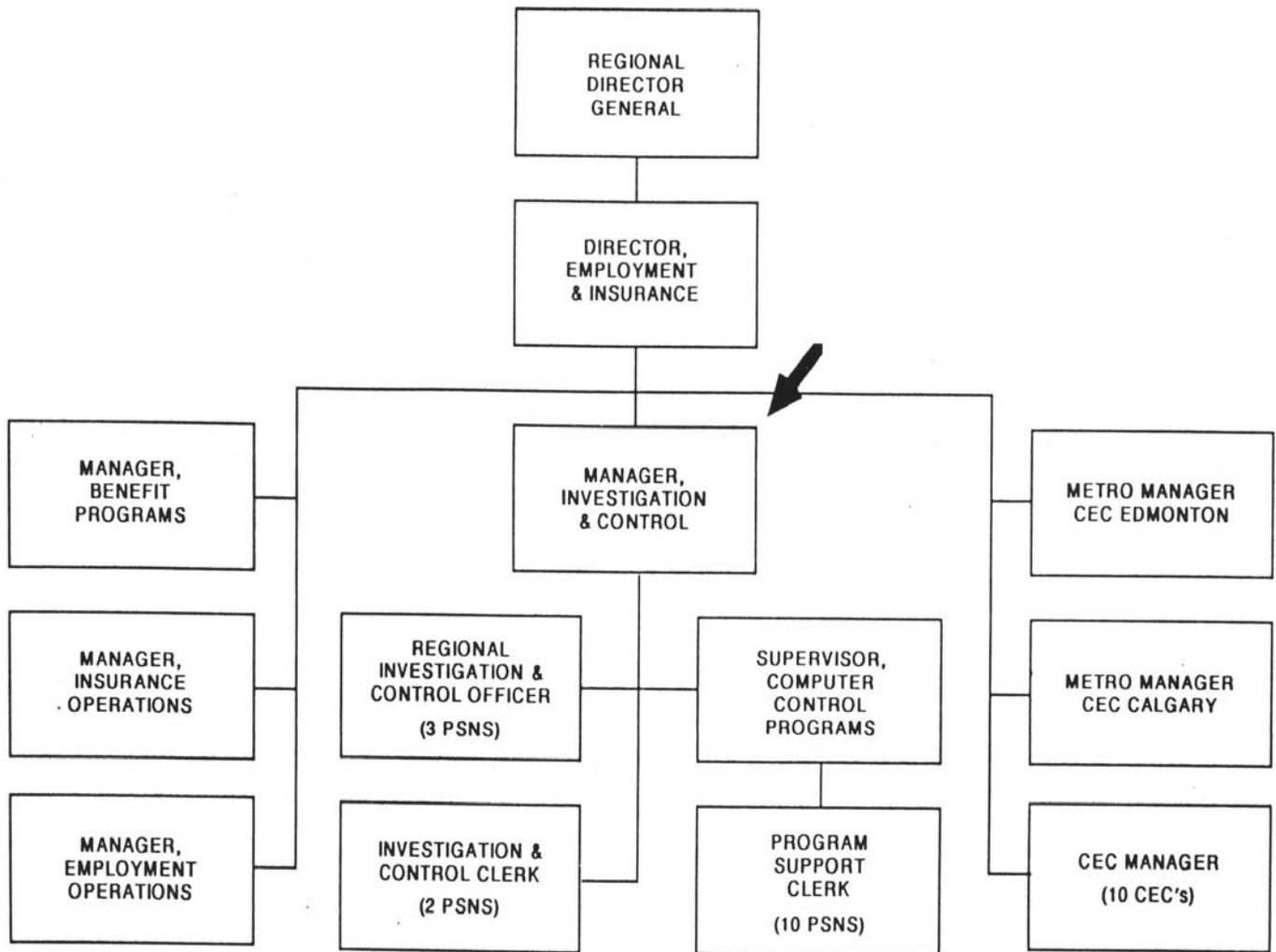
Complexity and Size of Subordinate Organization

N/A

CONTACTS

3 / 110

Consultation and close co-operation are required with law enforcement and security agencies of other government departments and other levels of government in the investigation of cases of abuse and fraud and in the prosecution of employers and claimants under the UI Act and the Criminal Code. Consultations are also held with officers of the court and legal representatives respecting the prosecution of individuals. Negotiations are held and agreements are reached with employers and employer associations on the acceptance and implementation of specific computerized and manual control programs to prevent and detect abuse and fraud. The work also requires the provision of advice and explanations to employer associations, community leaders, unions, social action groups and government representatives with respect to the UI Program and the role of investigation and control in the prevention, deterrence and detection of abuse and fraud.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 15

Level: 2

Descriptive Title: Supervisor, Self and Assisted Services

Point Rating: 340

Reporting to the Canada Employment Centre (CEC) Manager, North Vancouver:

Supervises and co-ordinates Employment and Insurance Officers and Reception and Enquiry Clerks engaged in the receipt and adjudication of non-contentious claims for UI benefits, the determination of client needs for employment programs and services and the referral of "job ready" clients to employers, and in the provision of reception and enquiries activities to worker and employer clients, UI claimants and members of the general public. Organizes and assigns work, monitors work in progress and makes necessary adjustments to work flow, methods and procedures to accommodate periodic fluctuations in workload, or to adapt to major disruptions arising from mass layoffs, plant closures or the introduction of legislative or program changes. Provides advice, guidance and training to staff on all aspects of unit operations, including the use of EDP on-line systems; evaluates performance of staff against stated objectives and takes corrective action to improve performance.

Assesses the efficiency and effectiveness of unit operations through spot checks on claims files, employment referrals and enquiry referrals to Insurance Agents, and through observation of client interviews. Reviews and analyzes statistical and narrative reports generated by CEC quality control staff or by regional quality assurance monitors. Advises the CEC Manager of problem areas, patterns or trends and recommends ways and means of overcoming problems and enhancing speed and quality of service.

Meets with clients, members of the public and claimants dissatisfied with the service provided by unit staff and resolves difficult and sensitive issues. Provides explanations on CEC program and services and on the UI Act and Regulations to clients, claimants, employers and members of the general public.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

82 / 169

Program and Specialized/Technical

The work requires a knowledge of the UI Act and Regulations and of attendant systems and procedures governing the processing, adjudication and payment of claims for UI benefits. The work requires a knowledge of employment programs and services, such as training, mobility, counselling and attendant policies and procedures and techniques respecting job search, placement and referral. Knowledge of Commission objectives, programs and policies and of other governmental social programs is required, as is a knowledge of regional and local operating procedures, on-line computer systems, interviewing techniques and local labour market conditions. This knowledge is required to provide guidance and training to subordinate officers and support staff and to resolve difficult concerns and complaints from dissatisfied clients and claimants.

General Administration

The work requires knowledge of personnel policies and practices respecting staffing of positions, pay, attendance and appraisals. Also required is a knowledge of health and safety, layout of work stations, paper flows and traffic flows.

DECISION MAKING

A2 / 101

Scope

Work is performed within detailed and readily available operating guidelines, directives and procedures. Initiative and judgement are required in maintaining optimum traffic and work flow patterns for individuals entering the CEC to ensure their exposure to the appropriate program or service area with due consideration for both quality and speed of service. Initiative and judgement are also required in allocating staff to meet fluctuating workloads, in assessing the effectiveness and efficiency of operations and in making effective recommendations to correct identified areas of concern. Judgement and tact are required in resolving difficult and usually emotionally-charged confrontations with clients and claimants, and in explaining Commission policies and programs to employers, special interest groups and representatives of various public and private agencies.

Impact

Decisions are made with respect to the organization and allocation of staff to meet fluctuating workloads, affect the work of the unit, and the quality and speed of service to the public in the critical areas of reception, enquiries, referral of job-ready clients and the adjudication of non-contentious claims. Recommendations are made to revise operating procedures within the unit and between units to enhance quality and speed of service.

OPERATIONAL RESPONSIBILITY

C / 40

Nature of Responsibility

The work requires the supervision of fifteen Employment and Insurance Officers and Reception and Enquiry Clerks, allocating work, monitoring its progress through observation and through review of quality control and quality assurance reports, providing guidance and training to staff, evaluating their performance, and taking corrective measures to improve performance. Participates in the formal staffing and appraisal processes.

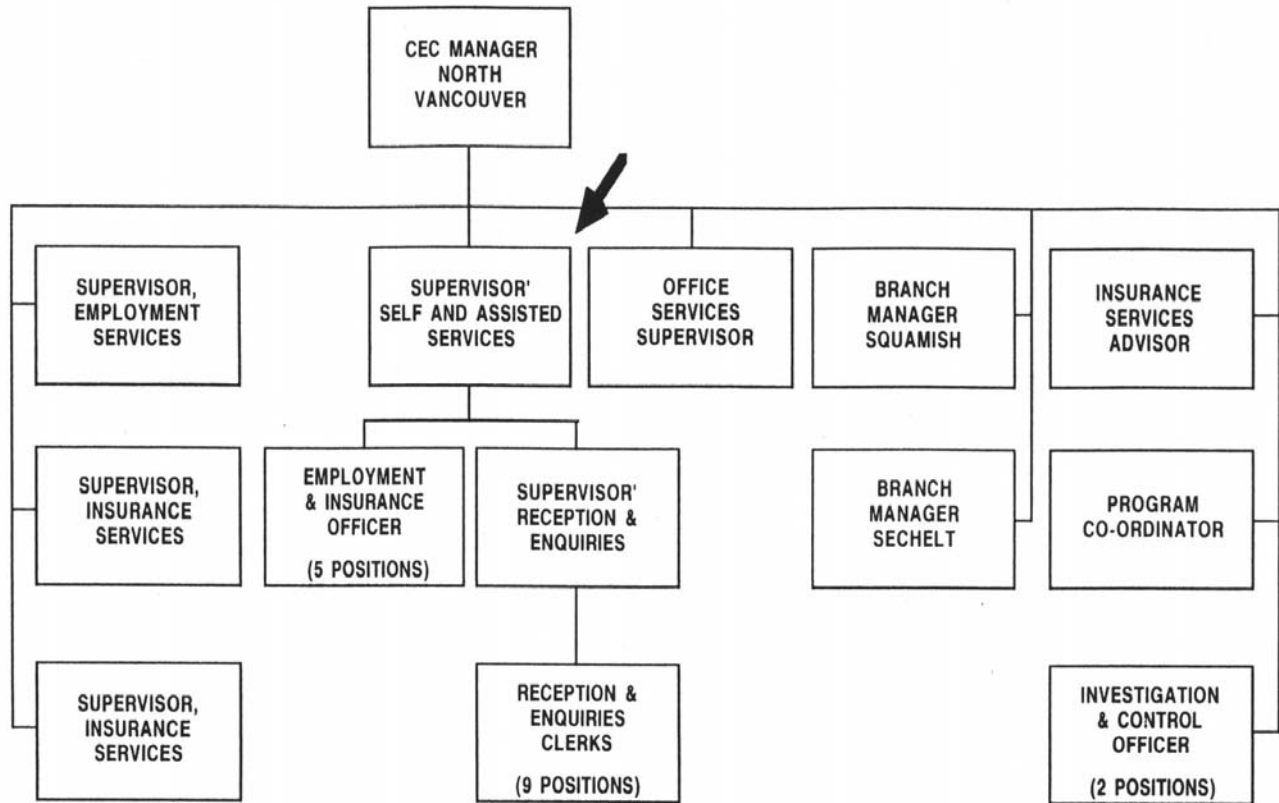
Complexity and Size of Subordinate Organization

N/A

CONTACTS

1 / 30

The work requires the provision of explanations to employers, representatives of other government departments and agencies, special interest groups and members of the general public respecting Commission programs and policies and governing legislation. Also required is the resolution of difficult and sensitive issues involving irate or emotionally distraught clients or claimants.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 16

Level: 3

Descriptive Title: Supervisor, Employment Services

Point Rating: 480

Reporting to the Manager, CEC Moose Jaw:

Plans, organizes and controls the activities of Employment Counsellors and support staff engaged in the delivery of employment programs and services to worker and employer clients. Provides advice, guidance and training to subordinates on all aspects of unit operations including EDP systems, evaluates performance against quality control standards, and makes recommendations to the Manager on employee performance and to regional program specialists to effect changes in operational and program policies and procedures. Monitors work in progress and makes adjustments to staff allocations, work methods and procedures to meet changing workloads and priorities.

Reviews recommendations from subordinates respecting applications for training mobility grants, employer incentive proposals and foreign worker recruitment, and authorizes payment of program funds and Confirmation of Offers of Employment. Resolves complaints and disputes between clients and subordinates respecting service and legislative or program requirements. Meets with representatives of community colleges and technical institutes to discuss and resolve problems involving commitment of monies with respect to such issues as allowance payments, availability of training space, and course scheduling. Represents the CEC in meetings with non-government organizations, employers and business associations and government representatives to obtain information, to explain the programs and services available, and to resolve issues of mutual interest and concern.

Participates as a member of the management team and makes recommendations with respect to the design and modification of office policies, procedures, workflows and layouts, and to the initiation or modification of administrative practices.

Degree/
PointsSPECIFICATIONSKNOWLEDGE

C2 / 224

Program and Specialized/Technical

The work requires a knowledge of the full range of employment programs and services such as, Canadian Industrial Renewal program, Canada Farm Labour Pools, Canada Mobility program, Outreach, Native Internship, Careers Canada, Choices, to provide guidance and training to staff and to provide interpretations and decisions on specific cases and issues. The work also requires a knowledge of the relevant sections of the UI Act, the Immigration Act, National Training Act, other social legislation impacting on the delivery of employment services to worker and employer clients. A knowledge of the functioning and structure of the local labour market, educational institutions and social support agencies is required to direct the provision of effective counselling, placement and referral services.

General Administration

The work requires knowledge of departmental personnel policies, collective agreements and administrative practices including computerized management information systems to allocate work and supervise staff. A knowledge of financial policies and procedures is required to manage O&M funds and approve travel requests.

DECISION MAKING

B2 / 146

Scope

Decisions are made in organizing and controlling the work of the unit and in providing guidance to subordinates in the provision of a wide range of employment services to worker and employer clients, and in the administration of employment programs. Judgement is required in the resolution of sensitive issues and disputes between clients and subordinates respecting service expectations and program requirements, and in the interpretation and application of policies and guidelines to particular cases. Initiative and judgement is required in establishing and maintaining effective working relationships with local employers, government agencies and educational institutions. Judgement is required in assessing the effect of local policies and making recommendations for changes to accommodate employment problems.

Impact

Decisions affect the work of the unit (14 person-years) and the quality and speed of delivery of employment services to the local labour market. Decisions on off-shore recruiting, mobility and training applications affect the short and medium term labour supply/demand, and employment opportunities of Canadian citizens and Landed Immigrants. Decisions on individual cases respecting program or service eligibility can establish regional precedents.

OPERATIONAL RESPONSIBILITY

C / 40

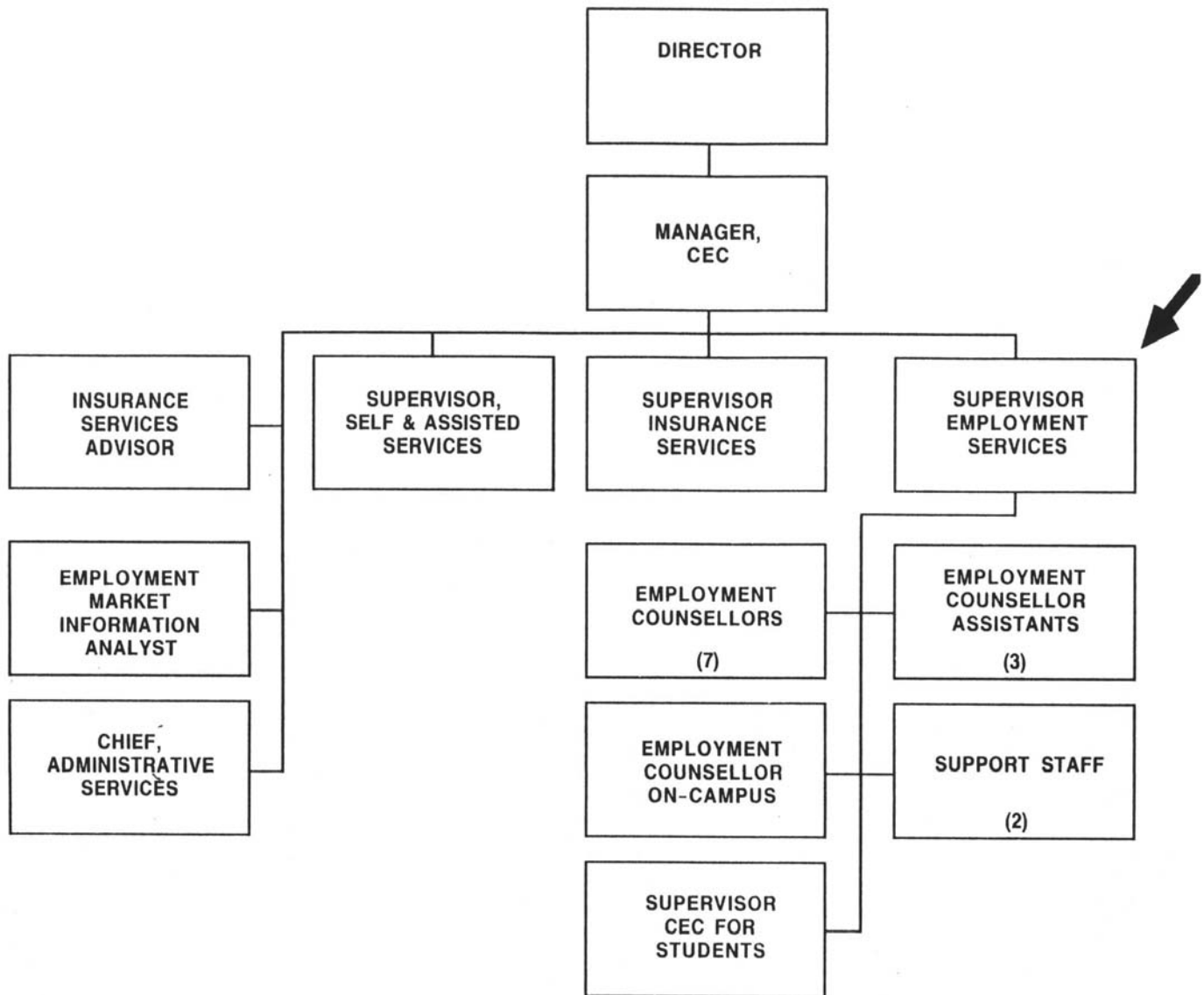
Nature of Responsibility

The work requires the supervision of Employment Counsellors and support staff, assigning and reviewing their work, assessing performance and providing guidance and training in the application of program and operational policies, guidelines and procedures. Recommendations are made to the Manager respecting resource requirements and operational objectives for the unit.

CONTACTS

2 / 70

Provides information on and explanations of employment programs and services with worker and employer clients to determine service needs, and resolves disputes on eligibility for employment services and programs. Consults with representatives of non-governmental organizations, social action groups, business associations, employer and employee groups and other levels of government to promote CEC employment services and programs, to advise on legislative and policy requirements, and to resolve problems and reach agreement on matters of common interest and concern. The work also requires consultation with post-secondary school representatives to reach agreement on and resolve training program availability and delivery problems.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 17

Level:3

Descriptive Title: Benefit Programs Officer
BC/Yukon Region, EIC

Point Rating: 447

Reporting to the Chief, Industrial Benefit Programs:

Adjudicates complex, contentious cases, such as labour disputes, fraud cases, cases involving a number of Canada Employment Centres (CEC's). Issues instructions to CEC(s) with respect to the nature and extent of fact finding required in labour dispute and other complex cases. Analyzes facts submitted, and where required personally interviews employers, workers, provincial government representatives, unions and legal advisors to determine the facts of the case or coordinates the fact finding being conducted by a number of CECs. Renders decision on entitlement and instructs local offices accordingly.
Monitors implementation of decision.

Conducts quality assurance monitoring reviews of local office (CEC) Insurance program activities. Assesses the efficiency and effectiveness of claims processing and adjudication activities, and the quality of fact finding, entitlement determination and Boards of Referees decisions and activities. Monitors compliance with quality control standards and analyzes trends. Reviews and analyzes a variety of production, workload and quality control reports, and visits local offices during course of reviews as part of quality assurance plan to correct specific problems or to assist CEC management. Determines causes of problems and ways and means of correcting them, and initiates remedial action. Advises local office management of findings and of the corrective action required, makes recommendations to local and regional office management in written report, and where necessary, renders decision on site to correct problem, such as non-compliance with legislation, with policy or with principles of adjudication or inadequate operational methods at the CEC level.

Reviews benefit entitlement and appeals policy circulars and other policy and procedural directives from National Headquarters respecting legislative, program or operational changes and instructs local office Insurance staff in the application or changes in law, regulations, policies and procedures. Participates in the development and promulgation of regional procedures and modifications to national policies as a result of problems identified during monitoring reviews or to accommodate regional requirements. Participates in the analysis of training needs, the development of training material and the conduct of training programs for local office program and supervisory staff.

Reviews decisions made by Boards of Referees on contentious cases, assesses advisability of recommending an appeal to the Umpire or to the Federal Court, and where approved, prepares appeal. Analyzes reports of Boards of Referees activities and visits Board centres regularly to assess the efficiency and effectiveness of their operations and the legality of their decisions. Prepares reports containing data and information required for the training of Board Chairpersons and members and recommends their removal and replacement.

SPECIFICATIONS

KNOWLEDGE

C1 / 191

Program and Specialized/Technical

Knowledge is required of the U.I. Act and Regulations, other legislation, such as National Training Act, provincial Employment Standards Act and Labour Code, jurisprudence, entitlement principles and Insurance policy directives and guidelines to adjudicate contentious cases such as labour disputes, to assess quality of fact finding and entitlement decisions at the local office level, to evaluate Board of Referees decisions and to prepare appeals on behalf of the Commission to the Federal Court. Knowledge is required of the Commission organization, the claims processing, adjudication and appeals systems, and national and regional operational policies and guidelines to assess the efficiency and effectiveness of local office and Boards of Referees Operations, to identify problems and devise ways and means of resolving them. Knowledge is also required of quality assurance, quality control policies, practices, and techniques and investigative and interviewing techniques. Knowledge is required in the analysis of statistical and other data to ascertain trends in Insurance operations, in writing reports and in responding to general and specific enquiries.

General Administration

The work requires knowledge of financial authorities governing travel, printing and publication.

DECISION MAKING

B2 / 146

Scope

Decisions are made in monitoring the efficiency and effectiveness of local office Insurance operations, Boards of Referees activities and the quality of entitlement determination fact finding and adjudication. Initiative and judgement are required in the identification of problems, operational trends, training requirements and ways and means of resolving problems and improving service to the public. Judgement is required in advising CEC management of identified problems and developing trends, and of the remedial action necessary which may involve training or replacement of staff or modifications to work methods and processes. Discretion and judgement are required in investigating and adjudicating contentious cases, in assessing a variety of factors to determine whether an appeal should be lodged with the Federal Court, and in recommending the removal and replacement of Boards of Referees chairpersons and members. Judgement is required in analyzing and interpreting legislative, program and operational changes, jurisprudence and precedent setting decisions, and in providing expert technical advice to CEC staff on these matters. Discretion is required in interviewing parties in labour disputes and other contentious cases, in advising legal representatives on cases to be appealed, in explaining the rationale for the decisions on contentious cases and in answering enquiries from members of parliament and provincial governments on specific cases.

Impact

Decisions on policy and procedural changes arising from the interpretation of the Act and regulations, national policies and directives, and as a result of monitoring reviews effect the efficiency and effectiveness of Insurance operations, including the quality of adjudication, the operation of Boards of Referees and the appeal process, across the BC/Yukon region. Decisions on labour dispute cases impact directly on hundreds or thousands of workers, on employers, and their associations. Recommendations for appeals to the Umpire or to the Federal Court, where it is judged that the Board has erred in law, acted capriciously or did not exercise the principles of natural justice, can result in the establishment of legal precedents.

OPERATIONAL RESPONSIBILITY

C / 40

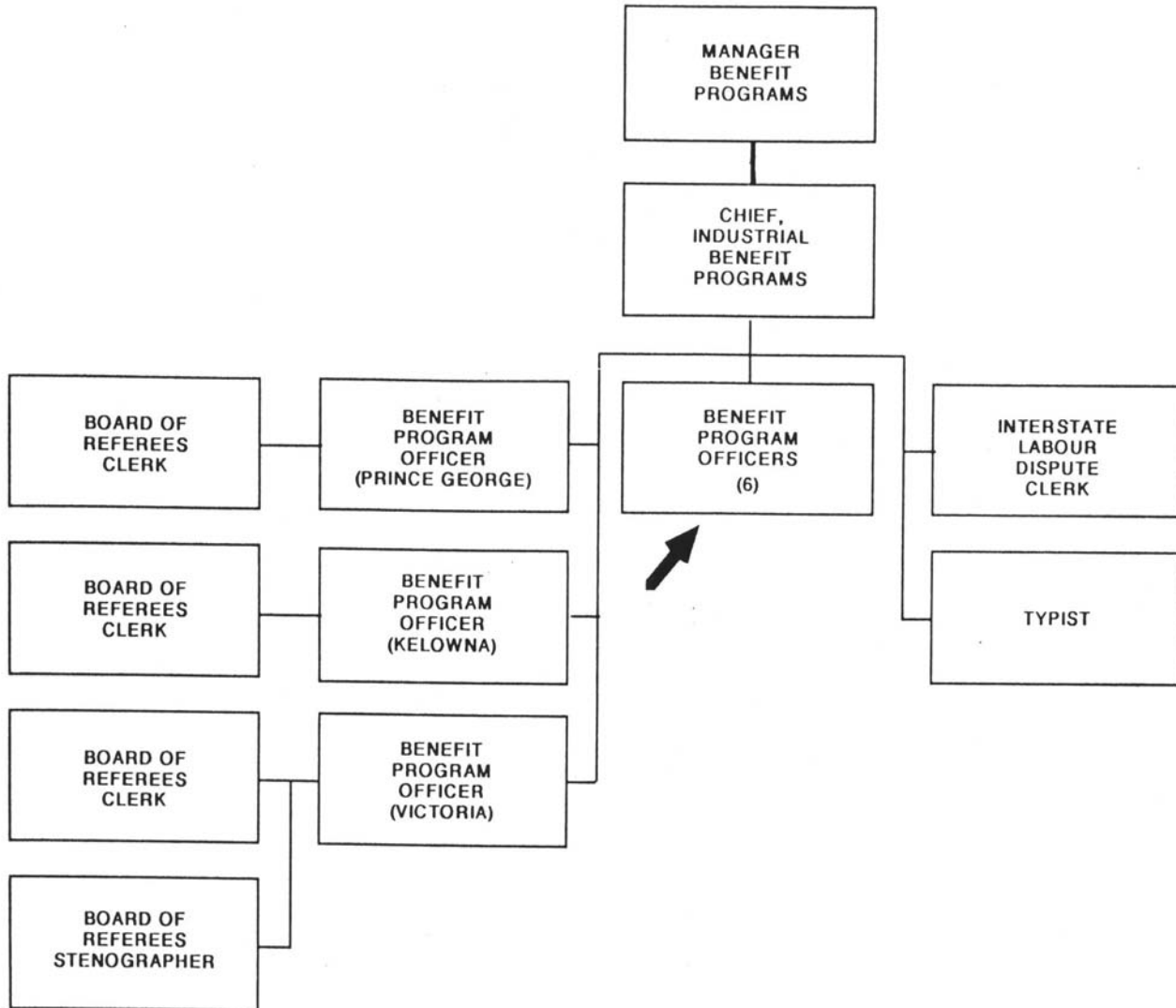
Nature of Responsibility

The work requires the monitoring of all Insurance program activity in CEC's across the BC/Yukon region to assess the efficiency and effectiveness of operations, compliance with and adequacy of national and regional operational policies and procedures, and the quality of adjudication decisions. The work entails responsibility for identifying problems or potential problems, recommending remedial action such as operational policy or procedural changes, training of supervisory and program staff, and where required, personally rendering corrective decisions. It also entails evaluating the efficiency and overall performance of Boards of Referees, and recommending training, removal or replacement of individual Board chairpersons and members. Expert technical advice is provided to Insurance staff and management in the CEC's on all aspects of the UI Program, and to instruct CEC Insurance staff on labour dispute cases.

CONTACTS

2 / 70

The work requires interviewing union officials, employers and their legal representatives in labour dispute cases to obtain their cooperation and to persuade them to provide information required to reach a decision. It also requires investigating these and other contentious cases as well as complaints regarding Insurance services, and explaining the reasons for the decisions or for the treatment of individuals or classes of claimants. The work requires the provision of advice to CEC management on monitoring results and seeking their commitment on ways and means of resolving identified problems and improving service to the public. Specific cases are discussed and responses are provided to more general enquiries concerning the UI Program, level of service, opening and closure of offices, Commission policy with a wide variety of constituents. The work also requires advising lawyers representing the Commission before the Umpire or the Federal Court of Appeal, to assist them at the hearings, and to represent the Commission before the Board of Referees in complex cases.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 18

Level: 2

Descriptive Title: Immigration Counsellor

Point Rating: 330

Reporting to the Supervisor, Immigration Counsellors:

Reviews and evaluates applications, and interviews applicants (visitors, returning residents) to determine whether applications for extensions of status or for work or study in Canada should be authorized or refused, whether the terms and conditions of admission should be altered, and whether returning resident permits should be refused or approved. Approves or refuses applications. Assesses applications made on humanitarian, compassionate and national interest grounds to determine eligibility. Interviews applicants, assists them in the completion of applications, and evaluates a variety of confidential medical, security and criminal information relating to the applicant. Makes a written recommendation to superiors to accept or reject applications, taking into account extenuating circumstances surrounding the case.

Interviews sponsors making Family Class applications to determine their eligibility to apply; assesses their financial status and willingness to make appropriate provisions for relatives abroad, assists them in the completion of applications and other documentation required, such as for an assisted passage loan, and makes written recommendation to accept or reject applications. Counsels sponsors on their responsibilities towards relatives upon their arrival in Canada; provides advice, assistance and information to persons admitted to Canada as permanent residents and refers them to the appropriate agencies for specialized help.

Develops and maintains close working relationships with law enforcement agencies, representatives of other governments, other levels of government, business; non-governmental organizations and social action groups to obtain and exchange information on illegal immigration activities and the movement of dangerous or potentially dangerous individuals. Investigates suspected violations of the Immigration Act, such as illegal entry or illegal employment of visitors, arrests and detains individuals when warranted and recommends prosecution. Responds to representations from lawyers, members of parliament, consular officials or members of associations interested in the welfare of permanent residents and visitors.

Acts as Senior Immigration Officer as required. Acts for the Manager Canada Immigration Centre (CIC) in that officer's absence, performs escort duties in transporting detainees, as required.

Degree/
PointsSPECIFICATIONSKNOWLEDGE

B1 / 136

Program and Specialized/Technical

The work requires a knowledge of the Immigration Act and Regulations, and a knowledge as well as of Commission policies, guidelines and procedures respecting the entry of visitors, immigrants and returning residents, the Citizenship Act, the Criminal Code of Canada and the Narcotics Control Act. The work also requires an awareness of the social, political and other implications of approving or refusing applications, particularly those with humanitarian, compassionate, national interest or family class

dimensions. Knowledge is required of interviewing and investigative techniques and procedures, and of the legal requirements for conducting investigations and formal enquiries, and the arrest, detention or removal of individuals. The work requires knowledge of report writing and of presenting details of fact finding and investigative activities.

General Administration

Knowledge of internal administrative procedures is required.

DECISION MAKING

81 / 114

Scope

The work requires the exercise of initiative and judgement in assessing applications and interviewing individuals wishing to enter and/or remain in Canada, in obtaining and evaluating the relevant facts and in determining whether there are humanitarian, compassionate or national interest considerations to be taken into account. Judgement is required in assessing family class applications, in determining the ability of sponsors to make financial and other provisions for relatives abroad, and in counselling sponsors on their responsibilities to their relatives upon arrival in Canada. Discretion is required in the acquisition, use and exchange of confidential and sensitive information when working with law enforcement agencies and representatives of other governments. Initiative is required in the investigation, apprehension, arrest or detention of individuals who have violated the Immigration Act. Judgement is also required in explaining the Act and Commission policy to lawyers, members of non-governmental, organizations and other interested parties and in soliciting their cooperation in specific cases.

Impact

Decisions and recommendations are made to approve or refuse applications to enter and/or remain in Canada, to detain, arrest or deport individuals and to approve or refuse the admission of family members of immigrants and permanent residents. Decisions and recommendations directly affect sponsors and their families with respect to family reunification.

OPERATIONAL RESPONSIBILITY

A / 10

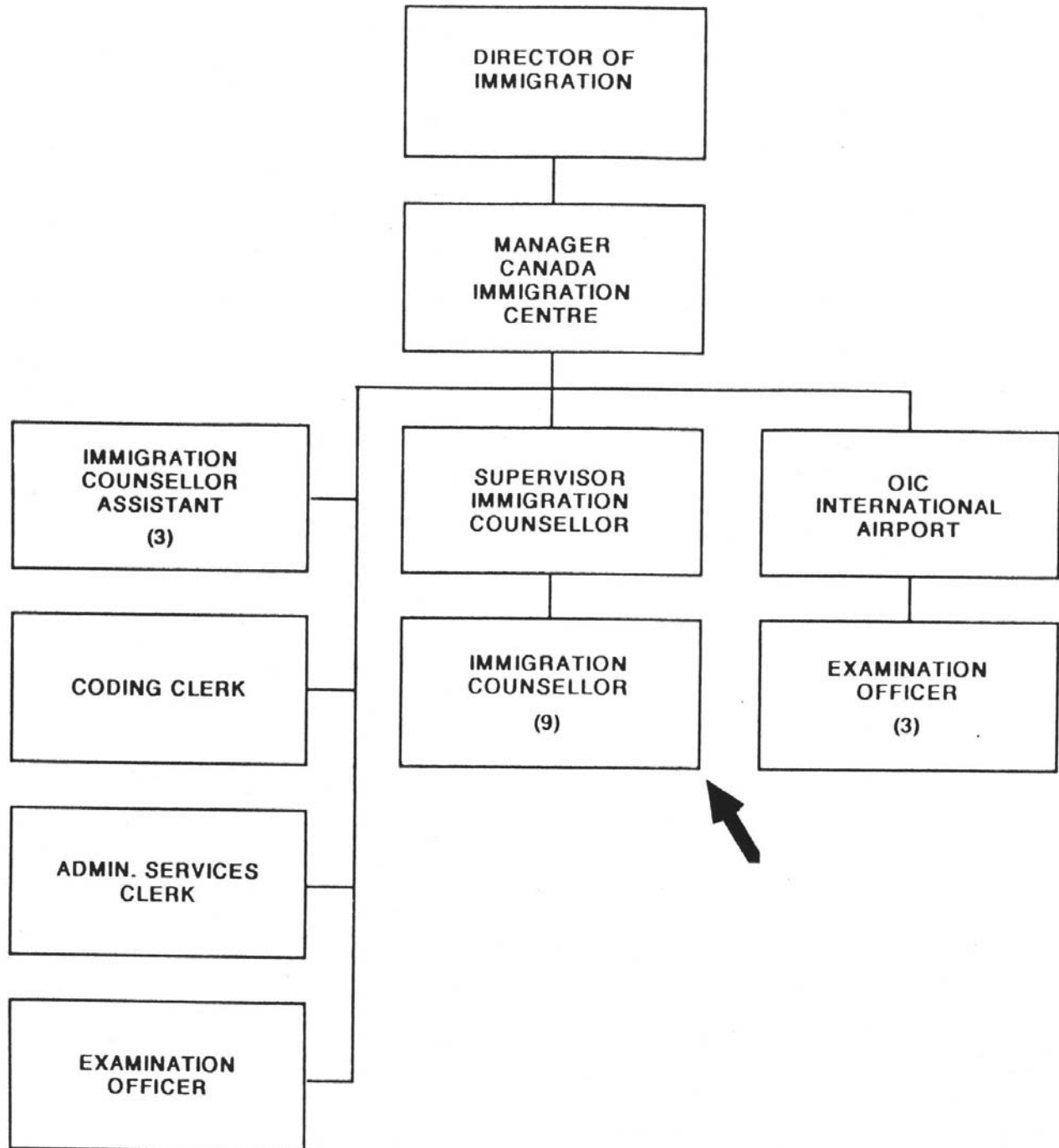
Nature of Responsibility

Responsibility is primarily for own work, although there is occasionally the requirement to assist in the training of junior officers and support personnel and there may be the requirement to act for the Manager, CIC, in that officer's absence.

Degree/
PointsCONTACTS

2 / 70

The work requires interviewing applicants for entry into, and permanent residency in Canada, and applicants who wish to sponsor relatives abroad to determine their eligibility in accordance with the Immigration Act and Commission policies. The Act and Regulations are explained to lawyers, representatives of business, non-governmental organizations, other levels of government and other interested parties and their cooperation is solicited in the investigation of cases involving suspected illegal entry or other violations of the Act. The work also requires the acquisition and exchange of confidential and sensitive information on individuals with members of law enforcement agencies and representatives of other governments.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 19

Level: 2

Descriptive Title: Insurance Agent II

Point Rating: 330

Reporting to the Supervisor, Insurance Services:

Adjudicates contentious claims for U.I. benefits. Investigates circumstances surrounding loss of employment and interviews claimants and employers to ascertain the facts on such issues as reasons for loss of employment, availability for work, capability of working, and credibility of claimants' statements. Interprets the Act and regulations, jurisprudence and other legislation, collective agreements and labour market information and renders decisions on behalf of the Commission, with respect to eligibility, entitlement to benefits, disqualifications and disentitlements, with due regard for individual situations. Explains rights and obligations to claimants, the terms and conditions for continued receipt of benefits, and the reason(s) for denying or allowing the claim and for the disentitlements or disqualifications imposed.

Monitors the payment of benefits to claimants throughout the duration of the claim and when initial conditions of entitlement change contacts claimants to verify continued entitlement. Refers cases where there appears to be fraud or abuse to an Investigation and Control Officer (ICO) for further investigation prior to making a determination of entitlement. Reviews ICO's recommendations for disqualification or financial penalty under Section 47 of the Act, assesses mitigating circumstances and decides whether sanctions should be imposed or not and the extent of the sanctions. Inputs decisions via on-line computer and notifies finance of overpayment established.

Investigates and determines the facts surrounding labour disputes and determines the entitlement or non-entitlement of all workers directly involved and interested in the dispute, and those who through no fault of their own, are prevented from working. Interviews employers, union representatives, workers, conciliators and prepares file indicating such details as number of companies involved, number of workers involved by class or grade at each site, the nature of the dispute and the size and behaviour of the picket lines. Makes effective recommendation to the Regional Office on the classes of workers involved to be disentitled and on receipt of the decision, adjudicates individual claims.

Prepares submissions to the Board of Referees on appeals filed by detailing all the factors of the case, a summary of the subject of the litigation, the reasons for the decision, and relevant caselaw that supports both parties. Reviews decisions of the Board of Referees to ensure that the Board has observed the principles of natural justice, that it has not erred in law and that the decision is not perverse or capricious. Recommends an appeal to the Umpire (Federal Court judge) where it is determined that the Board's decision is not in keeping with the Act.

Answers enquiries from and provides information to MP's, lawyers, MLA's and representatives of other government departments and private agencies on all aspects of the UI Act and its administration and on the reason(s) for decisions rendered on specific claims. Provides advice and assistance to Agents I, claims preparation and enquiry clerks on the Act and assists in their training.

SPECIFICATIONS

KNOWLEDGE

B1 / 136

Program and Specialized/Technical

The work requires knowledge of the UI Act and regulations, jurisprudence, decisions of the Federal Court of Appeal and of the Supreme Court, as well as entitlement determination directives and policy guidelines. The work requires a knowledge of the principles of natural justice, other social and labour legislation, such as Charter of Rights and Freedoms, Workers Compensation and provincial labour codes, as well as a knowledge of collective agreements, provincial licensing boards, local labour market conditions, union hiring hall practices and wage rates. The work also requires knowledge of other CEIC programs and services, such as the Active Job Search program, Record of Employment Awareness program, employment services, labour adjustment and training programs. A knowledge of interviewing and investigative techniques and practices is also required, as is a knowledge of the appeal process through to the federal court. This knowledge is required to adjudicate contentious and complex claims for benefit, to investigate complex labour dispute cases, to prepare submissions to independent appeal bodies on behalf of the Commission to impose or waive financial penalties and to defend the decisions taken to all interested parties.

General Administration

The work requires knowledge of the UI on-line computer system sufficient to input and retrieve information on claims. Also required is a knowledge of central agency travel regulations.

DECISION MAKING

B1 / 114

Scope

The work requires the exercise of initiative and judgement in determining the facts surrounding loss of employment such as cases of dismissal for misconduct and voluntary separation, in assessing the extenuating circumstances such as harassment, discrimination, conditions of employment, in investigating availability and reasonable efforts to find suitable work and in determining the credibility of claims and other statements. Discretion and judgement are exercised in weighing the facts of each case to determine entitlement to benefits; whether disentitlements, disqualifications or Section 47 penalties should be imposed and the severity of the penalty. Discretion and initiative are required in interviewing employers and claimants, in explaining their rights and obligations and the reasons for the decisions on entitlement. Judgement is also required in the interpretation and application of the Act and regulations, case law and principles of natural justice. Initiative and judgement are required in investigating labour disputes, in interviewing all parties to the dispute and their representatives, in assessing to what extent the picket lines are preventing employees from working, and in determining which classes of employees are part of the labour dispute. Judgement is also required in responding to enquiries from MLA's, lawyers and other interested parties as Commission spokesman, and in preparing submissions to Boards of Referees.

Impact

Decisions result in the payment or non-payment of UI benefits (which represent sixty per cent of the individual's weekly insurable earnings) to individuals experiencing a temporary interruption in earnings, in the denial of benefits (disentitlements) in the loss of benefits (disqualifications) and in the imposition of financial penalties (section 47). Decisions directly affect the well being of individuals as well as their financial status. Recommendations on labour disputes affect groups or classes of people in their entitlement to benefit.

OPERATIONAL RESPONSIBILITY

A / 10

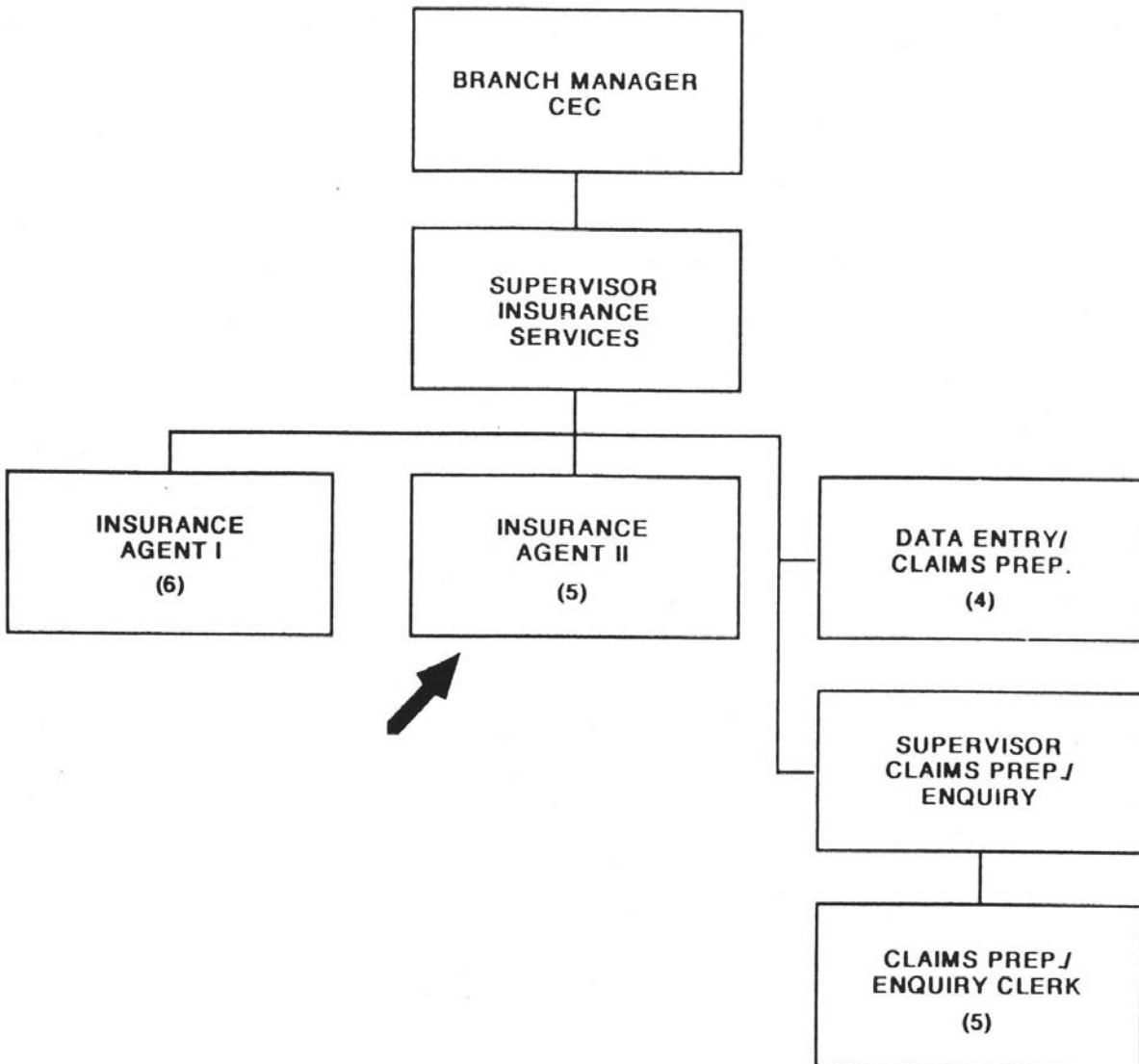
Nature of Responsibility

The work requires the provision of advice, guidance and assistance to Agents I, claims preparation clerks and enquiries clerks on the application of the Act and regulations, jurisprudence and policies with respect to eligibility, entitlement and earnings. The work also entails responsibility for the accuracy and completeness of contentious claims files referred by others.

CONTACTS

2 / 70

The work requires interviewing claimants and employers to determine claimants' initial and continuing entitlement to benefit and investigation of the specific details surrounding the case to determine the relevant facts. The work requires the provision of explanations to claimants, employers, union representatives, MLA's. MP's respecting the reasons for decisions in specific cases, and on the Act and its administration in general. The work also requires extensive fact finding and investigation in the case of labour disputes to determine the groups or classes of employees affected by the work stoppage.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 20

Level: 1

Descriptive Title: Immigration Examination Officer

Point Rating: 190

Reporting to a Shift Supervisor:

Conducts secondary examinations of persons seeking admission to Canada to determine admissibility and decide whether to grant or refuse admission thereby controlling the entry of permanent residents, immigrants, visitors and others. Interviews applicants and examines for authenticity documents presented or requested in support of applications. Contacts a-variety of secondary sources, such as the RCMP, US Immigration, friends, relatives and sponsors to complete or verify information or accesses the departments automated support systems to obtain any existing data. Observes the physical and emotional state of the applicant to detect any noticeable health problems or signs of evasion when providing information. Establishes the readmissibility of the applicant to the country of original departure, or to third countries where applicable. Explains the requirements of the Immigration Act and regulations concerning employment, permanent residence, extensions, change of status, etc., and explains the process for refugee determination if applicable. Investigates and equates convictions under foreign statutes to various pieces of Canadian legislation such as the Criminal Code. Grants admission to persons deemed admissible and completes appropriate documentation including control documentation, if deemed necessary, and specifies and imposes appropriate terms and conditions on immigrants and visitors including the taking of security deposits. Recommends the issuance of a Minister's permit on humanitarian or compassionate grounds and recommends to a "Senior Immigration Examination Officer" the discretionary granting of entry. Refuses admission to individuals deemed inadmissible; offers, in some cases, the option of withdrawing the application for entry and thus avoid inquiry. Issues a rejection order or defers/refers the examination of persons who cannot be examined properly. Issues detention orders and decides where detention will take place. Prepares a case report for review, judgement and concurrence of a "Senior Immigration Examination Officer". Performs other duties such as ordering medical examinations in some cases, arranging for photographing and fingerprinting where identity needs to be verified, boarding and detaining vehicles, assessing and collecting service fees, assisting in the removal of inadmissible persons or of persons already in Canada against whom a removal order has been issued, and providing information to immigrants, visitors, refugees and others to facilitate their reception and initial adaptation and to ensure access to available services in Canada.

Degree/
PointsSPECIFICATIONSKNOWLEDGE

A1 / 81

Program and Specialized/Technical

The work requires a knowledge of the Immigration Act and Regulations, Bills C-55 and C-84 dealing with refugees, and of related policies and procedures. Knowledge of the social, economic and political conditions abroad and in Canada and their effects on immigration activities is also required, as is knowledge of services available to immigrants, refugees, visitors and others, by right or privilege, to facilitate their reception and initial adaptation.

General Administration

Knowledge in this area is limited to that associated with own work or employment.

DECISION MAKING

Al / 69

Scope

Most decisions are made within the framework of established regulations, policies and procedures. Initiative and judgement are required in interviewing persons seeking admission to Canada, assessing the validity of the information provided or requested, contacting third parties to verify authenticity or obtain additional information and in providing information concerning the services available to applicants.

Impact

Decisions impact on the particular applicant seeking entry to Canada. While more than one individual may be involved considerations are identical and impact cannot be considered as extending beyond the case under review.

OPERATIONAL RESPONSIBILITY

A / 10

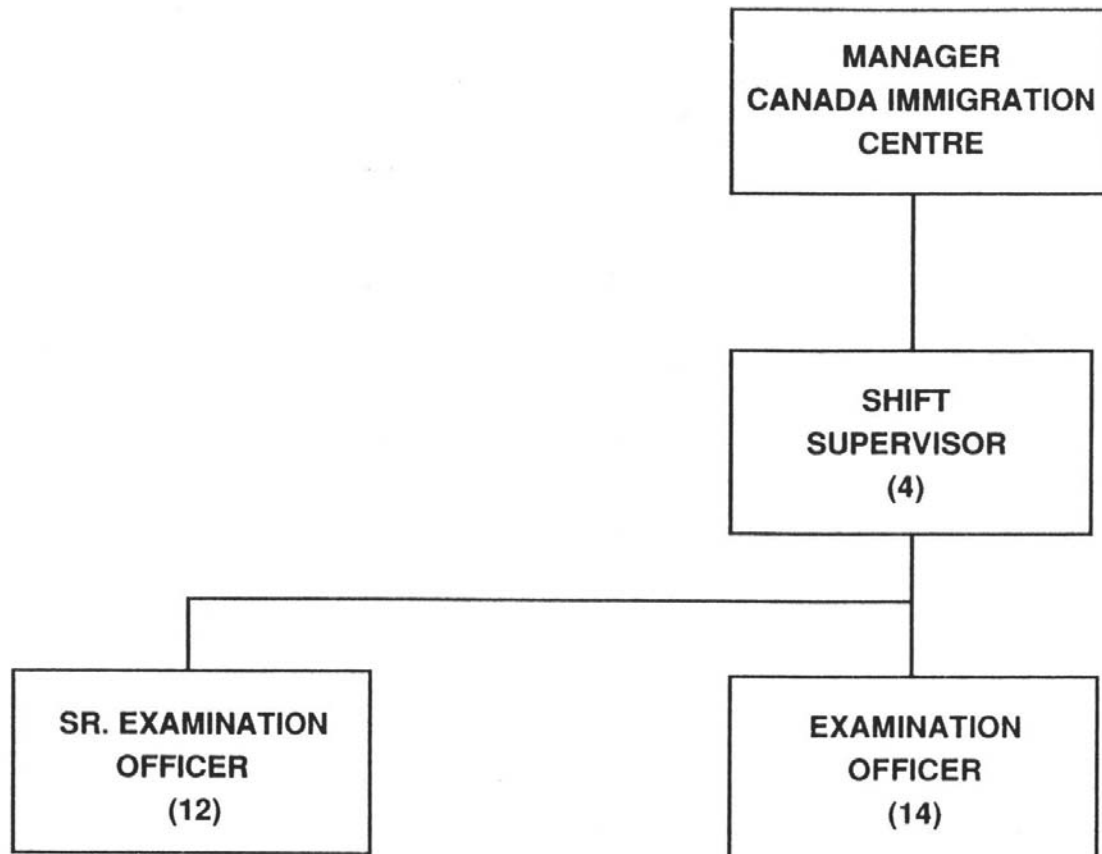
Nature of Responsibility

Responsibility is limited to own work.

CONTACTS

1 / 30

Interviews applicants and contacts friends, relatives and other authorities to verify the authenticity of documentation, the veracity of information provided or requested or to obtain additional information.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 21

Level: 2

Descriptive Title: Source Deductions Auditor,
District Office

Point Rating: 330

Reporting to a Source Deductions Unit Head:

Plans and conducts audits of accounting books, records and supporting documentation of businesses of all types and sizes (individual and corporation) to determine if the withholding and remitting of taxes and contributions and reporting requirements under the Income Tax Act, Canada Pension Plan Act and Unemployment Insurance Act are being adhered to. Interviews employees, employers and senior managers to validate and authenticate entries in accounting records. Calculates amounts that should have been withheld, compares to amounts actually withheld and remitted and assesses variances (credit/debit) and applicable penalties and interest. Counsels employers on the application of the Acts, Regulations and reporting procedures pertaining to deductions and contributions withheld. Obtains evidence and initiates prosecution actions in cases of repeated non-compliance or where it is anticipated that difficulty will be experienced in securing further compliance. Obtains immediate payment of arrears assessed or, if not paid, records assets and sources of income to assist collection officers in enforcing payment. Examines records for potential sources of unreported amounts to be included as income from office or employment and for non-resident tax revenues and determines if the withholding, remitting and reporting requirements of the Income Tax Act or Tax Conventions are being adhered to.

Provides a counselling service to employers on the correct application of legislation and procedures pertaining to deductions and contributions withheld, remitted or reported by employers. Conducts special audits in response to employee complaints or requests for data to assist them in completing their tax returns or in response to internally generated requests for information to finalize assessing or enforcement files, including CEIC and CPP government agencies.

Prepares reports of findings in the conduct of the audit and makes recommendations for future actions to be taken.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

81 / 136

Program and Specialized/Technical

A knowledge of the administrative and enforcement provisions of the Income Tax Act, Canada Pension Plan Act and Unemployment Insurance Act, Tax Conventions with Foreign Countries as well as departmental policies and procedures is required. A knowledge of payroll accounting and the ability to review accounts receivable and accounts payable, identify assets other than receivables and review minute books of corporations is also required in order to establish compliance with legislation. A knowledge of court procedures and the Canada Evidence Act is required relative to the prosecution requirements of the position as evidence must be obtained that is acceptable in a court of law. The duties entail acting as a witness for the Crown.

Knowledge of the techniques involved in conducting third party investigations and interviewing taxpayers, employers and their representatives is essential to locate records and establish compliance with the various Acts.

General Administration

The work requires knowledge of routine internal office administrative procedures e.g. forms preparation and word processing services available.

DECISION MAKING

B1 / 114

Scope

Recommendations are made to prosecute employers and taxpayers who have failed to comply with the relevant provisions of the law and where it is anticipated that there will be difficulty in securing further compliance. Recommendations are also made as to the extent of legal action considered necessary to collect amounts assessed and the urgency of initiating the action. Initiative and judgement are required in planning the extent and depth of an audit (determining what methods are required, how they are to be applied and which books, records, and supporting documentation should be examined) based on the adequacy and complexity of the employer's accounting system. Judgement is also exercised in the discussion of audit findings with business officials and/or their representatives.

Impact

Decisions affect the degree of compliance with legislation, regulations and departmental policies and procedures. Decisions impact in the areas of establishing pensionable and insurable employment, amounts to be withheld, remitted and reported in accordance with legislation and legal precedent and employer/employee relationships.

OPERATIONAL RESPONSIBILITY

A / 10

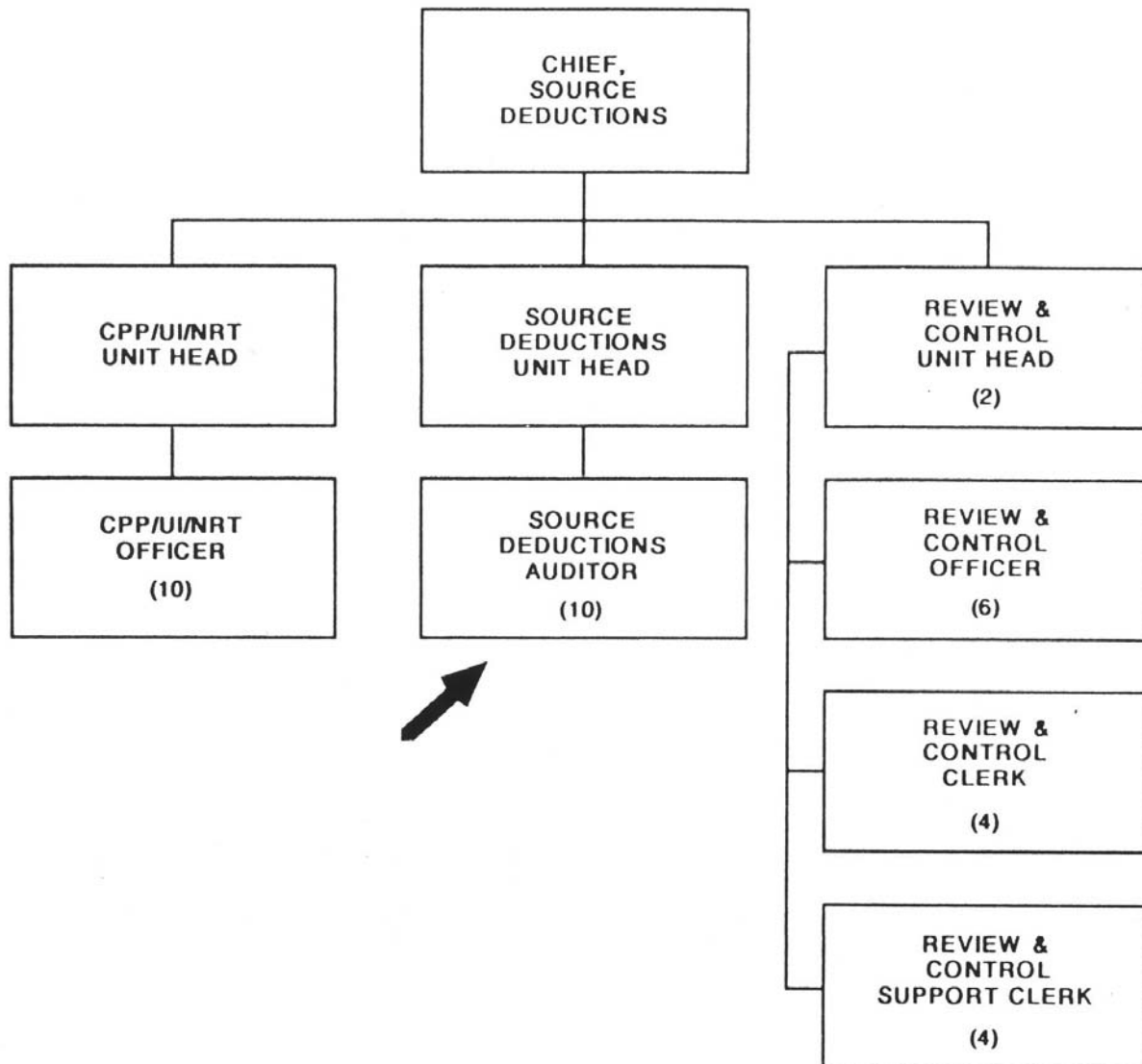
Nature of Responsibility

Responsibility is primarily limited to own work. Guidance is provided to clerical support staff of the Review and Control Unit in the processing of completed audits and reports.

CONTACTS

2 / 70

Obtains assistance and cooperation from officials of businesses and/or their representatives in performing audits and examining records, enforcing legislation, obtaining immediate payment or establishing sources of income or assets. Provides advice and guidance to taxpayers in interpreting acts, regulations and reporting procedures so that amounts owing can be accurately determined.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 22

Level: 3

Descriptive Title: Collections Enforcement Supervisor
District Office, TAX

Point Rating: 480

Reporting to the Chief of Collections:

Coordinates the activities and assigned resources to meet the goals and objectives of the unit; allocates assigned work and staff within the unit and plans for peak intake periods; evaluates the unit's performance through test checks and reviews statistical analyses to ensure that plans and objectives are being met. Reports on the unit's activities, results and staffing requirements, identifies problems and variances from plans and proposes solutions and viable alternatives to the Chief of Collections.

Supervises staff engaged in collecting tax arrears and resolves taxpayers' enquiries relating to outstanding accounts. Provides guidance and advice in the interpretation, application and enforcement of the law. Provides direction to subordinates in difficult collection cases and resolves complaints from taxpayers and third parties arising from collection actions or other activities. Determines the validity of the complaints and initiates corrective action such as arranging for alternate terms and conditions of payment. Evaluates individual performance through analysis of statistical data, test checks, reviews and personal observations. Provides performance goals and discusses them with each subordinate; provides ongoing feedback; coaches and offers constructive criticism when necessary. Develops and fosters career progression and identifies training needs of staff in the unit; provides or arranges on-the-job training, plans and holds individual or group training sessions and recommends that unit staff be enrolled in appropriate Departmental training courses. Administers collective agreements and departmental policies on staff relations, personnel management and finance. Initiates or recommends disciplinary action or appropriate measures to the Chief of Collections for employees who present problems of attitude, behaviour or performance.

Approves recommendations to recover tax owing by garnishee or set-off action after ensuring that the recommended action is within broad policy and procedural guidelines or the law. Reviews recommendations from subordinates that the Department initiate court action, seize and sell assets, defend or be represented in various proceedings or that other specific remedies be pursued to enforce collection (e.g. the assessment of directors to recover corporate source deduction arrears), recommends appropriate action for approval or rejects recommendations at this level. Approves long term payment arrangements recommended by subordinates if a review of the case indicates that the payment terms are warranted. Approves recommendations that accounts be referred to the Collections Investigations area or that they be written-off as uncollectable after determining that all reasonable and cost effective measures have been taken.

SPECIFICATIONS

KNOWLEDGE

C2 / 224

Program and Specialized/Technical

Knowledge is required of the relevant sections of the Federal and Provincial Income Tax Acts and Regulations, Canada Pension Plan Act and Regulations, the Estate Tax Act, Bankruptcy and Bulk Sales Acts and of departmental policies and procedures dealing with the assessment and collection of taxes. A knowledge of provincial and municipal regulations relating to ownership and transfers of property and other real assets is also required. A knowledge of collection techniques and procedures is essential in the performance of the work. A knowledge of accounting is required sufficient to appraise collection plans formulated by collection officers on the basis of information provided in financial statements, to interview taxpayers and their representatives to discuss financial matters and to examine books, records and related vouchers of taxpayers when searching for possible hidden assets or sources of income seizable or subject to garnishment. A knowledge of operating business practices is required as is a knowledge of training techniques in order to effectively instruct collection officers.

General Administration

The work requires knowledge of departmental personnel policies, collective agreements and administrative practices in order to allocate work and supervise staff. A knowledge of financial policies and procedures is required to approve travel requests and to recommend the expenditure of funds.

DECISION MAKING

B2 / 146

Scope

Judgement is required in planning the work of the unit, evaluating the performance of subordinates, recommending disciplinary action where warranted and making effective use of resources. Judgement is also exercised in determining whether proposals for acceptance of long-term payment arrangements are reasonable under the circumstances and whether or not recommended legal actions leading to garnishment of wages and/or receivables, seizure of assets, or Federal or Civil Court actions are warranted to enforce payment or obtain compliance. Initiative and judgement are required in determining whether or not recommendations that accounts be written-off as uncollectable should be approved or that accounts should be referred to the Collections Investigation area.

Impact

Decisions impact on the work of subordinate collection officers within the unit. Decisions and recommendations also affect the taxpayer's financial position and viability as well as his social standing and public image within the community. Decisions and recommendations in pursuing court action result in additional costs to the Department and accounts approved for write-off, where further collection work may have yielded additional revenue to the crown, results in a loss of revenue.

Degree/
Points

OPERATIONAL RESPONSIBILITY

C / 40

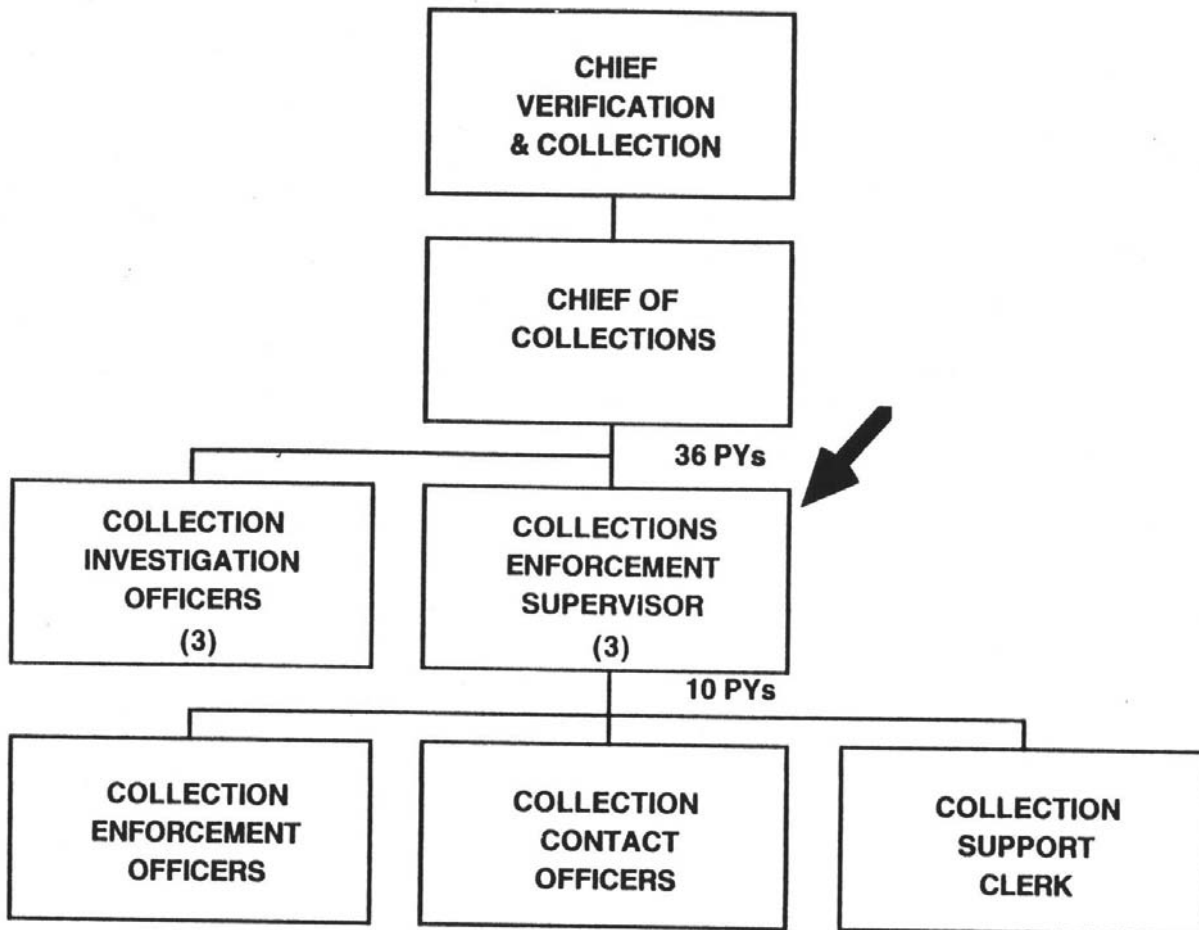
Nature of Responsibility

Allocates work to staff within the unit and plans for peak intake periods. Reports on the unit's activities, results and staffing requirements, identifies problems and variances from plans and proposes solutions and viable alternatives to the Chief of Collections. Provides performance goals and ongoing feedback to subordinates. Evaluates individual performance through analysis of statistical data, test checks, reviews and personal observations and provides the necessary training as required. Recommends disciplinary action where warranted.

CONTACTS

2 / 70

Arranges for alternate terms and conditions of payment with taxpayers (both individuals and corporations) where their complaints, or information received from third parties, is deemed reasonable and justifiable.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 23

Level: 6

Descriptive Title: Chief, Corporation Assessing Section

Point Rating: 894

Reporting to the Director, Returns Processing Division:

Plans, organizes and directs the development, formulation and implementation of departmental goals, objectives, policies and programs applicable to the assessment and reassessment of federal, provincial and territorial corporation (T2) income tax returns. Determines the effectiveness and administrative feasibility of existing policies, goals and processing procedures, current tax legislation and the design and presentation of the T2 tax return, schedules and guides in relation to types of errors made by taxpayers, increasing or decreasing volume of types of income and deductions, degree of professional assistance used by the public and computer processing capabilities. Determines the need for special procedures due to delays in the enactment of legislation, errors produced by CORPAC systems logic and unexpected reversals in tax law interpretations and directs their development and implementation on a priority basis. Establishes terms of reference for task forces and study groups on areas of tax law affecting particular business transactions, sources of income and types of deductions as well as on the potential for new applications of computer systems and programs for corporate tax returns.

Reviews and makes recommendations on draft legislation and reports identified as secret and prepared by federal, provincial and territorial Finance and Treasury department officials and discusses the concepts, principles, implementation target dates and duration. Negotiates the interpretation and application of the proposed legislation. Determines the type(s) of corporation(s) affected (investment, Canadian controlled, private, public) and the nature and significance of Tax Collection Agreements as well as the administrative responsibilities which would be affected and applicable. Detects the disruptive effects for non-sponsoring jurisdictions (non-involved provinces), identifies any significant drawbacks, complications, obstacles or departmental needs and develops modifications to eliminate problems and bring about improvements. Conducts meetings with Finance and Treasury Board officials to explain the department's views and concerns and negotiates agreements for appropriate modifications. Directs the integration of new/amended tax legislation into the Corporation Processing, Accounting and Collections (CORPAC) System, manual processing procedures and the T2 guide, information bulletins and circulars as well as the instructions to field offices.

Directs the development, content and design of the T2 Income Tax Return, related schedules, T2 Guide and forms used by all corporations in respect of each taxation year. Negotiates with the sponsors the extent to which the Department will provide keypunch fields on the tax return to capture statistical data and the extent of explanatory notes in the T2 Guide. Organizes seminars, conferences and other forums on a national/regional basis to discuss new legislation, operating policies and procedures and changes to the T2 tax returns, guide and information bulletins.

Provides functional direction to field offices, directs the monitoring of field office activities and identifies training needs of field office staff. Establishes and implements field office reporting systems and develops criteria for the evaluation of program achievement. Establishes tests and trials for new programmed equipment (e.g. software packages for Tax Calculation) and determines their accuracy and applicability to the T2 assessing program. Evaluates and actions complaints directed to the Minister, Deputy Minister, Assistant Deputy Minister and other departmental officials. Directs and controls research and activities related to referrals to the Division from field offices or taxpayers and/or their representatives involving complex or unique corporation tax cases.

Supervises the activities of the Corporation Assessing Section. Administers the various aspects of discipline, counselling, recruiting and training of staff. Adapts activities to meet changes in workloads and sets priorities and objectives. Evaluates the performance of staff, task forces and special project groups.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

E2 / 334

Program and Specialized/Technical

A knowledge of the Income Tax Act and regulations, Provincial Income Tax acts, tax treaties, tax conventions with other countries, Federal-Provincial Tax Collection Agreements, and the Financial Administration Act is required as is an understanding of the Privacy and Information Acts. A knowledge of departmental objectives, policies and procedures relative to the T2 assessing/reassessing program is also required as is a knowledge of business practices, computer applications and accounting principles.

General Administration

Knowledge of departmental and control agency financial practices and procedures is required to effectively manage a Division within an allocated budget. Knowledge of personnel management and departmental procedures and practices relative to staffing and organization and classification concepts is also required in order to effectively utilize human resources. Knowledge of the applicable negotiated contract is essential as is a knowledge of the methods and procedures for resolving union concerns or disputes.

DECISION MAKING

D4 / 300

Scope

Decisions and recommendations are made in the planning, development and implementation of national policies and programs involving the examination, assessing, reassessing and processing of T2 tax returns, schedules and related forms prepared by corporate taxpayers, their accountants and legal representatives. Initiative and sound judgement are required in determining the administrative feasibility of complex tax measures, in negotiating technical and administrative revisions and implementation dates (unlike individual tax returns, there are two filing dates for corporate returns), in planning and controlling the content, design and format of the T2 return, schedules, user guide and supporting forms and in negotiating the inclusion of features for the benefit of non-returns processing areas of the Department and for other Departments. Recommendations to amend existing legislation are made to clarify the intent and application of the law and to facilitate taxpayer compliance. As the functional authority for the CORPAC system, decisions are made with respect to determining the need for new or revised computer applications in the assessing, reassessing and processing of corporate returns. Decisions are also made in the allocation of human and financial resources on a national basis and in the negotiation of these resources with field offices.

Degree/
PointsImpact

Decisions and recommendations have a direct effect on the department's ability to formulate and implement corporate tax policy, the uniformity of its application and administration, the maintenance of assessing/reassessing quality and standards, the level of taxpayer service and the success of the self-assessment and voluntary compliance programs. Decisions also affect other departmental programs and activities such as Collections, Revenue Programs and Audit. Decisions and recommendations made in the areas of human resource management, work management, establishment of priorities, scheduling of work and evaluation of performance affect the accomplishment of goals and objectives for national corporation assessing/reassessing programs.

OPERATIONAL RESPONSIBILITY

E1 / 110

Nature of Responsibility

Responsible for the development, recommendation and implementation of policies governing assessing and reassessing operations and the national T2 program and its component parts allocated to field offices. The development of effective monitoring systems for the national program and its related activities is also a key responsibility of this position. Responsibility is exercised through subordinate staff who are assigned various segments of the total national program. Work plans, objectives and resources are developed for staff and monitored. Changes to established plans to meet unexpected problems are made following an analysis of the effect on the total program and on the various sub-activities.

Complexity and Size of Subordinate Organization

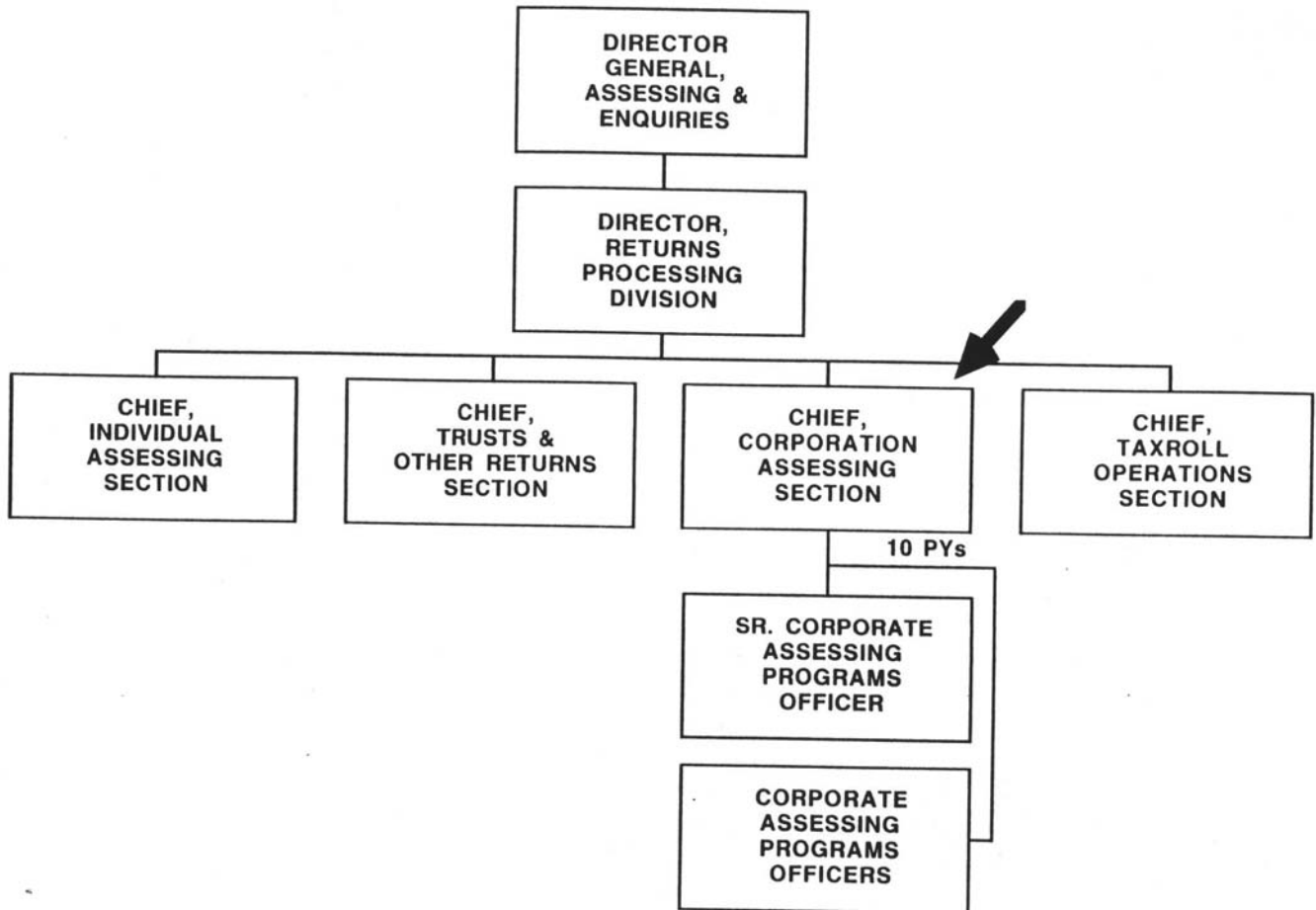
N/A

CONTACTS

4 / 150

Consults with senior officials of Federal and Provincial governments to negotiate the interpretation and application as well as the administrative feasibility of proposed tax measures, develop and clarify policy, resolve mutual problems and negotiate the utilization of departmental resources/facilities.

Obtains feedback from tax, legal and data consultants with respect to the use of non-conforming tax return forms, schedules and tax data presentation and obtains their commitment and support in developing administrative policies and procedures.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 24

Level: 5

Descriptive Title: Late and Non-Filer Programs Officer (H.O.)

Point Rating: 639

Reporting to the Chief, Late and Non-Filer Section:

Provides functional planning, development and implementation of national and regional programs, enforcement and administrative techniques and procedures for field offices in the administration of legislation governing the requirements to file an income tax or information return. Develops operational plans and strategies for establishing compliance-workload priorities based on an analysis of compliance effectiveness by Region, available resources and the effect of this activity on other Departmental programs and priorities (e.g., Assessing and Audit). Provides technical expertise to field staff to ensure uniformity and consistency in the interpretation and application of legislation and policies and in the application of investigative techniques and procedures. Negotiates with senior officials of other Government Departments and Agencies, (Customs and Excise, Central Mortgage and Housing), Provincial Agencies (Marketing Boards), representatives of the Internal Revenue Service (USA) and private Federal and Provincial company officials the procedures to be followed for the provision of information to be used in project and enforcement activities. Develops contact points in the public and business sectors (Credit Bureaus, Employment Agencies, Municipal Utilities, etc.) for the provision of information to field offices. Develops and updates 'taxpayer locate procedures' and prepares instructional material for use by field offices.

Consults with the Department of Justice, RCMP, Municipal and Provincial Police authorities, Court Officers and Senior Departmental officers on prosecution policies, procedures, forms, fines and requirements. Develops, recommends and implements techniques and procedures to be used in the gathering of evidence and the preparation of charges required to obtain convictions in the various Courts across the country. Assesses the effectiveness of program activities to determine the need to revise policies, . guidelines and procedures.

Develops Program Forecast Input and Current Year Budgets through the analysis and evaluation of performance factors, input/output ratios and cost/benefit ratios. Recommends person-year and budgetary allocations and program expectations with senior managers in the field offices. Determines, negotiates and recommends travel dollar requirements and training needs by responsibility centre based on monitoring results, program changes, geographical areas and staffing turnover ratios. Recommends organizational requirements by responsibility centre based on economic conditions, workload complexities (individual, corporate, business or estate returns) and degree of non-compliance.

Determines program objectives and assists in the development of Departmental policies governing the tracing and locating of individual and corporate taxpayers. Plans and implements functional audits of field office late and non-filer programs, procedures, projects and activities. Determines the size of the audit team, scope of the audit, team members (selected from field offices, Head Office and Regional Offices) and arranges for "on loan" or "secondment" agreements. Controls the audit in process, provides advice and guidance to audit staff, prepares the audit summary, participates in the final review of the audit findings and recommendations and prepares evaluation reports on the performance of individual team members during. their participation in the project.

Represents the Division as a sitting member on the Head Office Non-Compliance Committee.

SPECIFICATIONS

KNOWLEDGE

DL / 246

Program and Specialized/Technical

The work requires knowledge of the enforcement provisions of the Income Tax Act and a knowledge of the Canada Evidence Act, Departmental programs, policies and objectives, jurisprudence and Court precedents. Knowledge of Central Agency requirements relative to Program Forecast and Budgeting is also required.

Plans and develops programs that affect the public, are sensitive in nature and must reflect the intent of the legislation and of current policies while maintaining effectiveness under various geographical and economic conditions. Analyses and interprets statistical data in order to assess program achievement. A knowledge of the principles and concepts of accounting sufficient to read and interpret financial statements and other accounting documents, e.g. ledgers, journals, etc., is required as the responsibilities of the position involve dealing with taxpayers or groups of taxpayers from all sectors of the economy.

General Administration

Travel dollar requirements and training needs are determined and negotiated on a national basis. Knowledge of classification procedures and organizational design concepts is required sufficient to recommend proposed structures for field offices in order to effectively cope with varying economic conditions, workload complexities and degrees of compliance.

DECISION MAKING

C3 / 223

Scope

Recommendations are made on the development of national programs, policies and goals to meet regional and individual field office needs. Guidelines for use by field offices in the areas of enforcement, prosecutions, non-filer project development and locating techniques are developed through the exercising of sound judgement and initiative. The development of program forecast input requires analytical abilities to relate historical data to current trends and fluctuating regional economic conditions in order to accurately forecast required resources in the enforcement responsibilities while balancing this requirement with current political thinking. Sound judgement is required in providing advice to field offices on the application of policies, precedents and procedures to resolve operational problems as well as in the development of third party contacts for the provision of information necessary to substantiate enforcement actions (legal and administrative).

Recommendations for corrective action required as a result of functional audits and monitoring activities are made within the context of Departmental policies.

Impact

Decisions and recommendations affect the efficiency and effectiveness of national and non-filer programs, policies, procedures and resources. Decisions also affect the degree of public awareness relative to unlawful practices resulting in prosecution and multiple-year assessments.

Degree/
PointsOPERATIONAL RESPONSIBILITY

D1 / 60

Nature of Responsibility

The work requires the development, recommendation and subsequent implementation of programs and procedures administered by field offices and of the appropriate monitoring systems and functional audit procedures to assess field office operations, programs and policy results. It also entails the interpretation and application of legislation and Departmental policies and objectives as they relate to late and non-filer activities. Technical expertise and assistance is provided to field offices in the areas of prosecution and project development. The work entails supervisory responsibilities during functional audits and special projects.

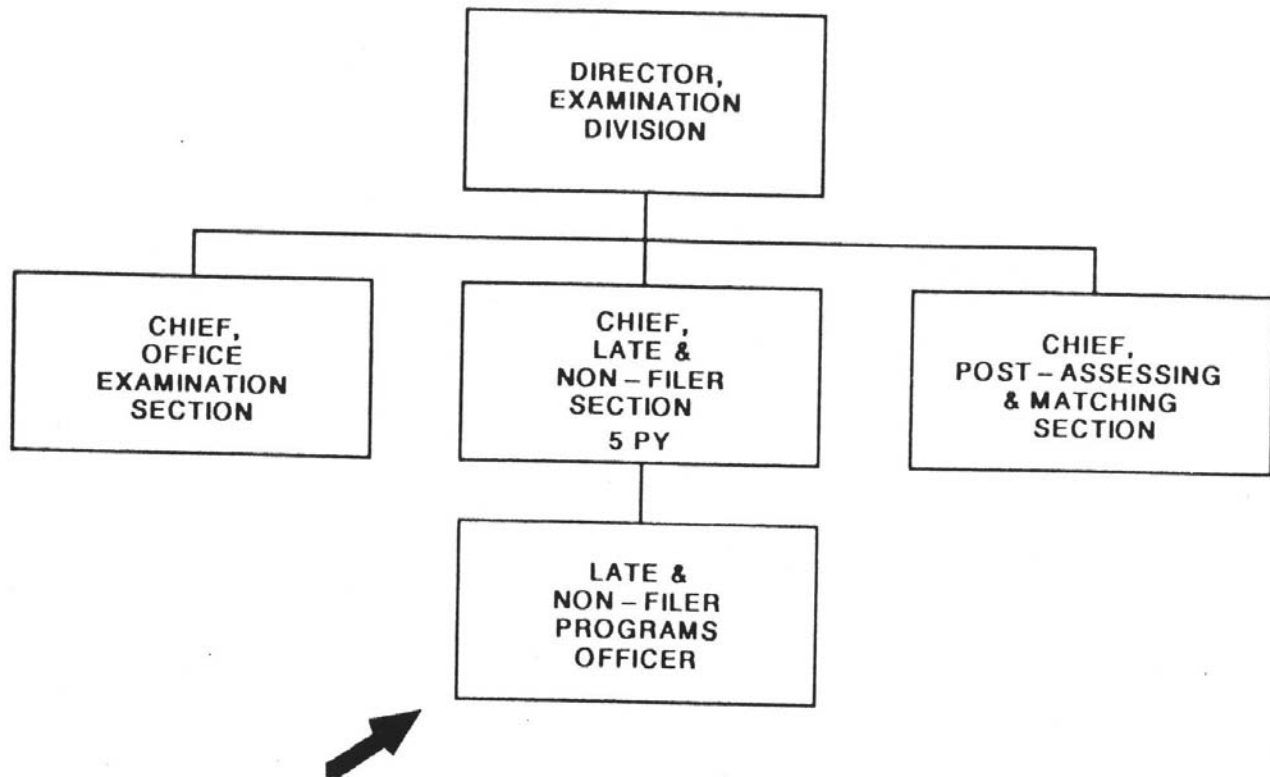
Complexity and Size of Subordinate Organization

N/A

CONTACTS

3 / 110

Agreement is reached with senior officials of other Government Departments and Agencies, Provincial Agencies, representatives of the Internal Revenue Service (USA) and private national and provincial company officials, either on a project or case-by-case basis, on the criteria and procedures to be followed for the provision or receipt of information required to support enforcement activities, or for various other purposes.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 25

Level: 1

Descriptive Title: Collection Contact Officer

Point Rating: 230

Reporting to a Collections Enforcement Supervisor:

Collects tax arrears (individual, corporate, trust, non-resident, CPP and UI contributions, and deductions withheld at source by employers) from individuals or businesses who have omitted or neglected to pay assessed taxes or deductions withheld from employees. Determines the taxpayer's ability to pay through an analysis of income, expenses, assets and liabilities obtained from tax returns, financial statements, audit reports, Departmental computer records and third party interviews (accountants, employers, corporate officials and financial institutions). Discusses with taxpayers and/or their financial and legal representatives departmental policies relative to the payment of tax arrears and current tax liabilities, taking into account, as required, special considerations such as local economic conditions including employment trends and industry viability. Negotiates with taxpayers and their representatives, where payment in full cannot be made, payment schedules based on the determined ability to pay and type and value of security. Enforces the collection of accounts where payment in full cannot be made, satisfactory payment arrangements could not be entered into or previous payment arrangements were not adhered to by the taxpayer. Initiates garnishee or seizure action against salaries, commissions, bonuses, accounts receivable, and other income sources, such as CPP Benefits payable and pension income and determines reasonable and appropriate terms for the seizure of funds or other assets. Negotiates alternate terms of payment when a taxpayer satisfactorily demonstrates that the legal action taken has caused undue hardship. Ensures that legal actions taken are being enforced by the appropriate authorities and assesses the effectiveness of the action in finalizing the account. Analyzes statements made by bankrupts, files proofs of claim under the Bankruptcy Act and advises Trustees of securities held. Performs related duties such as auditing cash receipts, referring accounts requiring in-depth field investigations to determine financial holdings and assets and ability to pay, responding to public enquiries relative to departmental policies on collections, and explains legal actions taken or contemplated to enforce payment of overdue income taxes, CPP contributions and deductions withheld by employers.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

A1 / 81

Program and Specialized/Technical

The work requires knowledge of the relevant sections of the Income Tax Act, Bankruptcy Act, Provincial Statutes, departmental programs, policies and procedures. A knowledge of the basic principles and concepts of accounting is required to analyse tax returns, financial statements and other accounting documents in determining the taxpayer's ability to pay. A knowledge of any relevant local economic conditions, such as employment trends and industry viability, is also required.

General Administration

The work requires knowledge of internal administrative procedures relative to own work.

DECISION MAKING

A1 / 69

Scope

Judgement is required in interpreting and applying departmental guidelines in establishing payment arrangements with taxpayers who are in arrears based on individual circumstances and the ability to pay. The state of indebtedness and the ability of the individual taxpayer to rectify their financial difficulty are unique to the individual and successful resolution requires sound judgement and flexibility in determining payment schedules and in initiating garnishee or seizure actions. Considerations must also include relevant local economic conditions.

Impact

Decisions are limited to individual cases and affect the cost of action to the department and the rapidity with which outstanding revenues are received. Errors in judgement could result in undue hardship to the taxpayer, loss of revenue to the government or in legal action relating to the treatment of taxpayers by the department.

OPERATIONAL RESPONSIBILITY

A / 10

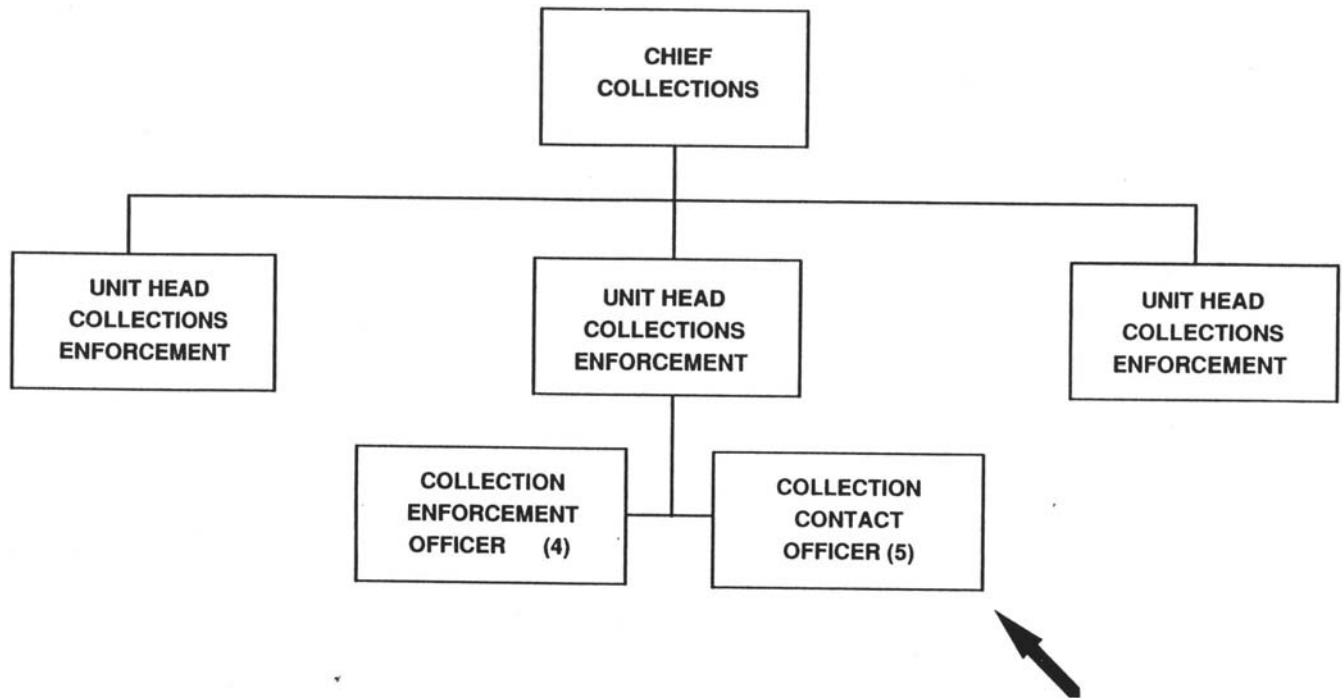
Nature of Responsibility

Responsibility is primarily limited to own work.

CONTACTS

2 / 70

Initiates and maintains contacts with taxpayers, individuals, owners and officials of business and/or their representatives, to negotiate payment schedules of tax arrears and other monies owing the government. The work also entails third party contacts to establish financial and other assets and the taxpayer's ability to pay.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 26

Level: 5

Descriptive Title: Chief, Access to Information and
Privacy Secretariat

Point Rating: 632

Reporting to the Director, Information Resource Services (ATIP Coordinator):

Plans, develops and implements a program to provide public access to departmental records under the Access to Information and Privacy Acts. Establishes policies, guidelines and procedures governing the processing of requests in the department. Manages a program to provide public access to departmental records. Manages a program to protect the privacy of personal information held by the Department, to provide individual persons with access to such information and to control the collection, retention and disposal of personal information in accordance with the Access to Information and Privacy Acts, Treasury Board policies and departmental procedures. Controls and coordinates the review and approval of all departmental information collection projects and public opinion surveys in accordance with Treasury Board policy and departmental procedures. Supervises the work of the Access to Information and Privacy Secretariat.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

D2 / 279

Program and Specialized/Technical

The work requires knowledge of:

Access to information and privacy legislation in Canada, related Treasury Board guidelines and departmental regulations, policies and procedures, the roles of the Information and Privacy Commissions, central agencies, and the law courts, to advise the Department of the Secretary of State of Canada in the National Capital Region and at regional offices on the application and administration of the Access to Information and Privacy Acts. Legal precedence and opinions affecting access to information and privacy legislation in Canada. Departmental programs and information holdings on Official Languages, Citizenship and Culture, Education Support, Departmental Administration and Regional Operations and the often complex interrelationships of these programs with other departments, agencies and third parties. The development and preparation of policy directives, guidelines, procedures and orientation courses on access procedures for a decentralized organization. The preparation of reports and briefings, both oral and written, for the Minister, Deputy Minister and other senior managers. The development of systems to control, monitor and evaluate the program and prepare analytical reports for the department, central agencies, Parliament, the press, interest groups, public rights advocates and the general public. Information collection policies and procedures of Treasury Board and the department on collection of information for departmental information holdings.

General Administration

The work requires knowledge of Departmental financial, personnel and administrative policies and practices to manage the Secretariat's budget and personnel requirements.

DECISION MAKING

C3 / 223

Scope

The work requires taking decisions on whether a request should be treated on a formal or informal basis, establishing deadlines for each stage of the request, the appropriate program or programs to approach for information, the relevance of information to the subject of the request, what information may or may not be released in accordance with the acts and when to seek legal advice or consult with senior management, other departments or agencies, other governments, third parties or the Information and Privacy Commissioners.

Impact

Recommendations are made through the Director and Director General, Administrative Policies and Services Branch, to the Deputy Minister, Senior Management Committee and the Minister on major issues concerning access and privacy policies and processes and to the Director on the extension of response deadlines, waiving or imposition of fees and the release or denial of sensitive or controversial information. Recommendations for denial of access requests on statutory or mandatory exemption provisions under the legislation, includes advice on possible adverse publicity, investigations by the Information and Privacy Commissions and litigation in the Federal Court.

OPERATIONAL RESPONSIBILITY

D1 / 60

Nature of Responsibility

The work requires establishing policies, guidelines and procedures governing the processing of requests under the Information and Privacy Acts, providing advice to corporate and other departmental personnel on all aspects of the application of the Acts, preparing the departmental case for investigations and hearings by the Information and Privacy Commissioners or Federal Court, and liaising with legal advisors, other departments, agencies and third parties in obtaining and providing requested information.

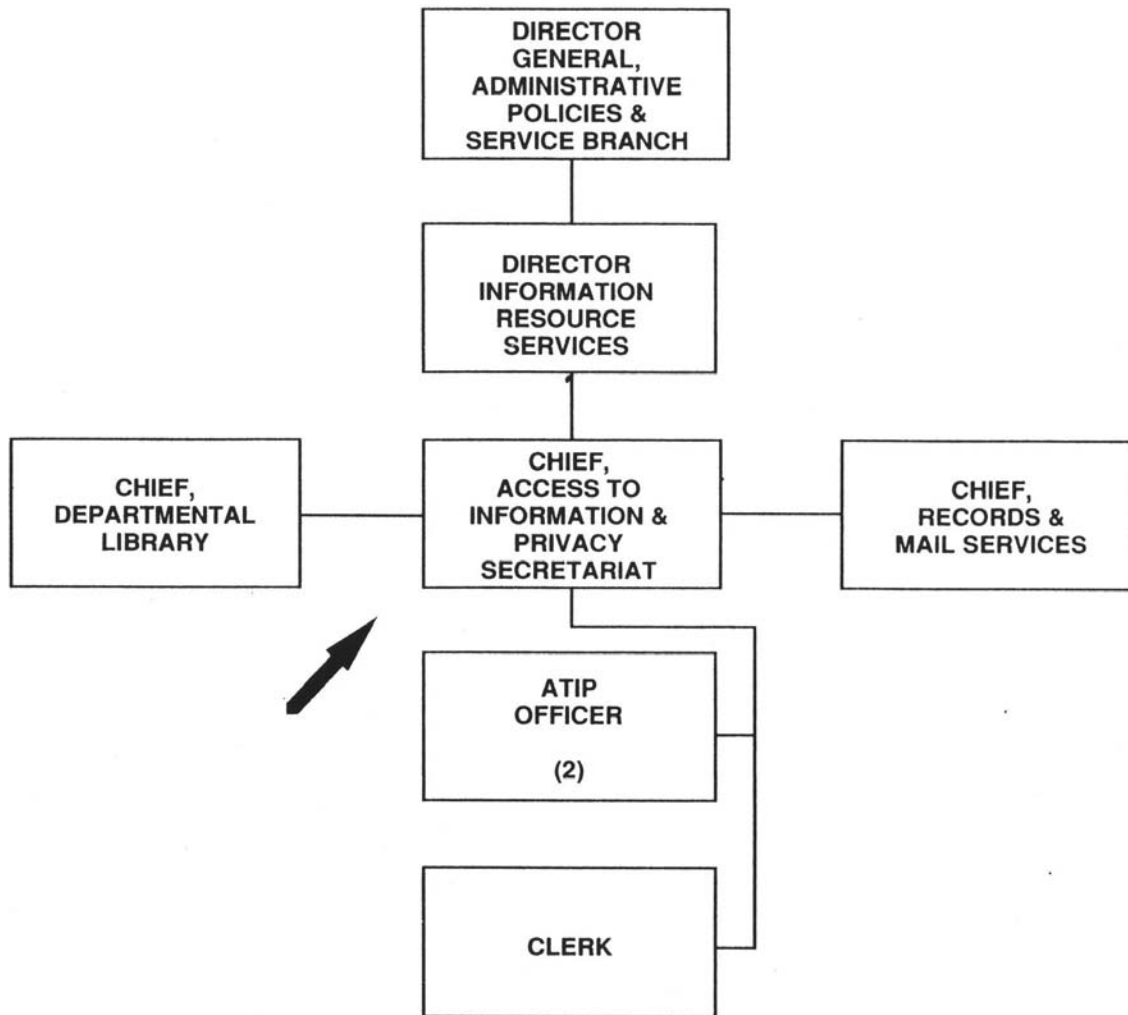
Complexity and Size of Subordinate Organization

N/A

Degree/
PointsCONTACTS

2 / 70

There is a requirement to consult and advise the Deputy Head, other senior managers and legal council on the type and nature of information to be released, to liaise with departments, agencies, third parties and the Information and Privacy Commissioners to exchange information and advice and obtain agreement and with the general public to provide informal advice on other sources of information, the extension of time limits, application of fee schedules and the substance, extent and format of the information required.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 27

Level: 5

Descriptive Title: Senior Entitlement Officer

Point Rating: 684

Reporting to the Chief, Ancillary Policy and Programs:

Develops and formulates national policy, directives and guidelines for the entitlement determination of claims for benefits to ensure the legal, consistent and uniform administration and application of Unemployment Insurance (U.I.) legislation. Prepares, updates and disseminates entitlement determination bulletins, periodicals and adjudication decisions which have wide-reaching implications. Researches legislation, appellate court decisions of various jurisdictions, socio-economic developments (i.e. maternity/paternity leave), trends and developments in the labour market and in collective bargaining agreements, legal opinions and Commission/Directorate decisions to identify the need for new or revised policy. Circulates own proposals for new or modified policies to colleagues for input and comments, and alternately inputs to all proposed policies. Proposes legislative or regulatory changes when deemed necessary.

Provides advice and guidance to regional staff for the entitlement determination of claims to ensure that policy and jurisprudence are adhered to by the regions. Provides written and verbal interpretations of the legislation and advice on appropriate rulings relating to claims; decisions must be made quickly, after analysis of available data, to determine the eligibility of the claimant and provide income maintenance payments within the shortest delay. Certifies regional decisions in difficult cases or proposes a different ruling. Ensures that the entitlement determination section of the departmental operations manual is up-to-date at all times. Provides guidelines to other program areas, such as Canadian Job Strategy, as to the Unemployment Insurance entitlement of their clients.

Adjudicates complex and precedent-setting claims for U.I. benefits (e.g. decides on the number of weeks` of disqualification applicable, prior to U.I. entitlement, to employees affected by an early retirement scheme within a given company. The decision will have repercussions on future cases of a similar nature); translates adjudication decisions into policies. Provides technical adjudication input to training programs for Agents I and II. Prepares submissions to the Canada Employment and Immigration Commission in cases involving a change in policy direction or socially-sensitive issues such as cases where a substantial overpayment of U.I. funds must either be recovered or written off. Prepares submissions to the Treasury Board when an adjudication decision involves an Ex-Gratia payment to a claimant. Inputs to Ministerial or Deputy Ministerial letters.

Communicates verbally and in writing with other government departments, such as Labour Canada, to discuss issues of mutual concern, such as the effect of arbitration awards on U.I. payments, and to develop mutually acceptable solutions; confers with provincial governments, Boards of Education and private companies to reach agreement on entitlement settlements for employees affected by closures, downsizing or labour disputes. Attends meetings with labour organizations to discuss the U.I. entitlement of its' members and the impact of collectively bargained clauses on this entitlement. Responds to enquires from lawyers and private consultants on U.I. eligibility matters.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

D1 / 246

Program and Specialized/Technical

The work requires knowledge of the Unemployment Insurance Act and Regulations and all CEIC policies, procedures and guidelines relating to UI benefits as well as other developmental uses of UI funds such as Canadian Jobs Strategy; knowledge and understanding of the goals, objectives and principles of social benefit programs and legislation, social insurance, income maintenance programs, and social security schemes; of the administration of public/social legislation, and the legislative processes (including the drafting of legislation and regulations); a knowledge of case law on UI legislation and knowledge of jurisprudence under other jurisdictions which have a direct/indirect impact on UI or social benefits; Federal and Provincial legislation dealing with income maintenance (Workers' Compensation, C.P.P., Q.P.P., Labour Adjustment Benefits, Wage Subsidies, Farm Subsidies); labour/employment standards, (wrongful dismissal, Termination Payments, Anti-strikebreaking, Marine workers); Human Rights/Charter of Rights and Freedoms; and an up-to-date knowledge of trends in socio-economic developments and in the labour market as well as labour-management agreements.

General Administration

Some knowledge is required in the field of word and data processing, printing and reproduction, departmental and TB guidelines on official languages, as well as Cabinet documents, submissions to Treasury Board, e.g., Ex-Gratia payments.

DECISION MAKING

D3 / 268

Scope

The work requires the exercise of initiative and judgement in the review and analysis of a wide variety of problems, issues, trends and developments for the purpose of determining the requirement for new or amended national policies, guidelines and decisions or recommending legislative changes. The incumbent must interpret broad principles and goals of income maintenance programs and legislation, extrapolate and develop global entitlement principles from specific individual circumstances cited in jurisprudential case law. The incumbent must develop, within a broad framework of legislation, of program objectives and principles of equity, solutions that are legally possible. In providing solutions to meet changing demands, environment, and objectives, judgement is required in determining the immediate action to be taken in cases of evasion or misapplication of the statutes or policies, and what future adjustments are to be made, even when precedents are not available and the repercussions/implications are difficult to assess. The incumbent adjudicates complex claims requiring immediate decisions/resolutions where there are no precedents or where the circumstances were not envisioned in the legislation, and must subsequently develop and rationalize policies to guide future cases.

Impact

Decisions and policies have national application, to ensure program universality, impact on program delivery, administration and development. Decisions and policies made unilaterally or in consultation with employers and/or unions can impact on developments in the labour market. Decisions made in respect of specific industries or situations can immediately impact on local economies and other income maintenance programs. A decision or policy successfully appealed through the Courts can impact negatively on program direction as it can result in the payment of benefit which defeats program or legislative intent. Decisions also affect the efficient utilization and management of field resources. Single decisions broadly applied can impact on the public's perception of both the Commission's responsibility in administering the UI Program and the response of the Government to publicly perceived rights or needs.

OPERATIONAL RESPONSIBILITY

D1 / 60

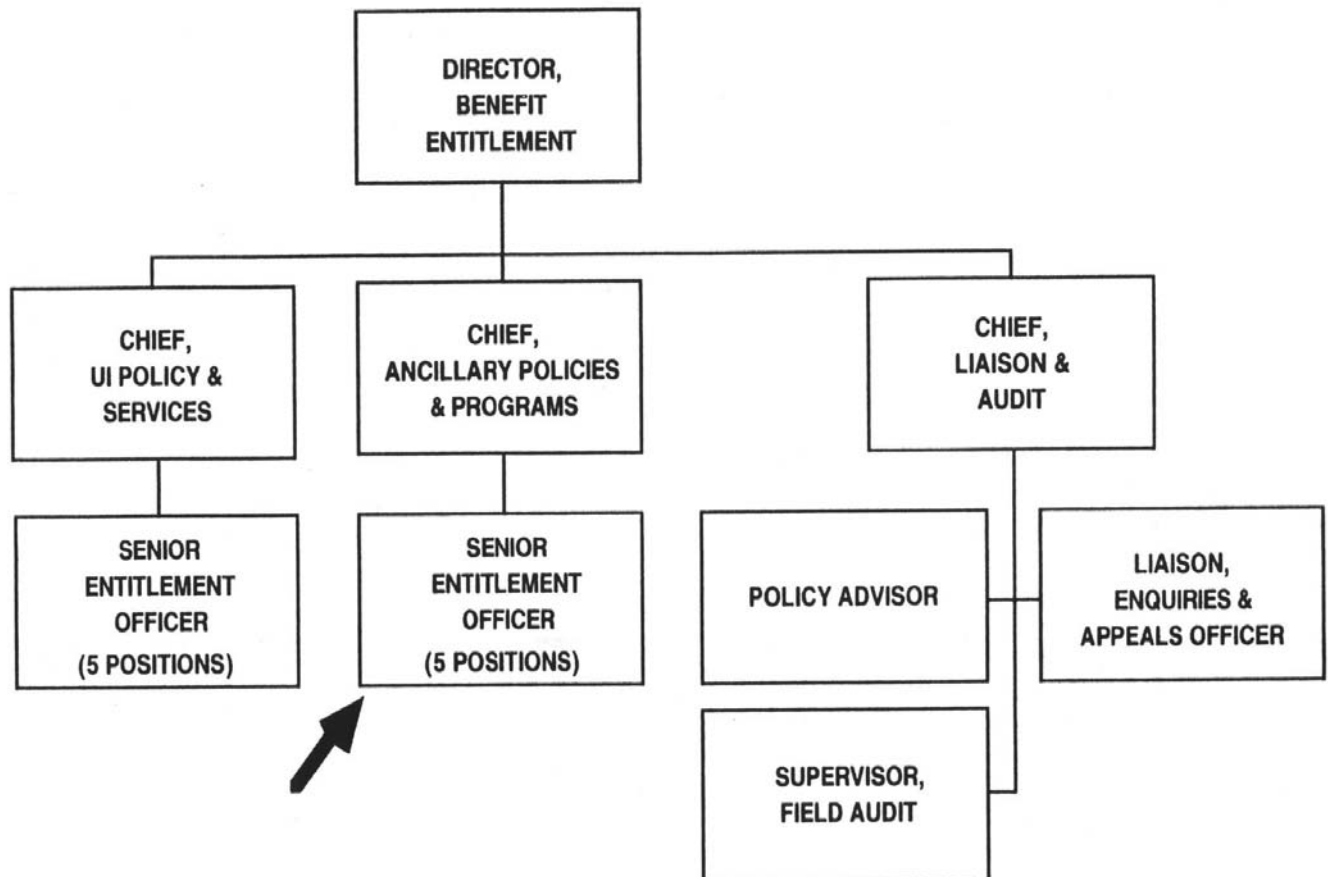
Nature of Responsibility

Responsibility is exercised in the assessment of present U.I. policies and the development of new or modified policies, directives and guidelines. Advice is provided to the Regions on the interpretation of U.I. legislation and on specific cases. Decisions (adjudications) are made on highly visible, contentious or wide-reaching cases and a policy is initiated, as appropriate, to cover future similar cases.

CONTACTS

3 / 110

Consultations are held with employers and union representatives in such complex situations as plant closures or downsizing where the benefit entitlement of affected employees is a major consideration in establishing the terms of the agreement. Contacts are also established with representatives from other government departments, such as Labour Canada, to work out cooperative and complementary income maintenance payments.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 28

Level: 2

Descriptive Title: District Licensing Administrator

Point Rating: 327

Reporting to the District Protection Officer and under functional direction from the Regional Licensing Administrator:

Examines, for eligibility, approval and registration, applications for fishing licenses, limited fisher) licensing, vessel registration and transfers, special licenses and permits for a District within the Newfoundland Region. Administers, designs, implements and maintains a licensing system to obtain an accurate inventory on all persons, boats, and gear used in the coastal fisheries. Monitors on a continuous basis the effects of the licensing program upon the industry during and after implementation to improve client service, streamline registration procedures, reduce cost and improve program delivery. Participates in reviewing, modifying and updating all characteristics and procedures of the limited licensing system and implements change. Participates in the development and evaluation of licensing policies and recommends changes for improvements and changes to Acts and Regulations. Advises people engaged in commercial fishing, anglers and field staff on Fisheries Policies, Acts and Regulations pertaining to licensing, vessel registration and limited fisheries. Attends meetings with individuals, fishing industry, Provincial Government Departments, union representatives and the public to discuss and explain the implementation of new and existing licensing requirements for the management of the fisheries, respond to enquiries, outline requirements for the management of the fisheries, outline requirements for the necessity and use of data collection, and promote understanding and acceptance. Participates in Regional and District Advisory Committee working groups and licensing appeal committees. Develops District briefing for consideration by the Regional Director General for the disposition of licence appeals made against regional decisions. Participates in the design and distribution of information of licensing and registration in an ongoing program, both internally and externally with media presentations, information brochures, field office manuals and related information packages in order to facilitate implementation and maintenance of the program. Conducts briefing sessions for all District staff on matters related to licensing. Administers the District Licensing Unit consisting of two clerical staff engaged in processing applications for licences, preparing and storing files, maintaining statistics and distributing printed information to the public. Develops workflow systems and procedures; acquires equipment and printed application forms and instructs staff in work methods.

SPECIFICATIONSDegree/
PointsKNOWLEDGE

B1 / 136

Program and Specialized/Technical

The work requires knowledge of the Fisheries Act, regulations and Policies governing fishing personnel, vessels and gear licensing and regulations, limited entry fisheries for groundfish, pelagic, shellfish, and marine mammals, capelin, crab, groundfish, lobster, scallops and salmon, and knowledge of provincial legislation governing commercial and recreational fisheries. The work also requires knowledge of licensing Appeal Board decisions, systems development for effective information and statistic gathering and public relation techniques.

General Administration

The work requires knowledge of printing requirements, information printed matter distribution techniques and material management and of personnel matters related to attendance and leave.

DECISION MAKING

A2 / 101

Scope

Initiative and judgement are required in determining eligibility and registrability of personal licenses, fishing gear, vessels and licence transfer, special licences and permits under the fisheries Acts, regulations, policies and resource allocation plans. Decisions are made on the conformity of commercial fishing personnel to pre-established fisheries management plans and licensing policies. Judgement is also exercised in dealing with and responding to enquiries and conducting meetings on issues affecting the Licensing Program. Judgement is further required in designing a licensing system from which statistics on vessels, gear and personnel can be completed to form a basis for use in policy development for conservation of fisheries. Initiative is also required to recommend changes to streamline procedures and reduce costs in delivering the licence program and to recommend changes to improve licensing policies and the fishing regulations.

Impact

Decisions and recommendations are made with respect to individual applications for licenses, registration and permits. Decisions with respect to local operating procedures affect the efficiency of service delivery within the District.

OPERATIONAL RESPONSIBILITY

B / 20

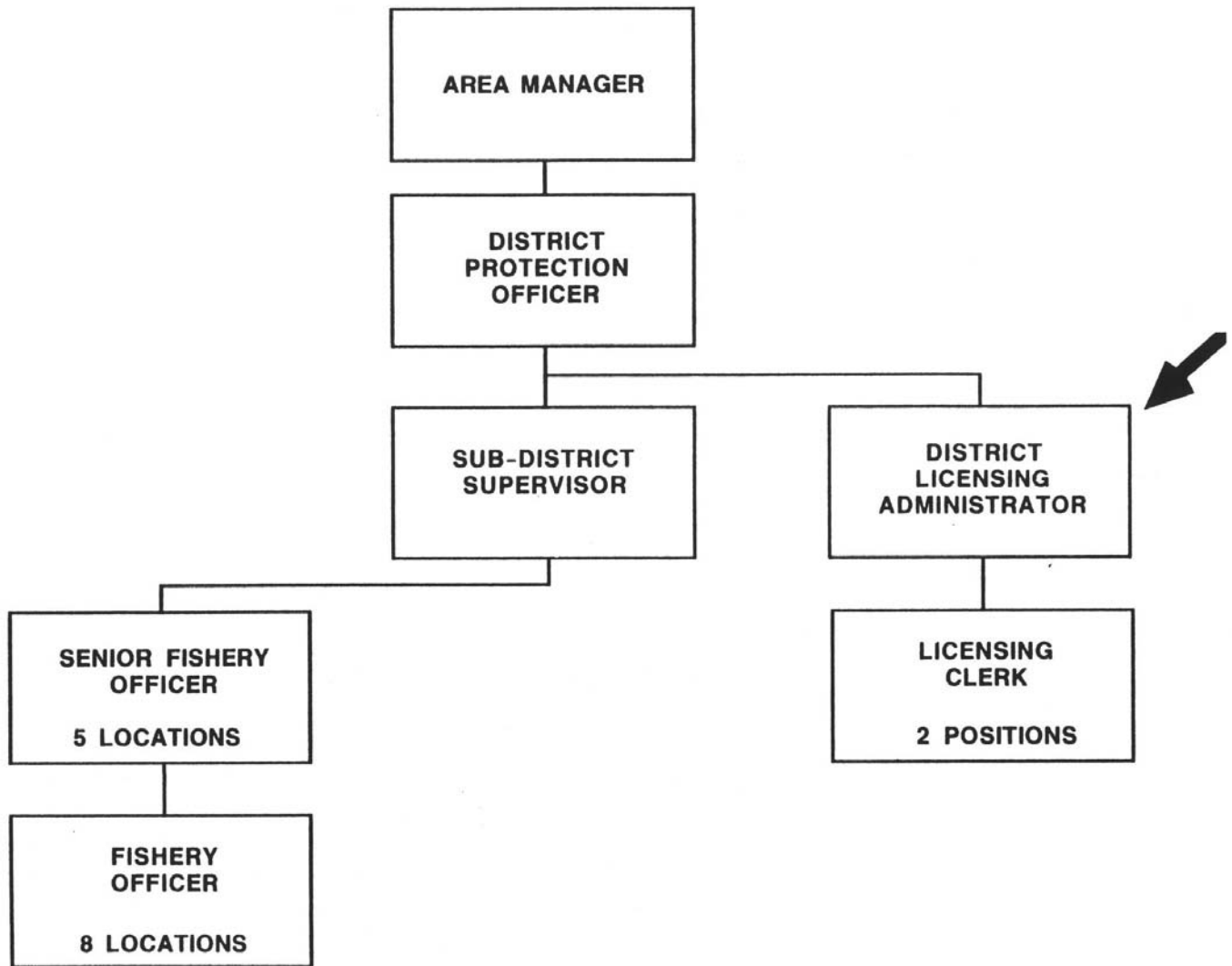
Nature of Responsibility

Administers the licensing and registration program in the District. Supervises the activities of two licensing clerks by assigning work and providing instruction regarding licensing policies and procedures. The work involves participating in Regional and district Advisory and Policy Committee working groups and Licensing Appeal Committee to advise on licensing policies, procedures and licence appeals made against regional decisions. The position also advises field staff on legislation and policies affecting licences and permits.

CONTACTS

2 / 70

The work requires contact with officials of the fishing industry, persons engaged in fishing, representatives of the union, media, the general public and provincial authorities to discuss and explain new licensing requirements procedural changes and reply to questions on licensing legislation regulations and policies.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 29

Level: 1

Descriptive Title: Citizenship Officer

Point Rating:
245Reporting to the Manager, Registration Operations:

Conducts interviews with persons applying for Canadian Citizenship or certificates of proof of Canadian Citizenship and with Canadians wishing to retain, resume or renounce their Citizenship. Assesses the relevancy and judges the authenticity of documents, such as birth certificates, marriage certificates, , baptismal certificates, passports, travel documents, divorce papers, adoption and custody papers and landing permits, submitted as proof of statements made by the applicant, by examining documents to determine if they are originals or have been altered or tampered with in any way. Requests and evaluates secondary evidence as proof, if primary documentation is not available or is deemed unacceptable or there are doubts as to its authenticity. Determines the need for, prepares and attests affidavits which reflect and rectify omissions and inaccuracies. Observes the physical and mental state of applicants when answering personal and sensitive questions in efforts to ensure the accuracy and factual basis of the information provided. Builds with the help of the applicants and available documentation a family genealogy to establish whether or not a claim for Citizenship exists or did exist. Interprets Acts, Regulations, established policies and precedents to determine if the applicant is eligible to receive a certificate of proof of Canadian Citizenship or is eligible to be granted, to resume, to register, to retain or to renounce Canadian Citizenship. Advises applicants for Canadian Citizenship of adverse effects on their present Citizenship and provides advice on the advantages and disadvantages of dual Citizenships. Advises applicants on the provisions of the Citizenship Act and prior Citizenship and Nationality Legislation and how it applies to them, advises on available alternatives and recommends the most effective procedure to be followed. Recommends to the Registrar referral to the proper authorities, e.g., R.C.M.P., provincial or municipal police forces, Correctional Services or Immigration Services, those cases where there are reasonable grounds to believe that an act or omission may be in contravention of the Citizenship Act. Exercises delegated Ministerial authority to approve specific applications for certificates of proof of Canadian Citizenship, to determine the eligibility of applicants to become Canadian Citizens under certain sub-sections of the Act dealing with age, legal entry, residency and deportation, alerts the Citizenship Court Judge to possible complications or problem areas on certain applications, and where such applications are approved by a Citizenship Judge grants Citizenship to the applicants. Refers cases where precedent setting or major decisions may have to be made. Performs other duties such as drafting and signing correspondence relating to Citizenship matters and general enquiries; providing information to MLAs. MPs, lawyers, ethnic leaders and others on Canadian Citizenship laws and regulations, provincial, federal and foreign laws in areas impinging on citizenship, such as marriage, divorce, adoption, dual citizenship, interpretations of the Act and Court procedure; travelling on circuit for the purposes of taking applications and assisting Judges with hearings.

SPECIFICATIONSDegree/
PointsProgram and Specialized/Technical

B1 / 136

The work requires knowledge of the Citizenship Act and Regulations, prior Citizenship legislation and Nationality laws together with a knowledge of certain sections of the Immigration Act and other provincial, federal and foreign legislation impacting on Citizenship in such areas as divorce, marriage, change of name and custody of children. Required also is a knowledge of Citizenship Court procedures.

General Administration

N/A

DECISION MAKING

A1 / 69

Scope

Initiative and judgement are required to interview applicants and assess verbal and primary and secondary documentary evidence and to provide information regarding available alternative courses of action and recommending appropriate procedure. Judgement is required also when observing applicants responding to personal and sensitive questions. Decisions are made within established rules and regulations; cases or information requiring precedent setting or major decisions are referred.

Impact

Decisions impact on individual applications for Canadian Citizen, certificates of proof, and applications to retain, resume or renounce Citizenship.

OPERATIONAL RESPONSIBILITY

Nature of Responsibility

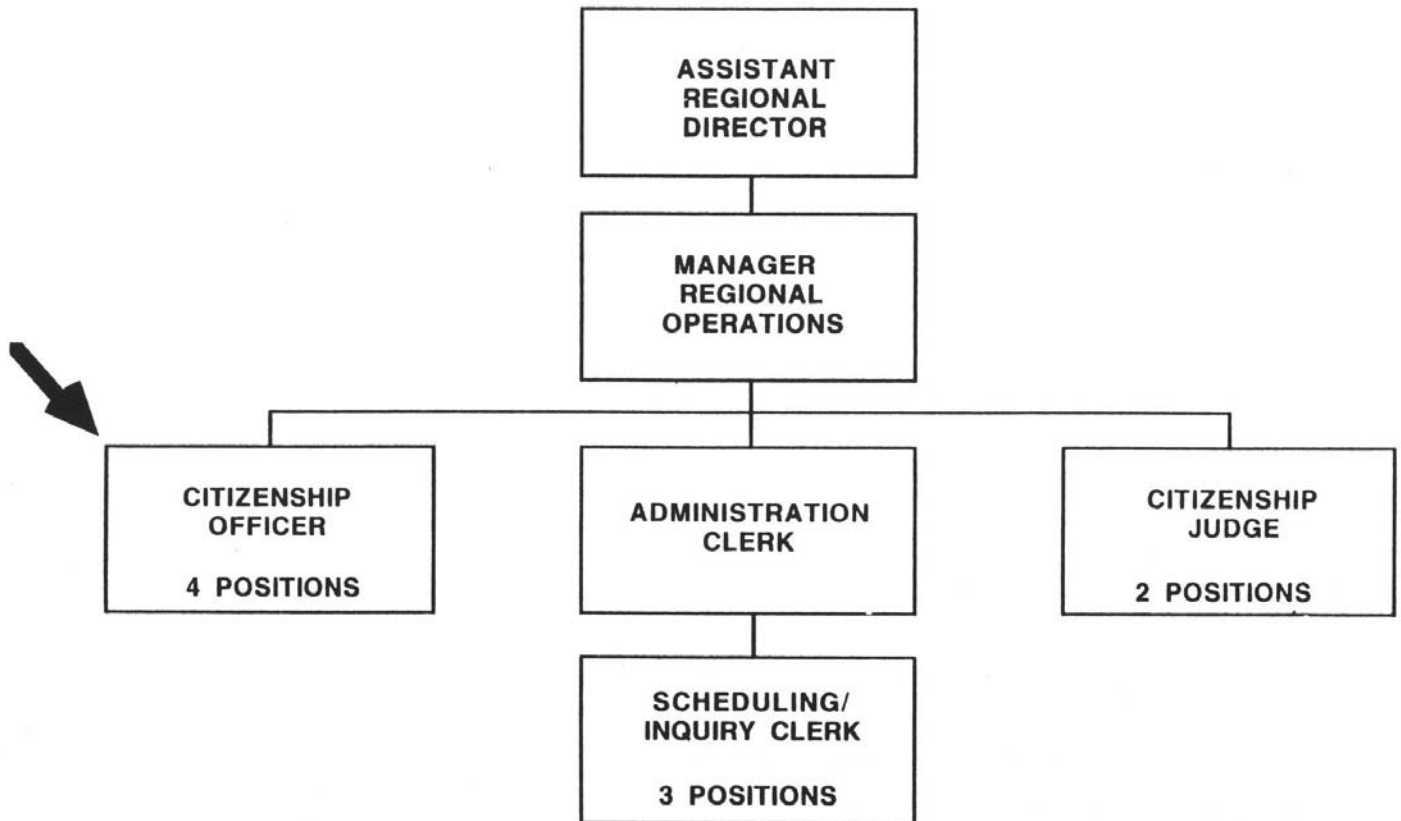
A / 10

Responsibility is primarily limited to own work; provides incidental guidance on Citizenship matters to county court officials.

CONTACTS

1 / 30

Interviews applicants and provides information to applicants and others such as elected officials, ethnic leaders and lawyers with regards to matters falling under the Citizen Act and Regulations.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 30

Level: 2

Descriptive Title: Field Examiner

Point Rating: 385

Reporting to a Field Examination Group Head:

Plans and conducts examinations of the income tax returns and related records of individual taxpayers and trusts reporting income from professions, farming, fishing, and general businesses of all types, to ensure compliance with the provisions of the Income Tax Act and related legislation and to detect tax evasion and tax avoidance.

Reviews and analyzes income tax returns, financial statements and other related documents to determine the reasonableness of revenue, cost and profit ratios for the current year and prior years and notes questionable fluctuations in profits, assets, liabilities and capital structure of the organization; prepares an audit plan including the extent of the audit, the estimated audit time and any special features suggested by prior audits and notes any peculiarities of the particular business or industry; contacts the taxpayer to arrange for the audit and obtains agreement to examine records and other pertinent information.

Interviews taxpayers, their representatives or staff, observes the operations and reviews financial and other records to gain a clear understanding of the business activities and of the accounting system. Determines the adequacy of the books and records, amends the audit plan as required and prepares financial analysis schedules. Where the books and records are found inadequate for normal audit techniques, prepares net worth statements to determine income earned.

Examines, on site, the taxpayer's books, records and other supporting evidence including balance sheet items, profit and loss items, general ledger accounts, subsidiary ledgers, cost records, books of original entry, vouchers, contracts, agreements, deeds, manual of accounting procedures and internal operating reports to determine and verify that the information, taxable income and tax payable as reported in the tax return and other documents is correct and discloses income from all sources. Reviews the personal lifestyle, bank accounts and other assets of individuals in business to detect unreported income; interprets wills, legal documents, establishes the nature and value of deemed dispositions of assets and income of testamentary trust relative to deceased taxpayers. Refers lead information to the Special Investigation Section where there are indications of tax evasion or fraudulent practices, refers problems of asset valuation to support groups such as valuations or appraisals. Refers to the immediate supervisor unusual or unresolved problems such as assessments which raise questions of policy or procedures. Confirms assessments or establishes assessment changes as a result of the examination, explains findings to the taxpayers, orally and in writing, and attempts to resolve conflicts of opinion or clearly define differences. Recommends the imposition of civil penalties when deemed necessary.

Prepares a detailed written report of each audit.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

C1 / 191

Program and Specialized/Technical

Knowledge is required of the Income Tax and Canada Pension Plan Acts and Regulations, the Taxation Operations Manual and of departmental directives applicable to income of proprietorships, partnerships, individual taxpayers engaged in business operations, deceased taxpayers and testamentary trusts. Some knowledge is also required of inheritance and trust acts, both federal and provincial, pertaining to the administration of trusts and estates and of various other federal and provincial statutes such as the Partnership Act. The interpretation of such documents as contracts and negotiable instruments is required in order to determine the implications of most business and financial transactions.

Knowledge is required of accounting principles and practices and of the preparation and analysis of financial statements related to partnerships and proprietorships engaged in a variety of different businesses. This knowledge is required in order to understand taxpayers' business operations and practices and to analyze their financial affairs.

General Administration

A knowledge of travel regulations is required to plan audit itineraries.

DECISION MAKING

B1 / 114

Scope

Judgement is required in identifying issues, their tax significance and complexity in order to determine the areas to be audited and the depth of audit needed in order to establish the taxpayer's correct income and taxes payable.

Judgement is required in determining whether to use a detailed source and application of funds audit test or to audit the taxpayer on an exhaustive net worth basis where books and records are considered inadequate. Judgement is also required in determining the significance of unexplained fluctuations in revenues, expenses, assets, liabilities and owner's equity and determining which of these items have tax consequences and warrant audit. Judgement and initiative are required in determining whether time should be spent obtaining information from sources other than the taxpayer in order to verify such items as sales, valuations, deductions from income and other personal investment and income items.

Judgement is required in determining whether audit findings are indicative of either fraud or tax avoidance and at what point the case should be referred to departmental experts in these fields. Recommendations are made on such matters as whether negligent action on the part of the taxpayer in completing his return justifies the imposition of a civil penalty equal to twenty-five per cent of the total tax.

Impact

Tax implications which are overlooked or missed by the auditor can result in a significant loss of revenue to the Crown. (This revenue is generally lost forever due to the low frequency of audits). The Examiner audits approximately thirty businesses per year.

OPERATIONAL RESPONSIBILITY

A / 10

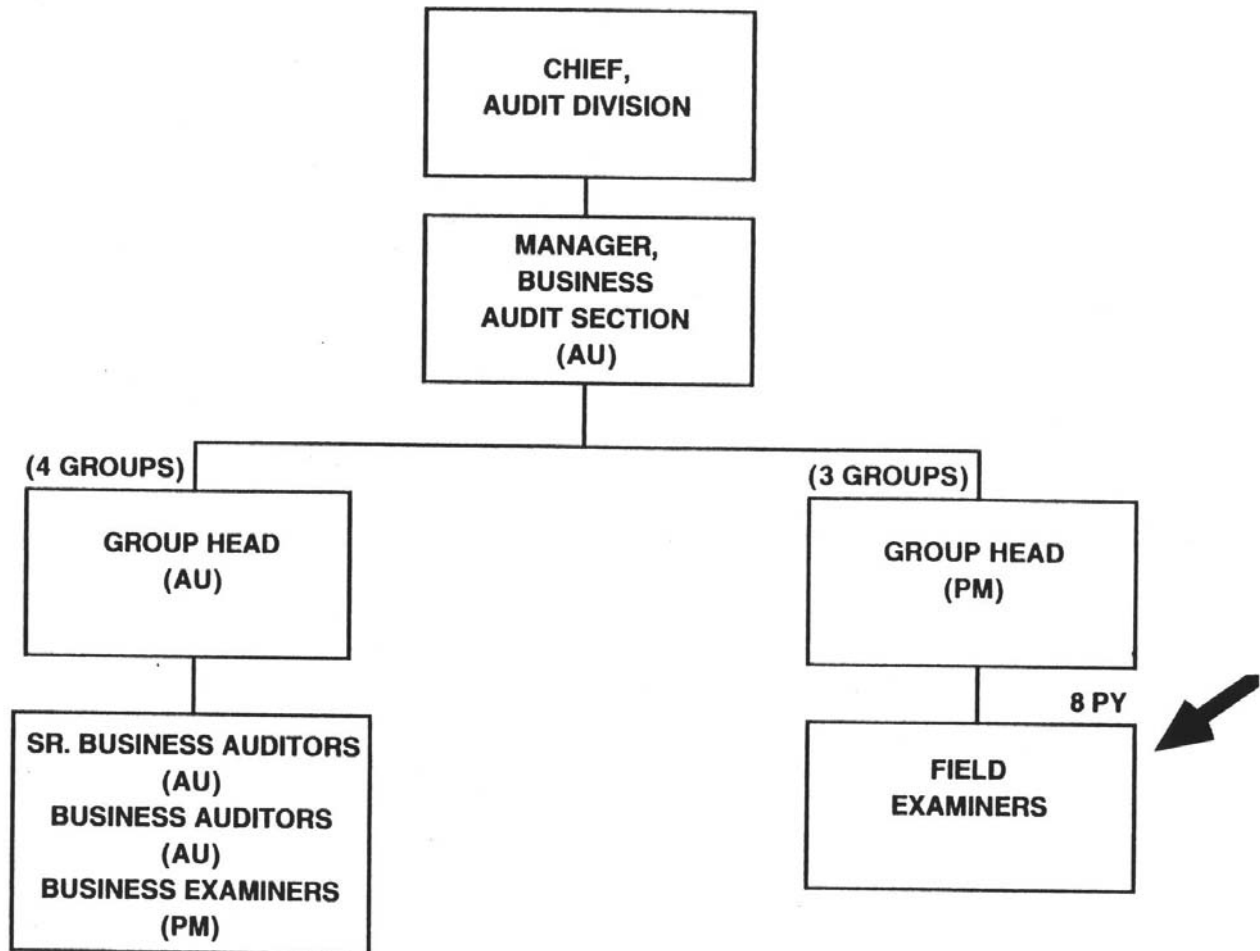
Nature of Responsibility

Plans and schedules own workload according to agreed plan and procedures. Refers to the Group Head, cases identified from the audits which raise questions of policy or procedures.

CONTACTS

2 / 70

Discussion is required with proprietors, partners of small businesses and individuals or their representatives (lawyers and tax accountants) in order to obtain their assistance and cooperation in obtaining information or explanations during the course of the audit and in explaining changes in tax payable at the completion of the audit. Differences of opinion are frequently encountered and attempts are made to reach a mutual agreement so as to foster future compliance.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 31

Level: 1

Descriptive Title: Customs Inspector

Point Rating: 285

Reporting to a Customs Superintendent:

Enforces laws and regulations of own and other departments to control the movement of goods by international carriers, and the release, detention or prohibition of goods, persons and their vehicles entering or exiting Canada; and renders, within departmental guidelines, final decisions on value for duty, tariff classification, rates of duty, provisional duty, anti-dumping duty, and sales and/or excise taxes payable. Interviews persons at port of entry and inspects personal documents such as passports, health certificates, proof of citizenship, work permits or other documents to establish eligibility of admission, and observes the physical and emotional state of persons to assist in verifying information concerning health and for indications that false or misleading information is being provided. Refers persons to Immigration Officials for secondary examination when evidence to substantiate immediate admission is insufficient or incomplete, and refers to Health Officials persons not in possession of required health certificates and those whose health condition is suspect. Withholds entry of persons not resident of the country of departure and who do not possess proof of re-admissibility to that country. Questions admissible persons to ascertain the nature, content, origin, use and final disposition of goods in their possession and determines the applicability of the various Federal and Provincial laws and regulations governing the importation of goods. Selects and holds goods such as cattle, plant products or materials requiring inspection and documentation by officials of other departments. Identifies and withholds the entry of restricted goods, such as firearms, pending the presentation of required documents, and confiscates prohibited goods. Evaluates voluntary declarations and selects those for referral to secondary customs examination and provides advice concerning the area, nature and intensity of secondary examination required. Appraises personal goods of unlimited value, calculates and collects duties or taxes, and issues receipts to validate legal importation. Determines the nature of controls to be exercised over temporarily imported goods such as the production of certificates, permits, admission forms or provision of financial security. Authorizes the release of persons and goods when all requirements for entry are established. Conducts the primary examination of commercial goods entering Canada together with related transportation equipment or carriers to ensure compliance with laws and regulations respecting the importation and use of goods. Reviews documents to ensure description is adequate for tariff classification and, as required, that certificates, permits, release authorities, single trip bonds and other documents are in order. Inspects and releases commercial goods that are the subject of a standing release or other authority. Refers, as required, goods for inspection by a Port Appraiser or other appraisal authority. Determines the scope of examination, selects appropriate methods and techniques, and conducts comprehensive searches of persons, goods and carriers in carrying out secondary customs examinations to locate and identify smuggled, prohibited, restricted, undervalued or misdescribed goods. Interrogates persons, inspects records and documents and conducts such further examination as deemed necessary to establish the nature, circumstances and the intent of an offence. Determines and takes such warranted enforcement actions as the amendment of primary declarations, the seizing of goods and carriers and the arrest of persons. Determines the terms and conditions for the release of seized goods and carriers, such as the requirement to produce permits for firearms and other restricted goods and the establishment of cash deposits based upon value, duty and taxes. Prepares incident reports describing particulars, explaining actions taken, suggesting additional areas of investigation and recommending the laying of charges. Performs a variety of related duties such as providing advice regarding interpretation of Customs and Excise Acts and Regulations, providing assistance to casual importers, returning residents and settlers in completing customs entries, and explains enforcement actions to all manner of travellers and the relevant legislative authority to support appeals and/or court action.

SPECIFICATIONS

Degree/
Points

KNOWLEDGE

B1 / 136

Program and Specialized/Technical

The work requires knowledge of Customs and Excise Acts, Regulations and procedures as well as a knowledge of a large number of Federal and Provincial Acts and Regulations for which the department has limited administrative responsibility in such diverse areas as immigration, drugs and other prohibited or regulated goods, hazardous products, livestock, meat products, plants, farm products, pornography, and hate literature, and various offences under the Criminal Code.

General Administration

Knowledge requirement in this area is limited to the procedures and practices established for the conduct of inspection duties and for liaison and/or coordination of activities with other agencies.

DECISION MAKING

A1 / 69

Scope

Established regulations, policies and procedures govern most of the work. Initiative and judgement are required in conducting interrogations, evaluating voluntary declarations, selecting cases for and conducting secondary examinations, determining tariff classifications and evaluating goods, and in providing advice and assistance.

Impact

Decisions primarily affect individual persons or particular cases or incidents. While decisions may have wider implications these would not be considerations.

OPERATIONAL RESPONSIBILITY

A / 10

Nature of Responsibility

Responsibility is generally limited to own work. Provides advice regarding the area, nature and intensity of secondary examination required.

CONTACTS

2 / 70

Determines the eligibility of persons entering Canada. Carries out interrogations as part of secondary examination to determine nature, extent and intent of violations. Explains legislative authority and provides advice and guidance to travellers, importers and carriers.

